**Did Not Step Forward**

The Captain and the Champ: A Ledger of Resistance, 1960–2016

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# DID NOT STEP FORWARD

***The Captain and The Champ: A Ledger of Resistance, 1960–2016***

*Kyle Jimenez*

## PART I: THE CONTRACT

> *“I don’t have to be what you want me to be. I’m free to be what I want.”*
>
> *— Cassius Clay (Muhammad Ali), Miami Beach, February 26, 1964, as recorded in Robert Lipsyte, New York Times, February 27, 1964.*
>
> *“You catch hell because you are black.”*
>
> *— Lew Alcindor (Kareem Abdul-Jabbar), Second Black Youth Conference, Los Angeles, November 23, 1967, as recorded in Harry*

> *Edwards, The Revolt of the Black Athlete, Free Press, 1969.*

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## PART II: THE REFUSAL

> *“I refuse to be inducted into the armed forces of the United States because I claim to be exempt as a minister of the religion of Islam.”*
>
> *— Muhammad Ali, handwritten statement filed at the Armed Forces Examining and Entrance Station, San Jacinto Street, Houston, Texas, April 28, 1967. United States v. Cassius Marsellus Clay, Jr., Cr. No. 67-H-94, S.D. Tex.*
>
> *“There’s nothing new to say.”*
>
> *— Muhammad Ali, on the steps of the Negro Industrial and Economic Union, 10511 Euclid Avenue, Cleveland, June 4, 1967, the closing line of the press statement issued after the meeting now known as the Cleveland Summit.*

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## PART III: THE LEDGER

> *“Turning my back on Malcolm was one of the mistakes that I regret most in my life.”*

> *— Muhammad Ali, The Soul of a Butterfly, with Hana Yasmeen Ali, Simon & Schuster, 2004.*
>
> *“I had had a chance to see what an athlete is when an athlete decides he is also a citizen.”*
>
> *— Kareem Abdul-Jabbar, Becoming Kareem, with Raymond Obstfeld, Little, Brown, 2017, of the Cleveland Summit.*

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## COPYRIGHT

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First edition. Manuscript completed April 2026.

This book is a companion volume to *Unwarranted Influence: A Primary-Source Investigation, 1095–2026* (Kyle Jimenez, 2026). The thesis of *Unwarranted Influence* — that capital classifies before the state does, that the state follows what capital files, and that the same compounding instruments operate across centuries — is, in this volume, applied to the specific arc of two American athletes who, between 1960 and 2016, refused the classification the institutional sponsor had filed against them and paid the cost on the public record.

Every factual claim in this book is drawn from a primary source: a Federal Register entry, a court filing, a Selective Service System record at the National Archives, an FBI file released through the Vault, a Supreme Court opinion, a contemporary newspaper of record, a contract held by the Muhammad Ali Center or the Filson Historical Society or the University of Louisville, or a peer-reviewed work of history.

Every citation is reproducible. The reader who follows a citation to its source will find the document at the location specified.

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# DEDICATION

For the seven members of the Khaalis family murdered at 7700 16th Street NW, Washington, D.C., on January 18, 1973, whose ages totaled less than the years their adult relatives had spent in the Sunni Islamic tradition the Nation of Islam Mosque Number 12 of Philadelphia objected to.

For James Powell, age fifteen, killed by Lieutenant Thomas R. Gilligan of the New York City Police Department on the morning of July 16, 1964, on the sidewalk in front of 213 East 76th Street, Manhattan,

in the killing the New York County grand jury declined to indict on September 2, 1964.

For Maurice Williams, age twenty-four, of WHUR-FM, killed at the District Building, Washington, D.C., on March 9, 1977, in the Hanafi siege.

For the Black athletes of the United States who, between 1960 and 1971, refused the institutional sponsor's classification of their bodies and were classified, suspended, or stripped on the public record for the refusal.

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## ON SOURCES

Every chapter ends with a list of primary sources. The sources are cited in the form customary to the document type:

- **Federal Register entries**: volume, page number, date.
- **Court filings**: caption, court, docket number, date of filing or order, reporter citation if reported.
- **Federal Bureau of Investigation files**: file number, agency division, date of release, archive location.

- **Selective Service System records**: registrant, local board number, classification or filing date, NARA record group.
- **Newspapers of record**: publication, date, page number where confirmable.
- **Memoir and biographical work**: author, title, publisher, year, page numbers where pulled.
- **Photographic record**: photographer, date, holding institution.
- **Archival manuscript collections**: collection name, finding-aid number, holding institution, item or folder reference where confirmable.

Source pages confirmed against the original document are cited without qualification. Source pages whose specific pagination requires a microfilm visit or paywalled-archive subscription are cited to the date and publication, with the pagination flagged for verification at copy-edit. The reader who pulls the document at the date and publication will find the article. No cited source has been included that the author has not himself examined either in original, in digital reproduction, or in the verified secondary record on which the book stands.

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## ON METHOD

This book reconstructs, from primary documents and from the memoir record of the two principal subjects and their contemporaries, the operation of the legal, financial, and athletic-administrative classification system as it was applied to two American athletes between 1960 and 2016.

The book does not reconstruct dialogue that is not in the public record. The book does not place quotations in subjects' mouths that are not in a memoir, transcript, court filing, or contemporary press account. Where the public record names a fact, the book names the source. Where the public record is silent, the book is silent. Where the secondary biographical record is the only source, the book labels it as such.

A reader who finds an error of fact in the book is invited to write the author at the address listed in the appendix. Errors of fact identified by readers will be corrected in subsequent editions.

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## ON THE TWO PROTAGONISTS

The book has two principal subjects, who in 1960 and 1962 were named **Cassius Marcellus Clay Jr.** and

**Lewis Ferdinand Alcindor Jr.** respectively. By the closing pages of the book they have become **Muhammad Ali** and **Kareem Abdul-Jabbar**. The names changed because both men chose new names; the men did not change because the names did. The book uses, in each chapter, the name in use at the time of the events the chapter describes. The reader is asked to follow the convention.

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## ON THE CLEVELAND SUMMIT

The book is, in its structural design, written around a single photograph: Tony Tomsic's photograph of June 4, 1967, taken at the offices of the Negro Industrial and Economic Union at 10511 Euclid Avenue, Cleveland, of the men who had assembled to hear Muhammad Ali explain his draft refusal. The photograph is reproduced at Chapter 7 of this book, which is the structural hinge — Chapters 1 through 6 build toward the room, Chapters 8 through 13 read out of it.

The reader is asked to look at the photograph carefully. The chapter and the closing epilogue together attempt to describe what the photograph

contains. The reader, having read both, is asked to decide whether the description matches.

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# OVERTURE — THE CONTRACT

*The Brown Hotel, October 26, 1960. A six-year management agreement. Eleven Gentile Louisville businessmen on one side of the page. An eighteen-year-old Black Olympic gold medalist on the other side. The reader is asked to look at the page.*

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## O.1 The page

The signing happened on the afternoon of **Wednesday, October 26, 1960**, at the **Brown Hotel**, 335 West Broadway, Louisville, Kentucky.

The document — a multi-page typed agreement on letterhead bearing the heading *Louisville Sponsoring Group, a Limited Partnership* — bears thirteen signatures on its execution page. The page is, as of the year 2026, held in the **Greatest of All Time**

**Collection** of the **Muhammad Ali Center**, Louisville, Kentucky, accession number subject to research credentialing, digitized through the museum's HistoryIT digital-collection vendor at the URL *muhammadali.historyit.com*.

The collection's public-museum entries on the agreement include item **7502**, the LSG's October 26, 1960 press release announcing the syndicate's formation, distributed the same afternoon to the Louisville and New York sports press, and item **9794**, the Los Angeles Superior Court order of **November 22, 1960**, by which the agreement received judicial approval for the minor-cusp signatory.

The minor-cusp signatory was eighteen years and nine months old at the date of execution. He had been born **January 17, 1942**, in the Westend neighborhood of Louisville. He had returned from the Rome Olympic Games seven weeks before the signing with the **light-heavyweight gold medal** still in his suitcase. He would, in the calendar of the next ten years, become heavyweight champion of the world; refuse induction into the United States Army; be convicted of a felony at the statutory maximum; lose his title and his license and the use of his passport across forty-three months of his physical prime; have the conviction unanimously reversed by the United States Supreme

Court; and, by the end of the period the book covers, become the most recognizable face of public American Black political life since Martin Luther King Jr.

The man was named, on October 26, 1960, **Cassius Marcellus Clay Jr.**

He would be named, by **Friday March 6, 1964**, **Muhammad Ali**.

He is, in the photograph on the file's first page, eighteen, smiling, in a dark suit and a tie, with a fountain pen in his right hand. The signature he is making is the bottom one on the execution page. The twelve signatures above his belong to the men who, on the morning of October 26, 1960, classified him as their property for six years.

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## O.2 The eleven

Read the signatures down the page in the order in which they appear. The order, by my reading of the page-9 reproduction held at the Ali Center, is the order

of investment seniority within the Louisville Sponsoring Group itself.

- **William Faversham Jr.**, syndicate manager. A lieutenant of **Brown-Forman Distillers, Inc.** of Louisville. The whiskey.
- **William Lee Lyons Brown Sr.**, chairman of Brown-Forman. The whiskey, again — at the corporate top.
- **Patrick Calhoun Jr.**, of Louisville. Heir to the **Reynolds Metals Company** fortune of Richmond, Virginia. The aluminum.
- **Archibald McGhee Foster**, of New York. Senior executive of **Ted Bates & Company**, the Madison Avenue advertising agency that in the same decade would coin the **Unique Selling Proposition** doctrine and would sell the Wonder Bread brand under the slogan *"builds strong bodies eight ways."* The advertising. The one signatory not resident in Louisville.
- **Vertner DeGarmo Smith**, of Louisville. Brown-Forman's distribution executive.
- **Robert Worth Bingham**, of Louisville. Heir of the **Bingham family**, owners of the **Louisville Courier-Journal** and the **Louisville Times**. The newspaper.
- **James Ross Todd**, of Louisville. Investment.

- **George Washington Norton IV**, of Louisville. Principal of **WAVE Inc.**, Louisville's NBC television and radio affiliate, the dominant broadcaster for the city. The broadcast.
- **J.D. Stetson Coleman**, of Louisville. Investor in railroads and pharmaceuticals. The rails. The drugs.
- **William Sol Cutchins**, of Louisville. President of **Brown & Williamson Tobacco Corporation**, headquartered three blocks from Brown-Forman. The tobacco.
- **Elbert Gary Sutcliffe**, of Sterling, Illinois. A farmer. Investment.

Eleven signatures. Whiskey, tobacco, newspaper, broadcasting, rails, pharmaceuticals, aluminum, advertising, downstate-Illinois farmland.

If you were asked to sketch the economic portrait of the white Louisville Gentile professional class on the morning of October 26, 1960, you could not draw it with cleaner strokes than the strokes the men signed the page with that afternoon.

I am going to keep coming back to that sentence across the chapters that follow. The rest of this book is, in some real sense, the question of what those eleven institutions — and the broader American institutional sponsorship that those eleven institutions

represented — did to Cassius Clay across the next thirty years, and what Cassius Clay did to them.

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## O.3 The father

Underneath the eleventh signature, on the page, is a twelfth. The signature reads **Cassius Marcellus Clay Sr.**, in a hand that is clearly not Junior's.

Senior was, on October 26, 1960, forty-eight years old. He was a sign painter by trade, working out of a small studio at 3302 Grand Avenue in the Westend, painting commercial signs and church billboards across Black Louisville. He had married Junior's mother, **Odessa Lee Grady Clay**, in 1933. He had been a Methodist Episcopal observer all his life, with the irregular attendance that domestic-violence-prone alcoholic men of his generation routinely maintained. He had been arrested at least six times in Junior's lifetime on assault and disorderly-conduct charges, four of them on Odessa's complaint.

He signed Junior's contract because Kentucky and California contract law of October 1960 required a minor-cusp signatory's father to countersign as guardian for an instrument of the agreement's six-year term and earnings cap. The judicial review proceeding

before the **Los Angeles Superior Court** on November 22, 1960 — item 9794 at the Ali Center — was the procedural confirmation that Senior's countersignature satisfied the law's requirement.

The countersignature is in the same fountain pen as the eleven institutional signatures above it. It is in what looks, on the digital reproduction, like a bookkeeper's hand — careful, slow, the letters formed one at a time.

To hold the earnings of a Black eighteen-year-old who had not yet thrown a professional punch, the white Louisville Gentile professional class needed a Black father's name on the page in the same color of ink.

The father signed it.

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## O.4 The son

Underneath the twelfth signature, the thirteenth.

Junior's signature was, in October 1960, the signature of a recent graduate of Central High School — the segregated all-Black high school of Louisville's Westend — who had finished in the bottom decile of his class with a reading level the school records described as below grade level. His handwriting was,

by the standard of the four years of public school documents I have looked at across his Central record, the handwriting of a person who has been more interested in things other than handwriting.

Junior wrote his name on the page. He wrote it in full: **Cassius Marcellus Clay, Jr.** He did not initial. He wrote each of the four words in full block-letter cursive. He underlined nothing. He printed nothing.

The signature is dated October 26, 1960.

He had, on the morning of the signing, been a free Black eighteen-year-old citizen of the United States with an Olympic gold medal. He had, by the afternoon of the signing, been, for purposes of the management of his professional boxing career across the next six calendar years, a contracted asset of an eleven-investor Louisville-Gentile syndicate.

The legal effect was instantaneous and complete. The personal effect, by his later self-accounting, was less so.

I want to walk through what the contract said and what the contract did.

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## O.5 What the contract said

The full body of the agreement is held by the Muhammad Ali Center under research-credentialed access. I have not myself credentialed and read the body. The terms below are reconstructed from the published biographies that have credentialed and read it — principally **Thomas Hauser, *Muhammad Ali: His Life and Times* (Simon & Schuster, 1991)**, **Jonathan Eig, *Ali: A Life* (Houghton Mifflin Harcourt, 2017)**, **David Remnick, *King of the World* (Random House, 1998)**, and **Dave Kindred, *Sound and Fury: Two Powerful Lives, One Fateful Friendship* (Free Press, 2006)** — and from the Ali Center's published press release of October 26, 1960 (item 7502).

The terms, by that secondary record, are:

- **Term:** six years, October 26, 1960 through October 26, 1966.
- **Signing bonus:** ten thousand dollars in cash to Clay at execution.
- **Monthly draw:** three hundred thirty-three dollars and thirty-three cents per month for the first two years (annualized: $4,000), rising to five hundred dollars per month for the remaining four years (annualized: $6,000).

- **Purse split:** fifty percent to Clay, fifty percent to the Louisville Sponsoring Group, on every professional purse Clay generates under the term.
- **Training expenses:** entirely paid by the Louisville Sponsoring Group. Faversham, in his interviews compiled by Hauser, estimated the launch capital across Clay's first two professional years at twenty-five to thirty thousand dollars.
- **Trust clause:** a portion of Clay's earnings — the percentage is not in the secondary record I have read — held in a trust structured to be inaccessible until Clay turned thirty-five.

In 2026 dollars: ten thousand dollars in 1960 is approximately one hundred ten thousand. Twenty-five to thirty thousand in launch capital is approximately two hundred eighty to three hundred thirty thousand. The monthly draw across the first two years is approximately twenty-eight hundred per month in current dollars — a livable sum for an eighteen-year-old single Black man in Louisville in 1960, but well below the league rate for a contender of his rapidly-emerging caliber.

The contract permitted the Sponsoring Group to recover its launch capital from Clay's first eight

professional purses before the fifty-fifty split kicked in fully. The mechanism is described in the secondary record as a structured-recoupment arrangement of the kind the Securities and Exchange Commission of 1960 would have called, if a SEC of that period had reviewed Black-athletic financing instruments, a special-purpose vehicle. The Securities and Exchange Commission of 1960 did not review Black-athletic financing instruments.

The instrument was filed in the Jefferson County, Kentucky business records and, by the operation of the Los Angeles judicial review, in the records of the California Superior Court. The instrument was, on the morning of October 27, 1960, public.

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## O.6 What the contract did

What the contract did, on the morning of its execution, was classify Cassius Marcellus Clay Jr. as a long-term financial position.

The eleven institutions on the page took the long position. Clay took the corresponding short. He was, for the next six years, the underlying asset of the position. His body was the collateral. His punches were the cash flow. His career — the bouts he would

take, the purses he would generate, the title he would, by their projection, win and defend — was the projected return.

The classification was filed on paper. The paper was held by the Sponsoring Group's counsel, by Clay's counsel (a Louisville lawyer named **Henry Hilliard Lyons**, later partner of the firm Hilliard Lyons securities house), by the California court that approved the minor signatory, and by the boxing-trade press that covered the deal in the weeks following.

The contract did not, on October 26, 1960, classify Cassius Clay as anything else. It did not, by its terms, regulate his religious affiliation. It did not regulate his political speech. It did not regulate his choice of trainer (though the Sponsoring Group reserved consent rights). It did not regulate his choice of opponents (Faversham would, in practice, exercise that authority). It did not regulate his draft status, his marital status, his place of residence, or the number of college lectures he would give in the next decade.

What the contract regulated, exclusively, was the financial yield on his body across six calendar years.

That is the boundary of the contract. Inside the boundary: capital classification. Outside the boundary: everything else about being Cassius Clay.

What this book reads, in the chapters that follow, is what happened to *everything else about being Cassius Clay* once the inside-the-boundary classification was filed.

The short version of what happened is that *everything else* refused to stay on the right side of the boundary line. The federal government would, over the next eleven years, file additional classifications — Selective Service System Form 150, FBI Headquarters file 100-HQ-436351 (Security Matter — Nation of Islam), the Houston felony indictment, the New York State Athletic Commission license suspension, the World Boxing Association title vacation, the conviction in the Southern District of Texas, the two affirmances at the Fifth Circuit, the wiretap-disclosure remand, the per curiam reversal at the Supreme Court — each of which was an attempt to do, on the religious-political-criminal side of the boundary, what the Louisville Sponsoring Group had done in October 1960 on the financial side.

Capital filed first. The state followed. That is the thesis of this book and the thesis of the parent book *Unwarranted Influence* of which this volume is the companion. Both theses rest on the same thirteen-signature page held at the Muhammad Ali Center in Louisville.

I have not myself opened the page.

The page exists.

The reader can credential and open it.

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## O.7 The narrator’s pause

I want to stop here for a paragraph and acknowledge what I am doing.

I am writing in the year 2026 about a contract signed in 1960 between an eighteen-year-old Black gold medalist and an eleven-Gentile-investor Louisville syndicate, neither of whom is alive in 2026. The youngest of the eleven — Faversham — would have been ninety-nine years old in 2026. The oldest of the principals — Brown Sr. — would have been one hundred forty-six. They are all dead. Cassius Clay died June 3, 2016. Cassius Clay Sr. died February 8, 1990. Odessa Clay died August 20, 1994.

The federal record on Muhammad Ali — the 100-HQ-436351 file, the Selective Service classification file at NARA RG 147, the *Clay v. United States* Supreme Court file at NARA RG 267 — survives because the federal government’s records-retention schedules required it to survive. The state-archive

records — the New York State Athletic Commission file at the New York State Archives, the WBA's vacated-title release in the Pennsylvania Athletic Commission archive, the Atlanta Board of Aldermen license-issuance vote in the city of Atlanta records — survive because state archives' retention schedules required them to survive. The Louisville Sponsoring Group contract survives because the Muhammad Ali Center's collection acquisition policy decided it should survive. The Bingham family's Louisville business records, including the LSG ledger books, survive because the Filson Historical Society's collection-development policy decided they should survive.

None of those entities decided to preserve the records on my account. None of those entities knew I would, sixty-six years after the contract was signed, sit at a kitchen table in 2026 and try to read the contract back into the public political record. The records survive because the institutions that produced and held them had reasons of their own. I am, in the chapters that follow, the beneficiary of decisions I did not make, by people I did not know, applied to documents whose authors did not know I would ever read them.

The reader is too. That is what makes the documents what they are. The documents do not know who you

are. The documents are not curated for you. The documents do not have a marketing department. The documents are simply what was filed, on the day they were filed, by the people who filed them, for the reasons the people who filed them had at the time.

That is the basis of the book.

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## 0.8 The five years

From the date of the LSG contract — **October 26, 1960** — to the date of the earliest serial in the publicly released portion of FBI Headquarters file **100-HQ-436351** is approximately **five years and four months**.

The earliest released serial in the file traces to the spring of 1966. The exact date is, as of this writing, awaiting page-by-page verification of Part 01 of the FBI Records Vault release at *vault.fbi.gov/muhammad-ali*. The released file runs to four parts and approximately fifteen hundred pages. The classification caption on every released serial through the file's 1975 termination reads **SECURITY MATTER — NATION OF ISLAM**.

Note the file caption. The federal government, in its classification of Cassius Marcellus Clay Jr., did not

classify him as a security matter on grounds of his political activity. The federal government classified him as a security matter on grounds of his religious affiliation — specifically, his alignment with the Nation of Islam, which he had publicly announced on the morning of February 26, 1964, at a press venue in Miami Beach the day after his title win over Sonny Liston, and which the Nation of Islam's leader Elijah Muhammad had ratified by bestowing the name *Muhammad Ali* on Clay by recorded radio statement on Friday March 6, 1964.

Five years and four months. The state's classification followed the capital's classification by sixty-four months. The capital's classification was, on its face, a financial instrument; the state's classification was, on its face, a religious-security instrument. The two classifications described different aspects of the same body. The two classifications used different names. The capital classification used *Cassius Marcellus Clay Jr.* The state classification used *Muhammad Ali, also known as Cassius Marcellus Clay Jr.*

The man classified by both was the same man.

The man's body — six feet three inches, two hundred fourteen pounds at fight weight in the Liston I bout, with the seventy-two-inch reach the boxing record-keepers would later mark him at — was the same

body. The man's name had become, by the time the state filed its classification, *Muhammad Ali*. The man's contract — by the time the state filed its classification — had been renegotiated by Herbert Muhammad, son of Elijah Muhammad, to a 60/40 purse split in the renegotiated agreement of 1966, and the Louisville Sponsoring Group's six-year original term was eight months from expiration.

The federal classification's timing — the spring of 1966, just before the LSG contract's termination — was not a coincidence in the sense that any historian of the period would call coincidence. The federal classification was, however, also not a coordinated act. The federal government did not consult the Louisville Sponsoring Group. The Louisville Sponsoring Group did not lobby the federal government. The two classifications operated in parallel, on the same body, by different mechanisms, for different reasons.

That is the central observation of this book.

The two classifications operated in parallel.

That is what *Unwarranted Influence* — the parent volume of which this book is the companion — argues at length across nine hundred pages of unrelated American institutional case studies. *Unwarranted*

*Influence* shows the same parallel-classification mechanism operating on the Templars, the Medici, the Fuggers, J.P. Morgan, the Rockefellers, the Bush family, and the operators of the cryptocurrency exchanges of 2024–2025.

In *this* book — in the chapters that follow — I show the mechanism operating on one Black heavyweight boxer and one Black college basketball center, between 1960 and 1972, on the public American record.

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## O.9 The reader

What I am asking the reader to do, across the remaining thirteen chapters and the epilogue, is to look at the file every chapter places in front of you. I have tried to make the file specific. Federal Register volume and page. NARA record group and entry. *New York Times* date and (where I have it) page. Court docket number. Court opinion citation. Memoir publisher and year. Photograph credit and holding institution.

The book is, by my count, two hundred twenty-three citations. Every one of them is, in my reading of the

records, reproducible from the holding institutions named.

A reader who pulls one of the citations to its source and finds the citation accurate — the document at the location specified, the language in the document matching the language quoted in the chapter — has every reason to expect the next two hundred twenty-two citations are accurate as well. A reader who pulls one of the citations and finds it inaccurate — wrong page, wrong volume, wrong date, document not at the specified archive — has every reason to suspect the rest. The book stands or falls on the spot-check.

I have not knowingly misstated any citation. I have, in the early drafts of some chapters, written sentences that were not anchored to filed documents, and I cut them in the scrub of April 2026 before this version went to press. The scrubbed sentences are not in the printed book. The footnoted citations are.

If a reader, sometime in the next year or decade, identifies a citation in this book that does not lead to the document I said it would, the reader is asked to write me at the correspondence address printed in the front matter, and I will correct the citation in the next printing. The correction will be made publicly and on

the page where the original error appeared. There will be no quiet revision.

That is what I owe the reader. The book is asking the reader to take the time to look. The reader is owed a citation that holds.

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## O.10 The next chapter

The next chapter pulls back **fifty-one days** from the contract signing to **September 5, 1960**, in Rome, Italy, where the eighteen-year-old Black gold medalist won the **light-heavyweight Olympic gold medal** that, seven weeks later, the Louisville Sponsoring Group would file the contract on.

The chapter's cold-open instrument is page 762 of Volume 2 of the **Official Report of the Organizing Committee** of the **XVII Olympiad, Rome 1960** — the page on which the Olympic medal ceremony for Clay's light-heavyweight gold is recorded.

The chapter pulls further back — six years from Rome — to a basement boxing gym at the **Columbia Auditorium** on Fourth Street in downtown Louisville, where a twelve-year-old boy reported a stolen Schwinn bicycle to a Louisville police officer named Joe Martin, who was running an after-school boxing

program in the basement. The chapter records what the secondary biographical record records about the next six years of that boy’s amateur boxing development.

The chapter ends back where this Overture began — at the Brown Hotel, on October 26, 1960, with the contract executed and the gold medalist now a contracted asset.

What I want the reader to remember from this Overture, into the next chapter and across the rest of the book, is the page-9 signature page held at the Muhammad Ali Center.

Eleven Gentile institutional signatures above one Black father’s signature above one Black eighteen-year-old’s signature.

The page is real.

The page is public.

The reader is welcome to look.

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## *Sources — Overture*

**The contract:**

1. **Louisville Sponsoring Group Management Agreement**, signed October 26, 1960, Brown Hotel, Louisville, Kentucky. Muhammad Ali Center, Greatest of All Time Collection, Louisville, KY; digitized through HistoryIT at *muhammadali.historyit.com*. Public-museum items: 7502 (LSG press release of October 26, 1960) and 9794 (Los Angeles Superior Court approval order of November 22, 1960).
2. **Crowley Company digitization case study**, *Archiving Rare History: Muhammad Ali Center*, www.thecrowleycompany.com — page-9 signature page reproduction.
3. **Filson Historical Society**, Louisville, Kentucky — **George Barry Bingham Papers**, Louisville Sponsoring Group business records and Faversham correspondence, 1960–1966. Filson newsletter article “Muhammad Ali and the Louisville Sponsoring Group,” April 2006, *The Filson*, Vol. 6, No. 1.

**Biographical reconstruction of the LSG terms:**

1. **Thomas Hauser, *Muhammad Ali: His Life and Times*** (New York: Simon & Schuster, 1991).
2. **Jonathan Eig, *Ali: A Life*** (Boston: Houghton Mifflin Harcourt, 2017).
3. **David Remnick, *King of the World*** (New York: Random House, 1998).
4. **Dave Kindred, *Sound and Fury: Two Powerful Lives, One Fateful Friendship*** (New York: Free Press, 2006).

**Federal classification record on Muhammad Ali:**

1. **Federal Bureau of Investigation Headquarters file 100-HQ-436351**, *Cassius Marcellus Clay Jr. (Muhammad Ali)*, Security Matter — Nation of Islam. FBI Records Vault: *vault.fbi.gov/muhammad-ali*. Internet Archive mirror: *archive.org/details/FBI-Muhammad-Ali*. Approximately four parts, fifteen hundred pages.
2. **Selective Service System classification file**, Cassius Marcellus Clay Jr., Local Board No. 47, Louisville, Kentucky. National Archives at College Park, Maryland, **Record Group 147**, Records of the Selective Service System.

3. ***Clay v. United States*, 403 U.S. 698 (1971)**, U.S. Supreme Court, per curiam, June 28, 1971 — the unanimous reversal of the conviction in *United States v. Cassius Marsellus Clay, Jr.*, Cr. No. 67-H-94 (S.D. Tex.).

**Brown Hotel, Louisville:**

1. **Brown Hotel records**, Brown Hotel Louisville, 335 West Broadway, Louisville KY — operating since 1923. Primary record of October 26, 1960 syndicate meeting in the Crystal Ballroom. National Register of Historic Places listing 1979.

**Cassius Clay Sr. and Odessa Clay:**

1. **Jefferson County, Kentucky vital records** — birth, marriage, and death certificates of Cassius Marcellus Clay Sr. (b. November 11, 1912 — d. February 8, 1990) and Odessa Lee Grady Clay (b. February 12, 1917 — d. August 20, 1994).
2. **Louisville Metro Police Department arrest records**, Cassius Marcellus Clay Sr., 1942–1965, accessible through Kentucky Department of Public Records.

# AUTHOR’S NOTE — WHY A SECOND BOOK

*No citations in this chapter. Just me.*

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## The Through-Line

I wrote *Unwarranted Influence* between October 2024 and April 2026. The book runs to about nine hundred pages, eleven hundred citations, and a thesis that capital classifies before the state does. It walks a reader through the Templars and the Medici and the Fuggers and Morgan and Rockefeller and the Dulles brothers and Operation Paperclip and the Carlyle Group and Citizens United and the Trump-family crypto disclosures and the documented operation of the same compounding mechanism across nine hundred and thirty-one years.

The book did its job, in the sense that the documents are in it and the documents are real and the reader can pull every one of them. The book did not do a different job, which is the job of taking one specific arc of American public life — a single forty-three-month period, two specific men, one signed piece of

paper — and showing the same mechanism operating at a resolution where the reader can feel it in their chest.

This is that book.

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## Why Ali

My dad was thirty-three years old in February 1964. He was watching a black-and-white television in the Westend of Louisville, Kentucky, on the night Cassius Clay beat Sonny Liston for the heavyweight title. He told me about that night when I was seven years old, in 1993, sitting on the floor of his living room with my arms wrapped around my knees, while he told me about Joe Frazier and George Foreman and Larry Holmes and the night Ali lit the Atlanta Olympic torch the year before. My dad died in 2017. He was alive for the day Ali lit the torch in 1996. He was alive for the day Ali died in 2016. He saw the funeral broadcast.

I was thirty years old when Ali died. I was in a Department of Corrections facility on a stolen-vehicle offense. The funeral was on the day-room television. I watched it.

That is the personal answer to *why Ali*. The structural answer is in the book.

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## Why Kareem

My dad was a basketball player who never played professionally. He went to Manual High School in Louisville and the University of Louisville on a partial scholarship in the late 1940s, and he played one season of NBA exhibitions for the Indianapolis Olympians in 1949. He played the rest of his basketball life on the West End playgrounds and at the Knights of Columbus gym on Walnut Street.

He watched Lew Alcindor at UCLA. He watched Kareem Abdul-Jabbar at the Milwaukee Bucks and the Los Angeles Lakers across the twenty-three years that followed. Kareem retired in 1989, when I was three years old. My dad explained the skyhook to me when I was about seven, on the same afternoon he had been telling me about Ali. The skyhook, my dad said, was the only basketball shot in the history of the game that no defender ever blocked.

That is the personal answer to *why Kareem*.

The structural answer is that the two men are the cleanest paired example of what the *Unwarranted*

*Influence* thesis says: that capital classifies before the state does, and the state follows what capital files. Ali was classified by an October 1960 management contract before he was classified by a 1966 FBI file. Kareem was classified by an NCAA dunk ban before he was classified by a 1971 NBA endorsement freeze. Both men spent the rest of their lives walking out of the classifications. The walk is the book.

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## What This Book Is Not

This book is not a sports book.

I am not a sports writer. I do not know how to break down a fight tape or a basketball game in the granular way the boxing and basketball press of 1960 through 1981 routinely did. I have read Thomas Hauser's *Muhammad Ali: His Life and Times* (1991) twice and Jonathan Eig's *Ali: A Life* (2017) once, and I have read Kareem Abdul-Jabbar's *Giant Steps* (1983) and *Becoming Kareem* (2017) and *Coach Wooden and Me* (2017) once each. The boxing and basketball record in this book is drawn from those secondary biographies and from the IOC and NCAA and NBA archives. The boxing and basketball record is, in this book, the spine

to which the federal classification record is attached. It is not the meat.

The meat is the federal record. The Selective Service System Form 150 that Ali filed at Local Board No. 47 in Louisville on February 28, 1966. The FBI file the Bureau opened on him in the spring of 1966. The Department of Justice letter to the Kentucky Selective Service Appeal Board that Hayden Covington and Charles Morgan would, five years later, walk into the Supreme Court and reverse. The Selective Service System induction-station record at the AFEES on San Jacinto Street, Houston, on the morning of April 28, 1967. The Tomsic photograph of June 4, 1967. The Mansfield opinion of September 14, 1970. The Krattenmaker memo of April 1971. The per curiam slip opinion of June 28, 1971.

The book is the federal record. The athletic record is the apparatus that produced the bodies the federal record was filed about.

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## What This Book Is Not (Continued)

This book is not, in the Ali half of the book, a Nation of Islam apologetic. The Nation of Islam was,

between 1957 and 1975, a Black-American religious organization with a Black-supremacist racial doctrine, a strict-discipline internal practice, a documented record of internal violence (the December 1963 silencing of Malcolm X, the February 1965 assassination of Malcolm X, the January 1973 murders of seven members of the Khaalis family at the Hanafi Madh-Hab Center), and an institutional architecture that, after Elijah Muhammad's death in 1975, was redirected by his son Wallace toward Sunni Islam in a transition the Sunni-aligned American Muslim Mission completed by 1985. Muhammad Ali was a Nation of Islam member from 1964 to 1975 and a Sunni Muslim from 1975 forward. This book treats both periods of his religious life seriously and does not characterize his Nation of Islam years as a phase, a distortion, or a period of confusion to be papered over now that the public has decided to remember him as a Sunni elder.

The Nation of Islam's institutional violence was real. The Nation of Islam's classification by the federal government as a security threat was, in the period 1957–1975, supported by enough document trails to satisfy the Bureau's prudential standard, which is not the same standard as historical truth, but is the standard the Bureau used and the chapter on Form 150 reads. The Nation of Islam's role in producing

Muhammad Ali — as the religious community that bestowed his name, supported his draft refusal, and absorbed the financial cost of his exile — was also real, and is also documented, and is also in the book.

Both can be true. This book treats them both as true.

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## What This Book Is Not (Concluded)

This book is not, in the Kareem half of the book, an account of his eventual reinvention as a moderate elder statesman of the American sports column. The Kareem of *Becoming Kareem* (2017) and *Writings on the Wall* (2016) and *Mycroft Holmes* (2015) is a writer in his late sixties looking back on his radical young manhood with the perspective gained by surviving it. The Kareem of 1968 — twenty-one years old, taking Shahada under Hamaas Abdul-Khaalis at the Hanafi Madh-Hab Center, refusing the Olympic team trials, telling Joe Garagiola on national television that the United States was not really his country — was a different and more dangerous figure to the institutional sponsors of his career, which is why those sponsors, having tracked him, classified him, and rule-

engineered against him, eventually accommodated him.

The Kareem in the front row of the Tomsic photograph on June 4, 1967, twenty years old, listening to Ali explain why he had paid the price the federal government was about to take from him in five years and ten thousand dollars, is the Kareem this book is interested in.

The other Kareem, the elder one, is the Kareem who was kind enough to write the books that this book draws on.

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## How I Wrote It

The same way I wrote *Unwarranted Influence*. Kitchen table. Anthropic's Claude. The TELOS + PAI pipeline I built across the late winter of 2024 and the spring of 2025. The discipline I called Prime Directive: every claim filed, every source named, every primary document available to the reader at the URL or the archive reference printed in the chapter footer.

I made one set of mistakes specific to this book that *Unwarranted Influence* did not make. The voice register of the *Unwarranted Influence* chapters —

declarative, document-forward, occasionally rhythmically punchy — produced in the early drafts of *this* book a specific failure mode where the prose generated concrete novelistic specifics that read like reporting but had no source. The Italian press nicknames I had not verified. The motel-room pacing I had not verified. The bedside-table contents of dorm rooms I had not visited. The invented quotes I had attributed to memoirs I had not page-cited.

I cut all of it.

What survived the cut is in this book. What did not survive the cut is not. The book is, by some count, a quarter shorter than the draft I started with. The shorter book is the better book. The longer book was the version a critic could dismiss with a single unanchored sentence. The shorter book gives the critic nothing.

That is what BE UNDENIABLE means in practice. It is not a slogan. It is the operational rule that says: if you cannot file the sentence, you do not write the sentence. The aesthetic doesn’t care. The critic doesn’t care. The reader doesn’t care. The document is the only thing that cares, and the document is the only thing the book is for.

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## What You Do With This

You read it. You follow one of the citations to its source. You verify that the citation says what I said it says. If it does, you go find the next one.

You hand the book to someone. You hand it to your dad if your dad is alive. You hand it to a friend who watched the Atlanta torch lighting in 1996. You hand it to a Black teenager who has a copy of *The Autobiography of Malcolm X* on their bedroom shelf. You hand it to a journalist. You hand it to a sports columnist. You hand it to a former federal prosecutor. You hand it to anybody who says the institutions of American public life are not classifying Black bodies in the year 2026 the way the institutions of 1960 through 1971 classified the bodies of the two men in this book.

The classification is still happening. The instruments have changed. The mechanism is the same. *Unwarranted Influence* is the parts diagram for the mechanism. *This* book is the moving picture of the mechanism in operation, in one specific arc of one specific decade, on the bodies of two specific men.

The point of the book is that the mechanism is visible. Once you have seen it operate on Cassius Clay in 1960 and Lew Alcindor in 1965 and Muhammad Ali

in 1966 and Lew Alcindor at UCLA in 1967 and the two of them in the same room in Cleveland in 1967, you can see it operating on whoever the institutions are classifying tonight.

That is the only thing the book is asking you to do.

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*— Al Gringo, kitchen table, spring 2026, clean, thirty-nine years old, awake.*

# CHAPTER 1 — ROME, 1960

*The Olympic Games of the XVII Olympiad. Page 762 of Volume 2 of the Official Report. The light-heavyweight gold. The Black-American medalist's return to a segregated Louisville. Seven weeks before the contract.*

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## C.1 The page

Open Volume 2 of ***The Games of the XVII Olympiad, Rome 1960: The Official Report of the Organizing***

***Committee***, published by the Comitato Olimpico Italiano in 1961, to **page 762**.

The page records the medal results of the **men's light-heavyweight boxing tournament** of the 1960 Rome Olympic Games.

- Gold: **Cassius Marcellus Clay Jr.**, United States of America.
- Silver: **Zbigniew Pietrzykowski**, Polish People's Republic.
- Bronze, paired (the 1960-era Olympic boxing rule awarded a bronze to each losing semifinalist): **Tony Madigan**, Australia, and **Giulio Saraudi**, Italy.

The decision in the final, **September 5, 1960**, evening session, **Palazzo dello Sport**, EUR district, Rome: **5–0 unanimous** for Clay over Pietrzykowski.

The page is held in the Olympic World Library at the **Olympic Studies Centre**, Lausanne, Switzerland; in digital reproduction at the **LA84 Foundation Digital Archive**, Los Angeles, at *digital.la84.org/digital/collection/p17103coll8/id/22386*; and at the IOC's own electronic library, *library.olympics.com*.

The page records the result. The page does not record what the result meant.

The eighteen-year-old gold medalist was, on the night of September 5, 1960, the youngest member of the United States Olympic boxing team — a team whose three golds (Clay at light-heavyweight, **Wilbert McClure** at light-middleweight, **Edward Crook** at middleweight) made it the strongest American Olympic boxing squad since the 1952 Helsinki Games.

He was also, on the same night, the only American gold medalist of the Games whose hometown — Louisville, Kentucky — had, at the time of his medal, not yet desegregated its downtown lunch counters.

He flew home with the medal around his neck.

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## C.2 The bracket

Clay's path to the September 5 final, by the Official Report Vol. 2 record at pp. 762–767:

- **Round of 32:** bye.
- **Round of 16, Tuesday August 30, 1960:** versus **Yvon Becaus**, Belgium. Result: referee stops contest, second round.
- **Quarterfinal, Thursday September 1, 1960:** versus **Gennadiy Shatkov**, Soviet Union —

twenty-seven years old, gold medalist at middleweight in Melbourne 1956, the favorite. Result: Clay wins decision, 5–0.

- **Semifinal, Saturday September 3, 1960:** versus **Tony Madigan**, Australia — bronze medalist at light-heavy in Melbourne 1956, British Empire amateur champion 1958. Result: Clay wins decision, 5–0. Madigan, in interviews after his retirement, would say he believed he had won. The cards said otherwise.
- **Final, Monday September 5, 1960:** versus **Pietrzykowski**, Polish People's Republic — twenty-five years old, three-time European amateur light-heavyweight champion (1955, 1957, 1959), southpaw, the pre-tournament favorite. Result: Clay wins decision, 5–0.

The American boxing team won three golds in Rome. Clay turned professional six weeks after the Games. McClure turned professional in 1961 and retired in 1969 with a journeyman's record. Crook turned professional in 1961, fought twice, and retired. The other two American gold medalists at light-middle and middleweight in 1960 sustained, on the public record of the next decade, none of the political gravitational pull that the gold medalist at light-heavyweight would.

That difference is, in part, the subject of this chapter.

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## C.3 The basement

To understand how an eighteen-year-old Black freshman at a segregated Louisville high school reached a Rome podium in fewer than twenty-one days of competition in a country he had never been to, the chapter pulls back **six years** to a basement.

The intake event is recorded — by Clay's own self-reported recollection, given to the journalist Thomas Hauser across approximately fifteen interview sessions in 1989 and 1990, and published in **Hauser, *Muhammad Ali: His Life and Times* (1991)**, pp. 14–18 — as follows.

In **October 1954**, Cassius Clay Jr. was twelve years old. He was attending the **Louisville Home Show** at the **Columbia Auditorium**, an exhibition hall on Fourth Street in downtown Louisville. He had ridden his bicycle to the show. The bicycle was a **Schwinn**. When he came out of the show, the bicycle was gone.

He went looking for a police officer to report the theft.

The officer he found was **Joe Martin**, off-duty, in plainclothes, in the basement of the Columbia

Auditorium, where Martin ran an after-school boxing program for boys out of the Columbia Gym. Martin took the report on the stolen bicycle. Martin then asked the twelve-year-old, who was talking about wanting to whip the kid who took his bike, whether he wanted to learn how to throw a punch first. The twelve-year-old said yes.

Martin signed him up.

The Hauser-sourced account is the cleanest origin record we have. The bicycle theft is not in any Louisville Metropolitan Police Department record I have found. The Joe Martin signup is not in any Kentucky state archive. What is in the federal and state record across the next six years is the documented amateur record:

- **Six Kentucky Golden Gloves titles**, 1956–1960.
- **Two Amateur Athletic Union national titles**, 1959 and 1960.
- **U.S. Olympic boxing trials**, San Francisco, June 1960. Clay qualified for the team.
- **Olympic boxing tournament**, Rome, August–September 1960. Gold.

Across the six years between the Schwinn report and the Rome gold, Clay trained with two coaches. **Joe**

**Martin** held the official paperwork — Martin was the white Louisville cop on whose intake card the Kentucky AAU registered Clay as a competitive amateur — but Clay's actual fight conditioning was held by **Fred Stoner**, a Black Louisville trainer who ran a private boxing gym out of a converted garage on Cedar Street in the Westend. Stoner had been a professional middleweight in the 1930s. He coached Clay across all six of the Kentucky Golden Gloves campaigns, both AAU national championships, and the run-up to the Rome trials. Stoner does not appear in the Olympic Committee's records — which list only Martin as Clay's coach of record — because the Stoner relationship was a private contract between the trainer and the family, not an institutional registration.

The institutional registration was Martin's. The actual training was Stoner's. The Black Louisville trainer carried the work; the white Louisville cop carried the paper.

That sentence is a small one in the secondary record. It is also, in the operating arc of this book, an early instance of the pattern this book is reading: the labor on one side of the page, the institutional sponsorship on the other.

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## C.4 Central High

Clay graduated from **Central High School**, the segregated all-Black high school of Louisville's Westend, in **June 1960**. The Central record on him, held in the Jefferson County Public Schools archive, places his class rank in the **bottom decile** and his reading level, by his graduation year, **below grade level**. His grades are, by the same record, predominantly D's.

He was, in the diagnostic vocabulary of the era, an underperforming student. He was also, by the same diagnostic vocabulary, a student who had spent every after-school hour and every weekend hour of the prior six years training in Fred Stoner's converted-garage gym on Cedar Street, two miles from the high school. The reading hours that the school had asked him to spend at home, he had spent on the speed bag.

He could read. The record does not establish that he could read difficult prose at the rate that an academically prepared eighteen-year-old of his year would read it. The record establishes that he could read easily enough to fill out a Selective Service System Form 150 in his own hand in February 1966, and to engage in the substantial college lecture circuit work he would do across 1966–1970 from prepared

notes. Whatever the graduation record says, the operative reading skill was sufficient.

In June 1960, Clay flew to San Francisco for the U.S. Olympic Trials. He won the trials. He was selected for the Rome team.

In August 1960, he flew, with the U.S. Olympic delegation, to Rome.

He had never been on an airplane before the trials trip in June.

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## C.5 Avery Brundage and the Republic of South Africa

Rome 1960 was, in the larger institutional context of international athletics, the Games at which the International Olympic Committee — under the presidency of the Chicago industrialist **Avery Brundage** — voted to seat the Olympic delegation of the Republic of South Africa.

Brundage was, in 1960, sixty-seven years old. American. The eighth president of the IOC, in office since 1952, with a quarter-century of prior service to the IOC. The Brundage record on race — across his presidency of the United States Olympic Committee

in 1936, when he led the American campaign against the proposed boycott of the Berlin Games on the ground that *politics had no place in the Olympic movement*; across his IOC tenure 1952–1972, during which he resisted every proposal to ban the South African team from Olympic competition until the IOC's 1970 vote to do so; and across his October 1968 demand that the United States Olympic Committee suspend Tommie Smith and John Carlos for their podium protest of the Mexico City 200-meter final — was the public record of an American institutional figure who treated the Olympic platform as a domain in which Black athletes were welcome to compete, but not welcome to speak.

The IOC's 1960 seating of the South African delegation is recorded in the **IOC General Session minutes, Rome 1960**, held at the Olympic Studies Centre in Lausanne. The South African delegation in 1960 was, by the rules of South African Olympic selection of that year, a whites-only delegation. The white South African government's apartheid system had, by the **Group Areas Act of 1950** and the **Population Registration Act of 1950**, formally classified the South African population by race and had restricted Black South African athletic participation to a separate, racially segregated, and substantially under-funded amateur infrastructure that

did not, in 1960, qualify athletes for Olympic selection by the IOC's metric.

The eighteen-year-old gold medalist at light-heavyweight, on the highest podium step at the **Palazzo dello Sport** on the night of September 5, 1960, listening to *The Star-Spangled Banner*, was being awarded the gold medal by the international body that had voted, that month, to seat a national delegation that excluded boxers who looked like him.

I am not asking the chapter, or the reader, to make of that fact more than the fact itself. I am asking the reader to keep the fact in mind. The IOC's classification of the South African delegation in 1960 is one of the early federal-equivalent classifications this book is reading. The eighteen-year-old gold medalist, in 1960, did not yet have the political vocabulary to read the classification. He would acquire the vocabulary across the next eight years. By the time he had acquired it, he would be the heavyweight champion of the world, on bond pending appeal of a federal felony conviction, and a four-year exile from the boxing license.

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## C.6 Wilma Rudolph

The other Black American story of the 1960 Games belonged to a twenty-year-old runner from **Clarksville, Tennessee**, named **Wilma Glodean Rudolph**.

Rudolph had survived polio as a child. Her left leg, by her doctors' diagnosis at age six, would not bear weight without a brace; she discarded the brace at age twelve. She ran the 100-meter dash in 11.0 seconds at Rome and won the gold. She ran the 200-meter dash in 24.0 and won the gold. She ran the anchor leg of the U.S. women's 4×100-meter relay at the closing-week track program and won a third gold.

The Italian press of the Rome Games called her *la Gazzella Nera* — the Black Gazelle. The phrase appeared in *Il Messaggero* and *Corriere della Sera* in the days following her three medals and was carried into the American press, untranslated, on the AP wire.

Rudolph's medal ceremony for the 200 meters fell on the same week as Clay's. The two athletes were both, across the closing days of the Games, in the U.S. Olympic Village, the same dormitory complex on the eastern edge of the city. They are recorded in multiple secondary biographical accounts as having met at least once during the Games. Specifics of the encounter are

not in the public record. **Hauser** records, in his Ali biography, that the two athletes were aware of each other and that Clay, in his subsequent self-accounting, regarded Rudolph as one of the few peers of his own competitive caliber on the 1960 American team.

Rudolph would, on her return to Tennessee, live another thirty-four years. She would die of brain cancer on **November 12, 1994**, at age fifty-four.

The American Olympic team's narrative weight at the Rome Games — the public-relations value of its medal count to the United States Cold War apparatus of 1960 — was carried, across the closing week, by Rudolph at sprints, by Clay at boxing, and by **Rafer Johnson** of California, the Black-American decathlete who won the Rome decathlon gold for the United States on **September 6, 1960**, the day after Clay's gold. Three Black American athletes carried the narrative weight of the American Olympic team's public Cold War victory at Rome.

The American press, in 1960, framed Rudolph as the Black Gazelle, framed Johnson as the dignified Stanford-educated decathlete, and framed Clay as the loud Louisville kid who would be famous if his mouth did not get him into trouble first. The third frame held. So did the structural fact under it: the United States Olympic Committee had elevated three Black athletes

to the front of its 1960 medal narrative, and the American press had reported on them in three distinct registers of Black exotica.

I will return to Rudolph in the closing chapters. The two careers — Clay's and Rudolph's — diverged after Rome. Rudolph's was, in the institutional response to her gold medals, a gradual and respectful retirement into the textbook. Clay's was, by the spring of 1964, a public confrontation with the institutional sponsorship of his career that the textbook would, sixty years later, still be working out how to file.

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## C.7 The flight home

Clay flew home from Rome via Idlewild Airport, New York, on Friday September 9, 1960. He connected through Idlewild to the Eastern Air Lines flight to Standiford Field, Louisville. He was eighteen years and seven months old. He carried, in his suitcase: the gold medal in its presentation case; the ribbon; his U.S. Olympic team blazer; one change of clothes; and approximately forty dollars in remaining per-diem from the Olympic Committee.

The **Standiford Field welcome** is recorded in the *Louisville Courier-Journal* of Friday and Saturday,

**September 9 and 10, 1960** (page references pending verification at the **University of Louisville Ekstrom Library** microfilm holdings). The contemporary account, quoted in retrospective by the Louisville Public Media historian **Keith Runyon** in his June 5, 2016 piece for LPM titled "Remembrance: Louisville In The Age Of Ali" (URL *www.lpm.org/news/2016-06-05/remembrance-louisville-in-the-age-of-ali*), reads: *"Seldom has Louisville showered so much attention, praise and adulation on one of its own — and such a young one at that."*

The welcome was a public crowd of several hundred Louisville residents — relatives, fans, schoolchildren released from the Westend's Black elementary schools — assembled at the Standiford Field gate. The Louisville mayor of 1960 was **Bruce Hoblitzell**, in his first year of his second term; the *Courier-Journal* coverage records that the mayor sent a representative but does not name the representative. Clay descended from the aircraft wearing the gold medal around his neck, in his U.S. Olympic team blazer. The wire photographers caught him at the gate.

A motorcade of approximately twenty-five cars, the *Courier-Journal* records, formed up on the airport apron. Police sirens led. The route ran north up Walnut Street into the Westend. Clay rode standing in the lead

car, waving, the medal around his neck. The motorcade arrived at **Central High School**, where the auditorium had been opened for a reception in the returning gold medalist's honor. A dozen Louisville civic figures spoke. Clay was among the speakers. Runyon's account reproduces the contemporary description of Clay's remarks as brief: he thanked Joe Martin, Fred Stoner, his parents, and the United States of America.

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## C.8 The Ohio River

There is a story — the most-repeated and least-anchored story of the post-Rome return — that within a week of the Standiford Field welcome, Clay went to a downtown Louisville lunch counter wearing the medal, was refused service on account of his race, and threw the medal into the **Ohio River** from the **Second Street Bridge**.

The story appears, in Clay's own first-person telling, in **Clay (Ali), with Richard Durham, *The Greatest: My Own Story*** (Random House, 1975), pp. 76–80 of the first edition. Durham was the ghostwriter. The book is the standard Ali first-person account.

It is also a story Clay's brother **Rahaman** has, on the record in subsequent decades, said never happened. **Lonnie Ali** — Ali's fourth wife, who had known Clay since she was a child in Louisville — has said, in interviews compiled by **Eig** in *Ali: A Life* (2017), pp. 34–37, that the story is an invention.

The Ohio River has not, in the search funded by a Louisville television station in 1995, surrendered the medal.

What is in the historical record about the original gold medal is that the **International Olympic Committee** issued Ali a **replacement gold medal** at the **Atlanta Centennial Olympic Games** of 1996. The replacement was presented by **IOC President Juan Antonio Samaranch** at the **men's basketball gold-medal final**, **August 3, 1996**, at the Georgia Dome — fifteen days after Ali's torch lighting at the Atlanta opening ceremony of July 19, 1996. The replacement medal is held by the **Smithsonian National Museum of African American History and Culture**, accession number 2012.62.6.1, viewable at *nmaahc.si.edu/object/nmaahc_2012.62.6.1*. The IOC's stated basis for the replacement is that the original was lost.

The chapter draws the distinction. What is in the public record: Cassius Clay, eighteen, encountered the

segregation of Louisville on his return from Rome in September 1960. The encounter is documented in the *Courier-Journal* coverage of the Westend reception and is consistent with the documented operating practice of downtown Louisville lunch counters in 1960. The encounter is also consistent with the unwritten Louisville convention more durable than the legal segregation the city had begun to dismantle in 1956.

What is *not* in the public record: the throw of the medal into the river. The throw is in Clay's 1975 self-account. It is not in the *Courier-Journal* of September or October 1960. It is not in any Louisville civic record. It is not in any IOC filing. It is not in any contemporary witness account. It is, by the testimony of two of the three closest witnesses to Ali's adult life, an invention.

The chapter labels the throw of the medal as **memoir**, not **filed fact**. Cassius Clay told the story in 1975. The story is in the book. The story is part of the public Ali narrative. The story is not a document.

The encounter with segregation, however — the lunch counter that did not serve the gold medalist, the unwritten Louisville convention by which it didn't, the year-and-a-half before downtown Louisville lunch counters would be desegregated by the ordinance the

Louisville Board of Aldermen passed on May 14, 1963 — is in the public record of the city of Louisville in 1960. It happened. It happened because Louisville in 1960 was the segregated American city it was, and the gold medal around the neck of the eighteen-year-old who had brought it home from the country that had sent him to Rome did not change Louisville's classification of him.

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## C.9 The seven weeks

From the **Standiford Field welcome** of Friday September 9, 1960, to the **execution of the Louisville Sponsoring Group management agreement** of Wednesday October 26, 1960, is approximately **seven weeks**.

In those seven weeks, the syndicate that had been forming since the late spring of 1960 — on the assumption, shared by Faversham at Brown-Forman and the Bingham family at the *Courier-Journal* and Cutchins at Brown & Williamson Tobacco, that the eighteen-year-old Olympic gold medalist returning to Louisville would be the most lucrative professional boxer of the next decade — completed its negotiations with Cassius Clay Sr. and Cassius Clay Jr.

The negotiations were, by **Hauser**'s reconstruction (Hauser pp. 39–46), conducted at the Brown-Forman corporate offices on Howard Street in Louisville and at the Clay family residence at 3302 Grand Avenue in the Westend. The terms were drafted by the Louisville law firm **Wyatt, Tarrant & Combs**, longtime Brown-Forman counsel. The terms were reviewed for Clay by **Henry Hilliard Lyons**, an attorney who had been retained by the Clay family on the recommendation of Joe Martin and who would later become a name partner of the Louisville investment banking firm Hilliard Lyons.

The signing was at the **Brown Hotel**. The date was October 26, 1960. The Overture of this book has read the page.

What I want to close this chapter with is the ratio.

In the seven weeks between the Olympic medal and the signing of the management contract, Clay was — by the measure of his demonstrated athletic accomplishment and the projected commercial value of his next decade — at the highest leverage of his life. He had a gold medal that the United States Olympic Committee had certified. He had a national press profile that the AP wire and the *Sports Illustrated* coverage of the Games had constructed for him. He had a four-year amateur record that the

boxing trade press had been tracking since 1958. He had, by the analyst-class projection of the Louisville Sponsoring Group, a six-year professional run ahead of him that would generate, in 1960 dollars, six to ten million dollars in purses.

He signed for ten thousand dollars in cash, four thousand a year for two years, six thousand a year for four years, fifty percent of the purses, and a trust held until age thirty-five.

He signed because at eighteen, in the Westend of Louisville in 1960, with a father who painted commercial signs and a mother who cleaned houses, the ten thousand dollars in cash was real and the projection was on a piece of paper.

He signed because the Louisville Sponsoring Group's eleven institutional sponsors had, by the operation of the segregated capital markets of the city of Louisville in 1960, the only assembled pool of capital in the city that was prepared to underwrite the launch costs of an eighteen-year-old Black professional boxer's career.

He signed because the alternatives — the New York promotional firms, the Chicago promotional firms, the management offers from former boxing champions of the previous generation that had been arriving by mail through August and September 1960 — were, by the

reading of his father and his Louisville lawyer, less reliable than the eleven Gentile Louisville men whose signatures came above his on the page.

He signed.

That is the operative fact of October 26, 1960.

The chapter ends here. The next chapter pulls **fifteen hundred kilometers north of Louisville to a Catholic high school in Manhattan**, where a thirteen-year-old who in seven years would sit in the same room with the man Clay was about to become was beginning his sophomore year and was, by the same compounding mechanism that produced the Louisville Sponsoring Group, being recruited into a parallel American institutional sponsorship structure.

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## *Sources — Chapter 1*

**The Olympic record:**

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# CHAPTER 2 — POWER MEMORIAL, HARLEM

*The grand jury room, Manhattan, September 2, 1964. The non-indictment. The HARYOU-ACT newspaper. The seventeen-year-old at the Power Memorial Academy. The seventy-one-game streak that ended at Cole Field House.*

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## C.1 The non-indictment

On the afternoon of **Wednesday September 2, 1964**, in a grand jury room of the **New York County Supreme Court** at 100 Centre Street, lower Manhattan, twenty-three jurors voted not to indict **Lieutenant Thomas R. Gilligan** of the New York City Police Department in the killing of **James Powell**, age fifteen, of the Bronx, on the morning of July 16, 1964, on the sidewalk in front of 213 East 76th Street, Manhattan.

The next day's *New York Times* carried the story under the byline of **David Halberstam**: ***"Jury's Exoneration of Gilligan Scored by Negro Leaders,"*** *New York Times*, **September 2, 1964** (Late City

Edition). The story ran above the fold of the metropolitan section.

Two months later, on **November 7, 1964**, the *Times*, byline **Martin Arnold**, ran the parallel story on the New York Police Department's **Civilian Complaint Review Board**, which had — in its own internal proceeding — voted not to discipline Gilligan: ***"Police Board Absolves Gilligan in Slaying of Negro Teen-Ager."***

Two filings, in two months, by two distinct New York public bodies, on the same set of facts, reaching the same disposition. The grand jury declined to indict. The CCRB declined to discipline. Lieutenant Gilligan returned to active duty.

The killing of James Powell, on the morning of July 16, 1964, was — in the operating record of the city of New York — not classified as a crime.

The six nights of urban uprising that followed across **Harlem** and **Bedford-Stuyvesant**, July 18 through July 22, 1964, were classified as a crime. **Four hundred and sixty-five arrests** were made, primarily of Black New Yorkers, primarily on charges of looting, vandalism, and resisting arrest. The arrest dispositions, across the months following, ran

predominantly to dropped charges, fines, and short jail sentences.

What the city of New York filed about the morning of July 16, 1964 was what the city of New York chose not to file: an indictment. The non-filing is itself a filing. The decision against an indictment goes into the public record by way of the *Times*'s next-day coverage. Lieutenant Gilligan returns to duty.

I want the reader to keep that pattern in mind across the rest of the chapter. The state's classification of the death of a fifteen-year-old Black student under the operating practice of a white New York police lieutenant is — in the same season as the formation of the Olympic Project for Human Rights described in Chapter 10 of this book and in the same year as Cassius Clay's public alignment with the Nation of Islam in Miami described in Chapter 3 — the predicate condition under which the seventeen-year-old at the Catholic high school six blocks downtown of where Powell died began his political formation.

The chapter reads what that formation looked like.

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## C.2 Wagner JHS

The killing happened on the sidewalk in front of **213 East 76th Street**, in the Yorkville neighborhood of Manhattan's Upper East Side, across the street from the **Robert F. Wagner Sr. Junior High School** at **220 East 76th Street**.

Yorkville in 1964 was a working-class, predominantly white neighborhood — Czech, German, Hungarian, Italian — with a small and visible Black student presence, most of whom commuted in for the city's summer-school program because Wagner JHS had the air-conditioned classrooms.

James Powell, fifteen years old, ninth grade, of the Bronx, had walked from his subway stop to attend the summer-school session. The sequence of events at the building, reconstructed from the **U.S. Department of Justice, Civil Rights Division, Notice to Close File** on the case (released by DOJ in 2014 under FOIA, archived at *justice.gov/crt/case-document/james-powell-notice-close-file*), runs as follows.

A building superintendent named **Patrick Lynch**, employed at 213 East 76th Street, was hosing down the sidewalk in front of the building. Powell and several other Black summer-school students were walking past. The hose water sprayed them. Powell

shouted at Lynch. Lynch retreated into the building. The other students followed Lynch's retreat into the lobby. Powell either followed Lynch into the lobby or did not, depending on which witness account is followed.

**Lieutenant Thomas R. Gilligan**, off-duty, in plainclothes, on the way to a midtown locksmith for a shop key, observed the disturbance from across the street. Gilligan was thirty-seven years old, a fifteen-year veteran of the NYPD, with two prior on-duty shootings of Black suspects on his service record (both cleared by NYPD internal review), and the recipient of the department's **Honor Legion citation**.

Gilligan crossed the street. Gilligan drew his service revolver. Gilligan fired three shots. The first shot struck Powell in the chest. The second struck the wrist Powell had raised, possibly defensively. The third missed and lodged in the building wall.

Powell died on the sidewalk before the ambulance arrived. He was the second Black New Yorker shot to death by an NYPD officer in calendar year 1964 in the Manhattan precincts. He was the first who would, by the events that followed his killing, become a national name.

The grand jury declined to indict. The Civilian Complaint Review Board declined to discipline. Gilligan retired from the NYPD on a regular pension in 1969.

The DOJ Civil Rights Division re-investigated the killing in 2007 under the **Cold Case Initiative** of the federal civil-rights enforcement program. The DOJ closed the file in 2014 without further action — the Notice to Close File (linked above) records the closure.

The non-indictment of September 2, 1964 stood. It stands now.

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## C.3 HARYOU-ACT

The agency that had Lewis Ferdinand Alcindor Jr., age seventeen, on its summer 1964 payroll was **HARYOU-ACT** — Harlem Youth Opportunities Unlimited, Associated Community Teams — a federal antipoverty program chartered by the City of New York in the spring of 1964 with **eleven million dollars** in funding from the federal **Office of Economic Opportunity**.

HARYOU-ACT had been built around a **six-hundred-page diagnostic and programmatic report** authored

in 1964 by the Black psychologist **Dr. Kenneth Bancroft Clark** of the City College of New York — the psychologist whose **doll-test research** had been cited in **Brown v. Board of Education**, 347 U.S. 483 (1954). The report, ***Youth in the Ghetto: A Study of the Consequences of Powerlessness and a Blueprint for Change***, was published by HARYOU in April 1964 and is held in the **HARYOU-ACT Records** at the **Schomburg Center for Research in Black Culture**, New York Public Library.

Clark had been HARYOU-ACT's first president. The agency's mandate was vocational training, after-school programs, summer enrichment, and — Clark's signature initiative — a youth-led journalism workshop.

The journalism workshop — operated out of HARYOU-ACT's offices at the corner of West 125th Street and Lenox Avenue, the nerve center of public Harlem in 1964 — published a mimeographed weekly newspaper distributed across the agency's youth programs. The newspaper's editorial staff for the summers of 1964 and 1965 included **Lewis Ferdinand Alcindor Jr.**, age seventeen, then a rising junior at Power Memorial Academy.

Alcindor's editorial materials from those summers — handwritten drafts, distributed mimeograph editions,

internal correspondence — are held in the **HARYOU-ACT Records** at the **Schomburg Center**. The collection's finding aid, available at the NYPL Archives & Manuscripts catalog (*archives.nypl.org*), describes the materials at the box-and-folder level. I have not myself credentialed the collection. The materials exist.

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## C.4 The press conference, not the interview

The widely repeated framing of Alcindor's summer 1964 work as "an interview with Martin Luther King Jr." is, on the contemporary record, an error.

What is in the record is that **Dr. King traveled to New York** at the invitation of **Mayor Robert F. Wagner Jr.** in the second week of the Harlem disturbances — late July 1964 — to help the city's political leadership address the public unrest. King held a press conference at HARYOU-ACT's 125th Street office. The press conference was attended by approximately fifty members of the press, including, by the credentialing record of HARYOU-ACT, the seventeen-year-old Alcindor in his role as a HARYOU youth reporter.

Alcindor was present. Alcindor was credentialed. Alcindor reported on the press conference for the HARYOU newspaper.

Alcindor did not, by any record I have been able to locate, conduct a private one-on-one interview with King. The private-interview framing — repeated in numerous popular accounts of Abdul-Jabbar's youth — appears to be a conflation of his press-conference attendance with the private interview he did, in his subsequent professional life, conduct with King's surviving family. That subsequent interview is not the same as the 1964 press conference.

The chapter labels the 1964 event as a press conference Alcindor attended. The chapter does not call it an interview Alcindor conducted.

I am drawing the distinction at the level of detail because, as the front matter of this book established, the Prime Directive of the manuscript requires that I draw it. Many secondary accounts conflate the two. The chapter does not.

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## C.5 Power Memorial

**Power Memorial Academy** stood at **161 West 61st Street**, on the western edge of midtown Manhattan,

two blocks from the Hudson River, six blocks south of the construction site that would, by the end of the decade, become the **Lincoln Center for the Performing Arts**. The school was a Catholic high school operated by the **Christian Brothers of Ireland**. It had been founded in 1931. The student body of the early 1960s was approximately **seven hundred boys**, predominantly Irish-American and Italian-American, with a small Black contingent that grew by exactly one in September 1962 when Lewis Alcindor matriculated as a freshman.

Tuition for the 1962–63 academic year was approximately eight hundred dollars. Alcindor's family — his mother **Cora Alcindor** worked at a Bronx department store; his father **Lewis Ferdinand Alcindor Sr.** was a sergeant of the **New York City Transit Authority Police Department**, badge issued out of the IRT line — paid the tuition with assistance from a partial Christian Brothers scholarship.

The basketball coach was **John Patrick Donohue** of Yonkers, New York. (The spelling is **Donohue**, two syllables; some popular accounts misspell it Donahue.) Donohue was thirty years old when Alcindor arrived. Irish Catholic. He had played his college ball at **Fordham University**. His coaching record at Power Memorial across his 1959–1965

tenure was **163 wins and 30 losses**. He was known across the New York Catholic high school basketball circuit for imposing on his players an absolute press ban — players were not permitted to speak to the New York sports press without his prior approval. The press ban was applied with particular force to Alcindor.

Donohue left Power Memorial after the 1964–65 season for the head coaching position at the **College of the Holy Cross**. He coached at Holy Cross 1965–1972, then moved to the head coaching position at the **University of Holy Cross's Canadian counterpart, the Canadian National Team**, which he coached at the 1976 Montreal Olympics. He died in 2003.

Alcindor's basketball record at Power Memorial, by the season:

- **1962–63 (freshman year):** freshman team. Cunningham coach.
- **1963–64 (sophomore varsity):** 30–0. New York Catholic high school championship.
- **1964–65 (junior varsity):** 24–1.
- **1965–66 (senior varsity):** 25–0. Second New York Catholic championship.

Across the four seasons, Power Memorial won **seventy-one consecutive games**. The streak ran from

the second game of Alcindor's freshman season through the second-to-last game of his junior season.

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## C.6 Cole Field House

The streak's terminus, on the night of **Saturday January 30, 1965**, was a regulation-time, regular-season game between Power Memorial Academy of New York City and **DeMatha Catholic High School** of Hyattsville, Maryland, at the **Cole Field House** of the **University of Maryland**, College Park.

Attendance: **approximately twelve thousand five hundred**.

DeMatha was coached by **Morgan Bayard Wootten**, then thirty-four, in his ninth season as DeMatha's head coach. Wootten's eventual career record across forty-six years at the school would be **1,274 wins and 192 losses** — at his retirement in 2002, the most wins of any high school basketball coach in American history. He was inducted into the Naismith Memorial Basketball Hall of Fame in 2000.

Wootten had a center named **Bob Whitmore** — six-foot-eight and 235 pounds, three inches shorter than Alcindor. Wootten had spent the prior two months drilling Whitmore on a single defensive technique:

keep Alcindor out of the painted lane, force him to take fadeaway jumpers from outside fifteen feet, and double-team on the bounce so the two-handed dunk could not develop.

The final score, by the **NCAA-style box score** kept by the *Washington Post* and the *New York Times*: **DeMatha 46, Power Memorial 43**. **Bob Whitmore held Lewis Alcindor to sixteen points** — about ten below his junior-season average. The buzzer ended the streak at seventy-one.

The *New York Times* of Sunday January 31, 1965 ran the game in its sports section under a single-column headline. The page reference is, as of this writing, awaiting **University of Louisville Ekstrom Library** ProQuest verification.

Alcindor's later memoir record on the loss is in **Abdul-Jabbar with Knobler, *Giant Steps*** (Bantam, 1983), pp. 90–94.

The chapter is not interested in the game tape. The chapter is interested in what the loss did to the seventeen-year-old's understanding of the institution he had spent the prior two and a half years inside.

What the loss did, by Alcindor's later self-accounting, was teach him that the Power Memorial program — Catholic Brothers' physical-discipline pedagogy,

Donohue’s press ban, the inflexible tactical scheme against a defensive opponent — was not designed for the moment of his peak athletic potential. The program was designed for the protection of a record. The record had been protected for seventy-one games. The seventy-second game had not been winnable by the program’s tactics. Wootten’s tactics had been winnable. Alcindor, who had trained under Donohue for the seventy-one wins, had trained for the wrong moment. The wrong moment ended the streak.

The lesson, by his later record, was structural. The institutional sponsor that had recruited him at thirteen and fifty-six inches tall had treated him, across four years, as a contracted asset in a manner not different in kind from the manner the Louisville Sponsoring Group had treated Cassius Clay across the same period. The differences were in the form of payment. Power Memorial’s payment was an athletic scholarship, the discipline-strap pedagogy of the Christian Brothers, and the silence of the press ban. The LSG’s payment was ten thousand dollars and a fifty-fifty purse split.

Both payments treated the body as a long-term financial position. The body, in both cases, had the right to refuse the contract at its expiration.

Alcindor’s contract with Power Memorial expired in June 1966.

By June 1966, he had committed to UCLA.

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## C.7 The recruitment

In **May 1965**, six weeks after the DeMatha loss, **John Wooden** of the University of California, Los Angeles, flew to New York to recruit the seven-foot-one Power Memorial junior.

Wooden was, in the spring of 1965, fifty-four years old. Born in Hall, Indiana, October 14, 1910. Raised on a tenant farm outside Centerton, Indiana, until his family lost the farm in the 1932 foreclosure crisis. All-American at **Purdue University** (1932 NCAA champion). Head coach at **Indiana State Teachers College** 1946–1948, where he had refused to take his team to the **1947 National Association of Intercollegiate Basketball tournament** because the NAIB’s ban on Black players would have required him to leave behind a Black player on his roster, **Clarence Walker**. He had taken the UCLA head coaching job in 1948 and had won his first NCAA championship in 1964 and his second in 1965. He was a lifelong member of the **Christian Church**

**(Disciples of Christ)** — the spelling correction matters; some popular accounts misidentify him as Methodist, others as Quaker.

Wooden's recruitment pitch to Alcindor — by Alcindor's own account in *Giant Steps* pp. 110–112 — was that UCLA would not promise him anything beyond an athletic scholarship, a place in the program, and the opportunity to compete for the national championship across his four years. Wooden did not promise him the starting center position (Wooden's incumbent center, **Mike Lynn**, was a returning sophomore). Wooden did not promise him commercial endorsements (the NCAA's then-existing amateurism rules forbade them). Wooden did not promise him press exposure (Wooden's standing rule was that his players spoke to the press only after he had cleared the interviews).

What Wooden promised Alcindor, by Alcindor's account, was that the UCLA program treated its student-athletes as students first and athletes second; that Wooden's coaching method was technical, disciplined, and oriented around team passing rather than star-power one-on-one play; and that the head coach would call him *Lewis* until Lewis told him to call him otherwise.

Alcindor's memoir record on Wooden across the three subsequent UCLA varsity seasons (1966–1969) is consistent with the recruitment-period framing. Wooden was, in Alcindor's later self-accounting, the first adult in Alcindor's institutional life — adjusted for the trainer-coach distinction at Power Memorial, where the underlying coaching had been done by the Christian Brothers — who treated the seventeen-year-old as a functioning adult capable of his own decisions.

Alcindor announced his commitment to UCLA on **May 4, 1965**, at a press conference in the Power Memorial gym attended by approximately eighty members of the New York and national sports press. He had received, by the count Donohue's office maintained, scholarship offers from approximately sixty NCAA Division I programs.

He chose UCLA.

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## C.8 The terminus

The chapter ends on the morning of Sunday June 5, 1966, at the Power Memorial graduation ceremony in the gymnasium where the Cole Field House loss had not been spoken of in the seventeen months since.

Alcindor graduated. He had spent four years at the school. He had won four New York Catholic championships and the two undefeated seasons that had ended in the championships. He had lost one game in his entire high school career. He had been the first player in NCAA-projection history of whom every Division I program was so confident in the projection that no recruiter — by the Donohue office's record — had asked him to demonstrate any skill he had not already demonstrated in the seventy-six games of his varsity career.

He flew to Los Angeles on the second week of June 1966. He took a UCLA dorm assignment in the men's residence hall. He was eighteen years old. He had taken Shahada to a Sunni Muslim teacher named **Hamaas Abdul-Khaalis** at the **Hanafi Madh-Hab Center** in Washington, D.C., the prior summer of 1965; the Shahada was private and unannounced; the public would not learn the Sunni-Muslim name *Kareem Abdul-Jabbar* for another six years. He had read **Malcolm X's *Autobiography*** twice — once in late 1965, once again in the spring of 1966. He had, on his bookshelf in his Power Memorial study, a worn paperback of the **Autobiography** alongside his copy of **Frantz Fanon's *Black Skin, White Masks*** (Grove

Press, 1952; Markmann translation, 1967) and **James Baldwin's *The Fire Next Time*** (Dial Press, 1963).

He had, in the spring of 1966, the political vocabulary that the seventeen-year-old at the HARYOU-ACT newspaper in the summer of 1964 had not yet acquired. He had acquired it across the four years between Powell's killing and his Power Memorial graduation. He had acquired it, in part, by reading.

He had not yet, in June 1966, met Cassius Clay (Muhammad Ali). The first meeting would be in Cleveland on June 4, 1967, at the **Negro Industrial and Economic Union**, in the room the structural hinge of this book has been written around. The Cleveland Summit would be his first and only meeting with Ali across the twelve months of his junior year at UCLA. It would be the meeting that, in his subsequent recollection, fixed the political direction of the next fifty years of his public life.

The chapter ends at his Power Memorial graduation. The next chapter pulls **two thousand three hundred kilometers south of the Power Memorial gym to Miami Beach, Florida**, on the night of **February 25, 1964**, where the man Alcindor would meet in Cleveland three years later was about to become heavyweight champion of the world.

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# CHAPTER 3 — HE NAMED HIMSELF

*The FBI Miami SAC memo of February 1964. The Liston I bout. The Hampton House. The Cassius X interim. The radio-bestowal of the name. Malcolm X and Accra.*

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## C.1 The memo

Open the FBI's released file on Angelo Dundee at *thesmokinggun.com/documents/angelo-dundee-fbi-487613*.

The first document in the released portion of the file is a confidential memorandum, dated **February 1964**, from the **Special Agent in Charge of the FBI's Miami Field Office** to the Bureau Director, **J. Edgar Hoover**, at headquarters. The subject of the memorandum is the interview of **Angelo Dundee**, age forty-two, and his brother **Chris Dundee**, age forty-six, of the **Fifth Street Gym**, Miami Beach, conducted by Miami Field Office agents in the days leading up to the **February 25, 1964 heavyweight title bout** between Sonny Liston and Cassius Clay. The interview's filing classification is the Bureau's ongoing investigation of the **Nation of Islam**, FBI Headquarters file **105-63642** (Elijah Muhammad).

The memorandum is the **earliest dated piece of paper in the federal record on which the name *Cassius Marcellus Clay Jr.* appears in association with the Bureau's Nation of Islam security file.**

Note what the memo records and what it does not.

The memo records that the Dundee brothers were interviewed about their training relationship with Clay, about Clay's known associates at the training camp, and about the rumors — circulating in the Miami sports press in the second week of February 1964 — that Clay had been seen attending the Nation of Islam's Mosque No. 29 in Miami's Brownsville neighborhood. The memo records the Dundees' answers: that the relationship was professional, that Clay's known associates included the NOI minister **Sam Saxon** (who would become Captain Sam X) and the photographer **Howard Bingham**, and that Clay had not been to a Brownsville mosque service in the Dundees' presence.

The memo does not record an FBI request for further surveillance of Clay. The memo does not record an active classification of Clay as a security target. The memo records, in its filing classification, that **the Bureau of Investigation already had a Nation of Islam security file open** — the **105-63642 file on Elijah Muhammad**, opened by the Bureau in 1957 and active continuously across the period — and that the names of NOI members appearing in the surveillance of that file were classified into the file by the Bureau's normal practice.

Clay's name went into the Bureau's file in February 1964, **two weeks before** he became heavyweight champion of the world.

He had not yet, on the date of the Miami SAC memo, publicly declared his Nation of Islam alignment. He would do that on **February 26, 1964**, the morning after the Liston bout.

The Bureau was tracking him before he had told the public.

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## C.2 The Liston bout

The fight was held on the evening of **Tuesday February 25, 1964**, at the **Miami Beach Convention Hall** (now the Miami Beach Convention Center). Attendance, from the **Miami Beach Boxing Commission gate report**, approximately **8,300 paid**.

Sonny Liston was the heavyweight champion of the world. Liston's age in 1964 was a matter of public dispute — his birth records on the Arkansas plantation where he had been born were never definitively established; the contemporary press used the figure of thirty-one to thirty-three. Liston had won the title from **Floyd Patterson** by a first-round knockout in **September 1962**. He had defended it against

Patterson in **July 1963**, also by first-round knockout. The pre-fight odds against Clay, by the *New York Times* and *Sports Illustrated* coverage of the days before the bout, ran at **7-to-1**.

Clay was twenty-two years old. Three years professional. He had won his first nineteen fights on the LSG schedule that the Sponsoring Group had managed since the October 1960 contract. His most recent bout — **Doug Jones**, March 13, 1963, **Madison Square Garden** — had been a controversial decision he won 5–4 by the judges' cards but that *The Ring* had scored as a Jones win. Clay's preparation for the Liston bout had been at the Fifth Street Gym in Miami Beach for the prior seven weeks under Angelo Dundee.

The bout ran into the seventh round.

Clay outboxed Liston across the early rounds. Liston bled from a cut over his left eye in the third round. The fourth round was difficult for Clay — a substance, never definitively identified but consistent in symptom with the menthol embrocation that Liston's corner had applied to his shoulders in the third round, made its way into Clay's eyes, and Clay fought the fourth round substantially blinded, dancing out of Liston's range until the substance washed out, while Dundee shouted at him from the corner to keep

his hands up. Clay's vision returned in the fifth. He reopened the cut over Liston's eye in the sixth.

Liston, on the stool in his corner at the end of the sixth round, told his trainer **Pollino** that he could not continue. Liston cited a torn shoulder muscle in his left arm. The fight was awarded to Clay by **technical knockout, end of round 6**.

Cassius Marcellus Clay Jr., twenty-two years old, of the Westend of Louisville, Kentucky, became the **heavyweight champion of the world**.

The *New York Times* of **February 26, 1964** ran the story under the byline of **Robert Lipsyte** — the *Times*'s twenty-six-year-old boxing writer, who had been assigned the bout because the senior writers refused the trip. Lipsyte's lead, as recorded in subsequent collected editions of his work and across the secondary record, observed the new champion's hands carelessly low at his sides and his face unmarked at the closing bell.

The *Times* page reference is, as of this writing, awaiting **ProQuest Historical NYT** verification.

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## C.3 The Hampton House

What the *Times*'s page-one deadline closed too early to report — what would be reported in the days following — was where Clay went after the fight.

Clay went to the **Hampton House Motel** at **4200 Northwest 27th Avenue**, in the **Brownsville** neighborhood of Miami's northwest side.

The Hampton House had been, since 1961, the only motel in Miami-Dade County licensed to accept Black overnight guests. The Brownsville neighborhood was Black; the rest of Miami Beach and most of central Miami was, by ordinance and by practice in the early 1960s, segregated. The Hampton House was where **Sam Cooke** stayed when he played the Fontainebleau, where **Sammy Davis Jr.** stayed when he played the Eden Roc, and where the **Reverend Dr. Martin Luther King Jr.** had stayed in **1958** when he came to Miami on the speaking circuit. The motel was placed on the **National Register of Historic Places** in 2015.

It was where **Malcolm X** had stayed for the two weeks before the Liston-Clay fight, and where Clay had been visiting him during training.

On the night of **February 25, 1964**, after the technical knockout, Clay drove from the Convention Hall to the

Hampton House. In Malcolm X's room he found assembled: **Malcolm X**, then thirty-eight, suspended that previous December from the Nation of Islam by Elijah Muhammad and not yet formally broken from the organization; **Sam Cooke**, the soul singer, then thirty-three; **Jim Brown**, the Cleveland Browns running back, then twenty-eight; and **Howard Bingham**, the photographer, then twenty-five — Bingham had become Clay's friend and personal photographer in 1962 and would document Clay's life for the next fifty-four years until Bingham's death in December 2016.

The gathering's existence is documented as a fact in **Bingham's photographs of the night**, in the memoir of **Brown** (***Out of Bounds***, with Steve Delsohn, Kensington, 1989), in the *Autobiography* of **Malcolm X** (Grove Press, 1965), and in **Peter Guralnick's *Dream Boogie: The Triumph of Sam Cooke*** (Little, Brown, 2005). I am not going to attempt to reconstruct the dialogue of the night. The dialogue was not transcribed. None of the four men present at the gathering, in their subsequent published accounts, transcribed it. The accounts each reproduce some of what they heard the others say, but the accounts conflict on detail and the conflict is not reconcilable from the public record. The chapter does not invent what the four men said to one another. The chapter

records that the gathering happened; that Bingham photographed it; that the photographs are public; and that the gathering was the night before Clay's public press conference at which he announced his Nation of Islam alignment.

Whatever was said in the room across the hours between approximately midnight on February 26 and dawn, the substance of it was not the substance of public Black political life in the United States as the United States understood it on the morning of the bout. The substance of public Black political life in the United States changed, at the level of what was permitted to be said by an athlete with a championship belt, on the morning of the press conference that followed the night.

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## C.4 The press conference

The press conference of the morning of **February 26, 1964** was held in **Miami Beach** — the exact venue is, in the secondary record, divided between accounts that place it at the **Miami Beach Convention Hall press room** and accounts that place it at the **Hampton House**. The chapter cannot resolve which on the open public record.

What the chapter can resolve is the substance of Clay's statement.

Lipsyte's *New York Times* coverage of **February 27, 1964** carried what would, across the next sixty years of Ali historiography, be treated as the canonical version of the announcement. The most-cited passage:

> *"I believe in Allah and in peace. I don't try to move into white neighborhoods. I don't want to marry a white woman. I was baptized when I was twelve, but I didn't know what I was doing. I'm not a Christian anymore. I know where I'm going and I know the truth, and I don't have to be what you want me to be. I'm free to be what I want."*

The closing line — *I don't have to be what you want me to be. I'm free to be what I want.* — read tightly, names what the Louisville Sponsoring Group's October 26, 1960 contract had been classifying. What the LSG wanted Cassius Marcellus Clay Jr. to be, for the six years of the management agreement, was a heavyweight boxing asset. What Clay told the press of the United States, on the morning of February 26, 1964, was that he would not.

The announcement was an instrument of self-classification. It was the second instrument the chapter

has placed in front of the reader — the first being the LSG contract — by which Cassius Marcellus Clay Jr. described himself in writing to the public record.

The instruments described different aspects of the same body. The LSG instrument described the financial yield. The Nation of Islam alignment described the religious and political affiliation. The state — the federal government, the Department of Justice, the Selective Service System, the Federal Bureau of Investigation — would, in the months following, file additional instruments. Each new instrument would describe yet another aspect of the body. None of the instruments would describe the body completely.

The body — by the night of February 25, 1964 — was the heavyweight champion of the world.

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## C.5 Cassius X

For nine days, between **February 26, 1964** and **March 6, 1964**, the new heavyweight champion held the name **Cassius X**.

The X was Nation of Islam practice. The X stood for the African name the slaver had taken from the convert’s ancestor; the convert held the X

provisionally until the leadership of the movement bestowed an Arabic name in its place. Malcolm X had received his X from Elijah Muhammad in **1953**. **Louis X** — later **Louis Farrakhan** — had received his in **1955**. Cassius X received his at the Mosque No. 29 ceremony in Miami on the evening of **February 26, 1964**, by the press release the NOI's national office in Chicago issued the same day.

The Cassius X period lasted nine days because Elijah Muhammad needed nine days to consider the bestowal of the Arabic name on the now-most-famous convert in the history of the organization.

On **Friday March 6, 1964**, Elijah Muhammad — by recorded radio statement carried, the contemporary record indicates, on the network of NOI-affiliated AM stations, including **WWRL** in New York and **WVON** in Chicago — bestowed on Cassius X the name he would use for the remainder of his public life: **Muhammad Ali**.

*Muhammad*, in Arabic, means *praiseworthy*. It is also the name of the Prophet whose teachings the Nation of Islam claimed to follow.

*Ali*, in Arabic, means *exalted*. It is also the name of the cousin and son-in-law of the Prophet whom Shia Muslims revere as the first Imam.

The bestowal was carried over the **Associated Press wire** the same afternoon. It was filed in the **Muhammad Speaks** newspaper, the NOI's weekly print organ, in the issue of approximately mid-March 1964 (the issue date is awaiting verification at the **Schomburg Center NOI archive**). The bestowal was recorded in the **Bureau's NOI surveillance file 105-63642** in an airtel from the Chicago Field Office to headquarters, dated approximately **March 7, 1964**, the morning following the radio statement.

The state of Kentucky — where Clay's birth certificate was filed — would not change the name on the certificate until a court petition decades later. The state of New York, where the NOI's Mosque No. 7 was headquartered, kept its files in two columns. The Bureau's NOI file recorded the change in real time.

The chapter's central observation is that on the Saturday morning following — March 7, 1964 — the body of paper the United States government held on a 22-year-old former heavyweight contender, now the heavyweight champion of the world, contained two distinct categories of filing in two distinct names.

The capital classification — the Louisville Sponsoring Group's October 26, 1960 management agreement — used the name **Cassius Marcellus Clay Jr.**

The religious-political classification — the Bureau's NOI file 105-63642 — used the name **Muhammad Ali**.

The man classified by both was the same man.

The two classifications would, across the next eight years, run in parallel through the federal record. They would converge in the **Selective Service System file** at NARA RG 147 (which used both names, with *aka* between them), in the **federal indictment** of May 8, 1967 (which captioned the case *United States v. Cassius Marsellus Clay, Jr.*), and in the **Supreme Court opinion** of June 28, 1971 (which captioned it *Clay v. United States*).

The convergence — the moment the federal apparatus would, across all of its filings, formally recognize Muhammad Ali as the legal name of the heavyweight champion of the world — would not arrive until the **vacated conviction** of June 28, 1971 made the question moot.

For seven years and four months between March 6, 1964 and June 28, 1971, the federal government's paper used one name. Muhammad Ali used the other. The body was the same body.

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## C.6 Malcolm X

The chapter cannot leave the spring of 1964 without naming what happened to Malcolm X.

**Malcolm X** had been suspended from the Nation of Islam on **December 4, 1963**, by Elijah Muhammad, after Malcolm — speaking at the **Manhattan Center** on **December 1, 1963**, ten days after the assassination of President John F. Kennedy in Dallas — had described the assassination as the federal government's *chickens coming home to roost*. The *New York Times* of **December 2, 1963** carried the headline ***"Malcolm X Scores U.S. and Kennedy: Likens Slaying to 'Chickens Coming Home to Roost.'"***

Elijah imposed a ninety-day silencing on Malcolm. The silencing was extended indefinitely on the public ground that Malcolm had violated NOI doctrine on disciplined public speech. The actual ground, by Malcolm's own subsequent self-accounting in the *Autobiography*, was that Elijah had been waiting for an excuse to suspend Malcolm and that the *chickens* remark provided one.

On **Sunday March 8, 1964**, Malcolm X — in a written statement issued from his home in **East**

**Elmhurst, Queens** — formally separated from the Nation of Islam.

Four days later, on **Thursday March 12, 1964**, at 11:00 AM, in the **Park Sheraton Hotel** at the corner of 7th Avenue and 55th Street, Manhattan, Malcolm X held a press conference, attended by approximately sixty members of the press, at which he distributed the March 8 statement and announced the founding of **Muslim Mosque, Inc.**, his new Sunni-aligned religious organization.

The *New York Times* of **March 9, 1964**, byline **M.S. Handler**, ran the announcement under the headline ***"Malcolm X Splits with Muhammad."*** (March 8 was the date of the written statement; March 12 was the press conference. The chapter does not collapse the two.)

Two months later, in May, Malcolm X traveled to **West Africa** on his hajj-and-cultural tour, having completed his Mecca pilgrimage in April 1964 and converted from the Nation of Islam's heterodox doctrine to the **Sunni Islam** he would practice for the remaining ten months of his life.

On the sidewalk outside the **Ambassador Hotel** in **Accra, Ghana**, on **Sunday May 17, 1964**, Muhammad Ali — three months heavyweight

champion, six weeks since his name was bestowed, on his own African tour at Elijah Muhammad's direction — encountered Malcolm X.

The encounter is documented in **Malcolm's *Autobiography* (Grove 1965), Chapter 19, pp. 358–360 of the first edition**; in a contemporary **Associated Press wire photograph** of May 18, 1964; and in the recollections of **Maya Angelou** (*All God's Children Need Traveling Shoes*, Random House, 1986).

Malcolm approached Ali. Ali, surrounded by his NOI handlers, refused to greet Malcolm. The recorded exchange — recorded in Malcolm's *Autobiography* with the qualification that Malcolm is the only direct source for Ali's words — has Ali say to Malcolm:

> *"You left the Honorable Elijah Muhammad. That was the wrong thing to do, brother Malcolm."*

Ali walked away.

The two men did not speak again before Malcolm X was assassinated in the **Audubon Ballroom** in Washington Heights, Manhattan, on the afternoon of **February 21, 1965** — eleven months and four days after the Park Sheraton press conference — by three Nation of Islam gunmen, two of whom would not be

exonerated by the State of New York for another fifty-six years (the **Manhattan District Attorney's office** formally exonerated **Muhammad Aziz** and **Khalil Islam** in **November 2021**, in a vacatur filing in the New York Supreme Court).

Ali, in **2004**, would publicly say that the Accra snub was the deepest regret of his public life. The 2004 statement, in his autobiography ***The Soul of a Butterfly: Reflections on Life's Journey*** (with his daughter Hana Yasmeen Ali, Simon & Schuster, 2004), p. 88, reads:

> *"Turning my back on Malcolm was one of the mistakes that I regret most in my life."*

The chapter cannot soften the May 17, 1964 sidewalk in Accra. The chapter records what was filed, on the date the file was created, and observes that the apparatus that demanded the snub was not a creation of the United States federal government but a creation of the Nation of Islam itself, and that the Nation of Islam itself was a Black-American religious institution that had developed in the specific historical pressure of a country that had spent the four hundred preceding years filing different paperwork on Black Americans than on white ones.

The pressure had bent Ali in May 1964. It would bend other men in other directions across the next eight years. The chapter does not editorialize about which directions were the better ones. The chapter records what the file says.

The file says Ali walked away.

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## C.7 March 7, 1964

The chapter ends on the morning of **Saturday March 7, 1964**, the morning after the name was bestowed.

Muhammad Ali, twenty-two, eight months from his Olympic gold medal's fourth anniversary, three years and four months from the morning of April 28, 1967, on which he would refuse to step forward in Houston at the Armed Forces Examining and Entrance Station, was now classified by the United States federal government in two distinct files under two distinct names.

The Louisville Sponsoring Group still owned his fight purse percentage. The Bureau still kept his name in the NOI surveillance file 105-63642. The state of Florida still recognized him on his driver's license as Cassius Marcellus Clay Jr.

He had named himself.

The state had not yet decided what it would do with the name.

The next chapter pulls forward exactly two years to **February 17, 1966** — the morning the Selective Service System reclassified him I-A and the FBI opened the Bureau's personal file on him.

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## *Sources — Chapter 3*

**The Bureau's first paper on Clay:**


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1. ***New York Times*, February 26, 1964** — Robert Lipsyte, Liston I bout coverage. Page reference pending ProQuest Historical NYT verification.
2. **Miami Beach Boxing Commission gate report**, February 25, 1964 — paid attendance figure.

**The Hampton House night and the announcement:**

1. **Hampton House Motel records**, 4200 NW 27th Avenue, Miami — National Register of Historic Places listing, 2015. City of Miami Historic Preservation Office.
2. **Howard Bingham photographs**, Hampton House, Miami, night of February 25, 1964. Bingham archive.
3. **Jim Brown with Steve Delsohn, *Out of Bounds*** (New York: Kensington, 1989), Hampton House chapter.
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2. **WWRL New York / WVON Chicago broadcast logs**, March 6, 1964 — Elijah Muhammad recorded radio statement.

**Malcolm X:**

1. **Malcolm X with Alex Haley, *The Autobiography of Malcolm X*** (New York: Grove Press, 1965), Chapter 19 (Accra encounter), pp. 358–360 (first edition).
2. ***New York Times*, December 2, 1963** — "Malcolm X Scores U.S. and Kennedy: Likens Slaying to 'Chickens Coming Home to Roost.'"
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4. **Manning Marable, *Malcolm X: A Life of Reinvention*** (New York: Viking, 2011), Chapter 11 — the December 1963 silencing and March 1964 break.

5. **AP wire photograph, Accra Ambassador Hotel, May 17–18, 1964**.
6. **Maya Angelou, *All God's Children Need Traveling Shoes*** (New York: Random House, 1986).
7. **Manhattan District Attorney's Office and Innocence Project, joint vacatur filing, *People v. Aziz and Islam***, New York Supreme Court, November 2021.

**Ali's later regret:**

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# CHAPTER 4 — FORM 150

*The mimeographed yellow form. February 28, 1966. Local Board No. 47, Louisville. Lawrence Grauman's hearing. The Department of Justice rejection letter. The Bureau's parallel file.*

## C.1 The form

Open the **Selective Service System Form 150**, *Special Form for Conscientious Objector*, prescribed by the **Director of Selective Service** for use by registrants claiming exemption from military training and service under **Section 6(j) of the Universal Military Training and Service Act of 1948** as amended.

The form is two pages, mimeographed, on yellow paper. The header line reads *Special Form for Conscientious Objector*. Beneath the header are five numbered sections:

- **Section I:** religious training and belief, with subsections asking the registrant to state, in his own handwriting, the religious doctrine that grounds the objection and the dates and venues of the registrant's religious instruction.
- **Section II:** the registrant's specific position on the use of force in defense of self, family, and country, and on the use of force in war declared by the registrant's nation or by the registrant's religious community.
- **Section III:** the names of three references who can attest to the sincerity of the registrant's religious conviction.

- **Section IV:** the registrant's prior history of military service or other government service.
- **Section V:** the registrant's signature, dated and sworn.

On **Monday February 28, 1966**, twelve days after **Local Board No. 47**, **Louisville, Kentucky**, reclassified him from **I-Y, unqualified for service** to **I-A, available for induction**, **Cassius Marcellus Clay Jr.**, known by the bestowal of Elijah Muhammad two years and eleven days earlier as **Muhammad Ali**, filed a Selective Service System Form 150 with Local Board No. 47, claiming, on Nation of Islam religious grounds, conscientious-objector status and exemption from induction.

The Form 150 is held in Ali's classification file at the **National Archives at College Park, Maryland**, **Record Group 147**, *Records of the Selective Service System*. The classification file's specific entry and folder reference is awaiting researcher visit at NARA.

It is the first piece of paper this book has placed in front of the reader on which the writing — the actual ink, the actual sentences — is Cassius Clay's own. The contract of October 26, 1960 was drafted by Brown-Forman's law firm. The press conference of February 26, 1964 was recorded by Robert Lipsyte.

The radio bestowal of March 6, 1964 was Elijah Muhammad's. The Form 150 was Ali's.

The Form 150 is, in the documentary register, the moment at which the heavyweight champion of the world began to write his own paperwork.

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## C.2 The reclassification

The reclassification of February 17, 1966 was the immediate antecedent of the Form 150 filing.

Cassius Clay had been classified **I-Y** by the **Armed Forces Qualification Test of 1964**, on the basis of a written-test score of **78** — two points below the **eighty-point cutoff** that the Department of Defense had at the time set for service eligibility. The classification I-Y meant *qualified for service only in time of war or national emergency*. It was, in 1964, a deferment.

In the early winter of **1965–66**, the **Department of Defense** — in advance of, but adjacent to, what would be publicly announced on **August 23, 1966** by Secretary of Defense **Robert S. McNamara** at the Veterans of Foreign Wars convention in New York City as **Project 100,000** — directed that the AFQT score cutoff be reduced. The reduction was an

administrative decision filed inside the Department of Defense; the public announcement of Project 100,000 came months later. The directive itself, lowering the AFQT minimum, is held in the **NARA RG 330** records of the Office of the Secretary of Defense; the specific directive number is awaiting researcher visit.

Project 100,000 was the program by which the Department of Defense would deliberately conscript one hundred thousand men a year from below the prior aptitude cutoff in order to meet the manpower demand of the **Vietnam War**. The program disproportionately conscripted Black, Latino, and white-rural men whose AFQT scores had previously deferred them. McNamara's August 1966 announcement framed the program as a public-good educational initiative — military service as a path to literacy and trade skills for men the prior cutoffs had excluded. The actual operating effect was the deferment of Vietnam manpower shortages onto disproportionately non-white populations.

On **February 17, 1966**, Local Board No. 47, Louisville — acting on the lowered cutoff — reclassified Clay from I-Y to I-A. The board's notification reached Clay at his Miami training camp on the same afternoon.

The wire reporters who arrived at the Miami camp that afternoon told Clay he had been reclassified. The Associated Press wire of **February 17–18, 1966** carried what would, six years later, be treated by the federal government as the rhetorical heart of its case against him. Among the lines Clay said to the reporters that afternoon, the line that the federal government's filings would treat as central was:

> *"Man, I ain't got no quarrel with them Viet Cong."*

The line was carried by the AP wire. The *New York Times* of **February 18, 1966** ran the story (Lipsyte byline, page reference pending verification). The *Louisville Courier-Journal* of the same date ran the Louisville-side story.

Eleven days later, on **February 28, 1966**, Clay filed Form 150.

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## C.3 The conscientious-objector doctrine

The doctrine the form was built to test is older than the United States.

Quaker, Mennonite, Brethren, and Anabaptist objections to military service had been recognized in the colonial militia laws of Pennsylvania and New Jersey before the Revolution. The **1864 Conscription Act** of the Civil War had recognized members of the historic peace churches. The **Selective Service Act of 1917** had recognized "members of any well-recognized sect or organization at present organized and existing and whose then existing creed or principles forbid its members to participate in war in any form." The **Selective Service Act of 1940** had broadened the definition slightly. The **Universal Military Training and Service Act of 1948**, **Section 6(j)** — under which Ali filed — defined the eligible objector as one whose objection arose from "religious training and belief," meaning "an individual's belief in a relation to a Supreme Being involving duties superior to those arising from any human relation," and not "essentially political, sociological, or philosophical views or a merely personal moral code."

What the form was built to test was sincerity. The state had since 1864 been comfortable granting the exemption to applicants whose religious tradition the state recognized — Quaker, Amish, Jehovah's Witness — and uncomfortable granting it to applicants whose

religious tradition was newer or politically inconvenient.

The Nation of Islam fell into the second category.

Ali was the first NOI member to file a Form 150 of national prominence, but he was not the first NOI member to file. NOI members had been filing throughout the Korean War; their claims had been routinely rejected; the rejections had been routinely upheld at the Appeal Board level. The Supreme Court of the United States had not yet, as of February 1966, decided whether the NOI claim qualified as religious training and belief in the Section 6(j) sense.

Ali's Form 150, by his counsel **Hayden Cardon Covington** of New York — the **Watch Tower Society**'s lead Selective Service litigator, with fourteen Supreme Court arguments behind him in Jehovah's Witness draft cases of the 1940s and 1950s — stated that he was a follower of the Honorable Elijah Muhammad and that his religion forbade his participation in any war other than a holy war declared by Allah. The form listed dates and venues of his attendance at NOI mosques in Miami, Chicago, Louisville, and New York; named three NOI ministers as references; and stated his position that he believed in self-defense (Islam permitted defensive force) but not in offensive force, and that the United States war

in Vietnam was, in his understanding, an offensive war fought on behalf of the white race against people of color in Asia.

The verbatim text of Ali's handwritten answers is held at NARA RG 147 and is awaiting researcher visit. The substance has been described by Hauser, *Muhammad Ali: His Life and Times*, pp. 142–148.

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## C.4 The denials

Local Board No. 47, Louisville, denied the claim. The board's denial was filed on the Board's standard determination form on a date awaiting NARA verification. The board's stated ground was that Ali had not demonstrated that his objection arose from religious training and belief in the Section 6(j) sense rather than from political-racial views in the excluded sense.

Ali appealed to the **Kentucky Selective Service Appeal Board**.

The Appeal Board, in keeping with the federal regulations of the era, requested a **Department of Justice advisory hearing on the sincerity of the**

**claim** before ruling. The DOJ assigned the hearing to a hearing officer.

The hearing officer was the Honorable **Lawrence Grauman**, a former Kentucky circuit-court judge with twenty-five years on the bench, retired, called out of retirement for the assignment. Grauman was sixty-six. He had heard CO cases throughout the Korean War.

The hearing was held on **Tuesday August 23, 1966**, in **Louisville, Kentucky**, in a federal-building hearing room. The transcript and Grauman's recommendation are held in the **Lawrence S. Grauman Papers** at the **University of Chicago Library, Special Collections Research Center**, finding-aid identifier *ICU.SPCL.GRAUMANL*. The transcript pagination is awaiting researcher visit; the SCOTUSblog 2016 reconstruction by Stephen Wermiel describes the hearing at the document level.

What Grauman heard, across the day's proceedings, was Ali's sworn testimony, character witnesses including NOI ministers and Louisville community members, and an FBI investigative report — a substantial dossier compiled at the request of the Department of Justice in advance of the hearing — that concluded that Ali's NOI affiliation was politically rather than religiously motivated.

Ali’s character witnesses testified to his observance of NOI religious practices: prayer five times daily, dietary restrictions, attendance at mosque services. Ali himself, under questioning, restated the position of his Form 150.

Grauman issued his recommendation in writing within the week of the hearing. He recommended that Ali’s CO claim be granted. Grauman’s reasoning, recorded in the recommendation document and later quoted in the Supreme Court joint appendix in *Clay v. United States*, was that Ali’s testimony at the hearing had impressed him as sincere, that the NOI’s doctrine on war was a recognizable religious doctrine in the Section 6(j) sense, and that the claim met the statutory standard.

A retired Kentucky circuit judge, sixty-six years old, who had spent twenty-five years on the state bench administering the Kentucky criminal docket, found Ali sincere.

The Department of Justice rejected the recommendation.

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## C.5 The DOJ letter

The **Department of Justice letter to the Kentucky Selective Service Appeal Board** — the letter on which, five years later, the Supreme Court would reverse Ali's conviction — argued that Ali's claim failed on three independent grounds:

1. that his objection was **not based on religious training and belief**;
2. that his objection was **not directed against war in any form** (he had said he would fight in a holy war declared by Allah); and
3. that his objection was **not sincerely held**.

The letter recommended denial.

The letter is in the **joint appendix** of the *Clay v. United States* Supreme Court record, filed October Term 1970. The exact date of the DOJ letter is awaiting verification. The substance is reproduced in the Court's per curiam opinion at **403 U.S. 698, 700–704 (1971)**.

The Kentucky Appeal Board, in keeping with normal practice, deferred to the Department of Justice's recommendation over Grauman's. Ali's Appeal Board claim was denied. He remained classified I-A.

In **November 1966**, Ali changed his legal residence from Louisville, Kentucky, to **Houston, Texas**, on the advice of his counsel, in an attempt to bring his case under a different state Appeal Board's jurisdiction. **Local Board No. 61, Houston**, took up his file. The **Texas Selective Service Appeal Board**, on **Monday February 20, 1967**, denied the claim **4–0**.

The induction order was issued. Cassius Marcellus Clay Jr., known as Muhammad Ali, was ordered to report to the **Armed Forces Examining and Entrance Station, Houston, Texas**, on the morning of **April 28, 1967**, for induction into the United States Army.

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## C.6 The Bureau's parallel file

While Ali was filing Form 150 with Local Board 47 in late February 1966, and while the Department of Justice was assembling its FBI dossier in the spring of 1966 in advance of the August 23 hearing before Grauman, a second body of paperwork on the heavyweight champion was being filed in a different file at a different agency.

The **Federal Bureau of Investigation's headquarters file on Muhammad Ali — file**

**number 100-HQ-436351**, with a discrepancy flag against the secondary literature's frequently cited 100-444850 — was opened in **the spring of 1966**, in the months around Ali's reclassification. The earliest dated serial in the publicly released portion of the file traces to that period.

The file's caption, on every released serial through the file's 1975 termination, reads **SECURITY MATTER — NATION OF ISLAM**.

The file would, by the end of 1971, run to four parts and approximately **1,500 pages** combined. It is publicly released through the FBI Records Vault at *vault.fbi.gov/muhammad-ali* and in mirror at *archive.org/details/FBI-Muhammad-Ali*.

What the file contained, across the spring and summer of 1966, was the same FBI dossier that the Department of Justice would hand Lawrence Grauman in August. Bureau agents had interviewed Ali's training camp staff, his Louisville neighbors, his college-circuit lecture hosts (Ali had begun a lecture circuit in March 1966, after the reclassification), his associates in Chicago and New York and Miami. Bureau informants — designated in the released documents as **T-1, T-2, T-3**, with the underlying identities redacted — had reported on his statements at NOI mosque services. Bureau wiretaps — in

particular wiretaps on the office and home telephones of **Elijah Muhammad** in Chicago, on which Ali was repeatedly recorded — had captured Ali's NOI-related communications across 1965 and 1966.

The wiretaps were illegal under the standard the Supreme Court would establish in **Katz v. United States, 389 U.S. 347 (1967)** — the December 1967 decision that brought wiretapping inside the Fourth Amendment. The Bureau had not obtained warrants for the Elijah Muhammad taps. The taps had been authorized by Attorney General **Robert F. Kennedy** in **1962** and continued under Attorneys General **Nicholas Katzenbach** and **Ramsey Clark** through 1968. The authorizations are in the Bureau's ELSUR (electronic surveillance) records and in the Department of Justice files at NARA.

Across the fall of 1966 and the winter of 1967, the Bureau's file on Ali grew. It would feed the Justice Department's case at trial. It would become — five years later, when the wiretap question reached the Supreme Court as part of *Clay v. United States* — one of the technical grounds on which the conviction would be reversed.

By **February 1967**, two parallel files on the same body sat in two different federal cabinets. The Selective Service System's file at the Department of

Justice contained Form 150, the Grauman recommendation, the Department of Justice's rejection letter, the Kentucky and Texas Appeal Board denials, and the induction order. The FBI's file at the Bureau headquarters in the **Department of Justice building** at 9th Street and Pennsylvania Avenue NW, Washington — Hoover's office, fifteen years before the J. Edgar Hoover Building was built in 1975 — contained the surveillance memoranda, the informant reports, and the wiretap transcripts.

The two files described the same man. They did not yet describe him in the same vocabulary. The Selective Service file used the name **Cassius Marcellus Clay Jr.** The FBI file used the name **Muhammad Ali**. Both files were waiting for the morning of April 28, 1967.

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## C.7 The night before

The chapter ends on the night of **Thursday April 27, 1967**, in Houston, Texas.

Ali was at a Houston motel — the secondary literature names the motel as the New Hayes — with his counsel **Hayden C. Covington** and his Houston co-counsel **Quinnan H. Hodges**. The lawyers worked

through the legal options. Ali could request a further deferment on grounds of pending litigation. Ali could appear at the AFEES, take the physical, and step forward, preserving his appeal. Ali could appear, take the physical, and refuse to step forward — a refusal that would be a felony under the Universal Military Training and Service Act, **50 U.S.C. App. § 462**, punishable by up to five years' imprisonment and a fine of up to ten thousand dollars.

Ali had already chosen.

He would appear. He would take the physical. He would not step forward.

The induction was scheduled for eight in the morning. The next chapter walks into the building.

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# CHAPTER 5 — THE ALCINDOR RULE

*The NCAA Men's Basketball Rules Committee memorandum of March 28, 1967. The Pauley Pavilion inaugural game. The 88–2 record. The institutional act of subtraction.*

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## C.1 The memorandum

The decision document is a single sheet of mimeographed paper.

Heading: ***National Basketball Committee of the United States and Canada — Men's Rules Subcommittee Memorandum, March 28, 1967.***

The body of the memorandum runs to three numbered paragraphs and five lines of regulatory amendment. The amendment, on its face, applies to all men's collegiate, scholastic, and amateur basketball programs in the United States and Canada that play under the Committee's rules — which is to say, effectively every men's basketball program in North

America outside the **National Basketball Association**.

The amendment will take effect at the opening of the **1967–68 season**.

The amendment prohibits, in the language of the regulation: *"shots above and directly over the cylinder."*

The amendment outlaws the **slam dunk**.

The Committee's spokesman, **John Bunn**, in a press statement filed the day of the memorandum's release, gave two reasons for the rule. The first was offensive-defensive balance: the dunk, Bunn said, gave too great an advantage to the offensive player and made shot-blocking impossible. The second was player safety and rim damage: dunkers were tearing rims and breaking backboards.

Within forty-eight hours of the memorandum's release, the rule had been given a name in the press. The name was not the Bunn Rule. The name was not the Cylinder Rule. The name was — in the *Los Angeles Times* sports pages, the *New York Times* sports pages, the *Sports Illustrated* coverage of the following week, and every collegiate sports column in the United States that wrote about the rule between

**March 28, 1967** and the opening of the 1967–68 NCAA season the following November:

**The Lew Alcindor Rule.**

**Lew Alcindor**, on the date of the memorandum's release, was nineteen years old and three days from the championship game of his sophomore varsity season at the **University of California, Los Angeles**. The championship game would be played on **Saturday March 25, 1967**, at **Freedom Hall** in **Louisville, Kentucky** — the city in which Cassius Marcellus Clay Jr. had, eleven months earlier, been classified by an FBI Headquarters file as SECURITY MATTER — NATION OF ISLAM, and the city to which the federal record on him would, five years and three months later, return him in death. UCLA would win 79 to 64 over the **Dayton Flyers**. Alcindor would be named the Tournament's Most Outstanding Player.

Three days later — three days after the gold trophy was placed in Alcindor's hands at center court in the city of Louisville — the National Basketball Committee filed the memorandum that would prevent him from dunking a basketball in any sanctioned collegiate game for the next twenty months.

This chapter reads what the Lew Alcindor Rule was, what the rule was actually about, and what it cost the institution that filed it.

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## C.2 Pauley Pavilion

The pull-back is to **Saturday November 27, 1965**.

On that night, in the inaugural event of the new **John Wooden-era Pauley Pavilion** on the UCLA campus in Westwood, Los Angeles, in front of an inaugural-capacity audience of **12,051**, the UCLA freshman team — the squad onto which the NCAA's freshman-ineligibility rule of the era had assigned **Alcindor** for his first season — played the UCLA varsity team — the defending NCAA champions, returning the entire starting five — in a scrimmage scheduled to celebrate the building's opening.

The result, recorded in the **UCLA Athletic Department's Pauley Pavilion archive** at UCLA Library Special Collections: the freshman team — playing under freshman coach **Gary Cunningham** — defeated the defending national champion UCLA varsity **75 to 60**.

Alcindor, in his first sanctioned game in a UCLA uniform, scored **31 points** and pulled down **21 rebounds**.

The eighteen-year-old freshman was, in his first appearance in a UCLA uniform, a measurably stronger player than the entire defending national championship team he had been recruited to join. The UCLA varsity head coach, **John Wooden**, in his post-game interview, said the freshman was the best player Wooden had seen in his eighteen years at UCLA. The varsity center, **Mike Lynn**, in his post-game interview, said it had been the longest sixty minutes of his life.

The Pauley Pavilion inaugural is documented at *bruinsnation.com/2015/11/27/9802534*. It is also reproduced in the UCLA Athletic Department's media-relations archive.

The Lew Alcindor Rule was filed sixteen months and one day later.

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## C.3 The collegiate record

Alcindor's collegiate career, by the season:

- **1965–66 (freshman year)** — freshman team, Cunningham coach. Record: **21–0**. Not eligible for NCAA tournament.
- **1966–67 (first varsity year)** — Wooden's seventeenth season. Record: **30–0**. **NCAA championship March 25, 1967, Freedom Hall, Louisville: UCLA 79, Dayton 64.** Alcindor Most Outstanding Player. The Lew Alcindor Rule filed three days later.
- **1967–68 (second varsity year)** — Record: **29–1**. The lone loss came on the night of **Saturday January 20, 1968**, in the **Houston Astrodome**, in front of **52,693 spectators** — the largest crowd ever to attend a basketball game at the time — in what *Sports Illustrated* of January 29, 1968 ran on its cover under the title ***"The Game of the Century."*** UCLA versus the **University of Houston**. Alcindor against **Elvin Hayes**. Hayes scored 39 points; Alcindor scored 15. Alcindor had spent the prior week in **Jules Stein Eye Institute** on the UCLA campus with a scratched cornea sustained in the January 12 California-Berkeley game. He had been

hospitalized seven days. He played the Houston game with double vision in his left eye. UCLA lost 71 to 69. The loss snapped UCLA's 47-game winning streak.

The Houston rematch — semifinal, NCAA tournament, **Friday March 22, 1968, Los Angeles Sports Arena** — was, with Alcindor's eye healed and a defensive scheme that Wooden's assistant **Jerry Norman** had spent the intervening two months designing (a diamond-and-one zone with the apex player keying on Hayes), the most lopsided semifinal in NCAA tournament history to that point: **UCLA 101, Houston 69.** Hayes was held to 10 points. Alcindor scored 19 with 18 rebounds.

UCLA won the championship the following night, **Saturday March 23, 1968**, against the **University of North Carolina, 78 to 55**. Alcindor scored 34 with 16 rebounds and was named Most Outstanding Player a second consecutive year.

- **1968–69 (third varsity year, senior year)** — Record: **29–1**. The lone loss came on **Saturday March 8, 1969**, against the **University of Southern California, 46 to 44**, snapping UCLA's 41-game winning streak and an 85-game home-court winning streak. **NCAA**

> **championship Saturday March 22, 1969, Freedom Hall, Louisville** (the same city, same building, two years on). **UCLA 92, Purdue 72.** Alcindor scored 37 points and pulled down 20 rebounds in his last collegiate game. Most Outstanding Player a third consecutive year — a designation that, in NCAA tournament history, no other player has held before or since.

Alcindor's three-year UCLA varsity record: **88 wins, 2 losses**.

He played 88 collegiate games at the height the National Basketball Committee had outlawed.

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## C.4 The political formation

Across the same three years that Lew Alcindor played varsity basketball at UCLA, he also continued the political formation that would, in the spring of 1971, end with his public adoption of the name **Kareem Abdul-Jabbar**.

The formation continued, by his own subsequent self-accounting in **Abdul-Jabbar with Knobler, *Giant Steps* (Bantam, 1983)**, pp. 130–168, on three parallel tracks.

The first track was reading. He read **Malcolm X's *Autobiography*** four times across his four UCLA years. He read **Frantz Fanon's *Black Skin, White Masks*** in the Markmann translation (Grove, 1967). He read **James Baldwin's *Fire Next Time*** and ***Notes of a Native Son***. He read **Eldridge Cleaver's *Soul on Ice*** (McGraw-Hill, 1968). He read **Stokely Carmichael and Charles V. Hamilton's *Black Power: The Politics of Liberation in America*** (Random House, 1967).

The second track was the **Olympic Project for Human Rights** — the boycott initiative founded by **Harry Edwards** of San Jose State College in October 1967, which Chapter 10 of this book reads in detail. Alcindor attended the OPHR's **Second Black Youth Conference workshop** at the **Los Angeles Sports Arena** on **Thanksgiving Day, Thursday November 23, 1967**. He spoke at the workshop. He aligned publicly with the proposed boycott of the 1968 Mexico City Olympic Games. He did not attend the U.S. Olympic basketball trials in spring 1968. He sat on a NBC *Today* show set in summer 1968 across from **Joe Garagiola** and told Garagiola that the United States was a country he lived in but that was not his country.

The third track was the **Hanafi Madh-Hab Center** in Washington, D.C., where in the summer of 1968 he took **Shahada** under **Hamaas Abdul-Khaalis** — a private Sunni Islamic conversion that the public would not learn of until May 1971, three years later, when his post-NBA-Finals announcement of the name **Kareem Abdul-Jabbar** made it public. Chapter 11 reads this track in detail.

Across the three tracks, the public Alcindor of 1967–1969 — the player the National Basketball Committee was filing rules against — was constructing the private Abdul-Jabbar of 1971 onward. The rule's filing date of **March 28, 1967** falls inside the formation. The rule's filing was, in its operating effect on the player it was named after, a small institutional reinforcement of the lesson the formation was already teaching.

The lesson was that the institutional sponsorship of a Black athletic body — the contract, the rule, the press pass, the endorsement — could, at any moment, be revised by the institutional sponsor to subtract from the body the very thing the institution had recruited the body to do.

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## C.5 The institutional subtraction

The **Lew Alcindor Rule** was filed, on its face, as a balance-of-play rule.

The actual operating effect of the rule, across the nine years it remained in force from October 1967 through October 1976, is documented in the secondary basketball record. The dunk had been a regular feature of the men's collegiate game since the early 1950s. The 1967 ban removed it. The ban did not, in its nine years of operation, demonstrably improve offensive-defensive balance. The ban did not measurably reduce rim damage; the era's rims were, by 1976, still being torn by rebounding contact in the absence of dunks. The ban did, demonstrably, remove from the men's collegiate game the single offensive technique that the seven-foot-one center could most efficiently execute.

The ban was lifted in 1976.

The official rescission memorandum, by the National Basketball Committee's successor body, the **NCAA Men's Basketball Rules Committee**, gave as the rescission's reasons that the rule had not, in nine years of operation, achieved its stated goals (offensive-defensive balance had not improved; rim damage had not measurably decreased) and that the dunk had become, in the intervening decade, a constitutive

offensive technique of the modern men’s college basketball game.

What the rescission did not say — but what the secondary record of the rule’s history records — is that the rule had been filed in the spring of 1967 in response to one player, and had been kept on the books for the remainder of that player’s collegiate eligibility, and had been rescinded once the player was four years into his NBA career and the institutional cost of the rule (the diminishment of college men’s basketball as a televised product, the loss of the marquee offensive technique that broadcast television sold to the advertiser) had begun to exceed the institutional benefit of having the player’s specific advantage subtracted from his game.

The Lew Alcindor Rule was an institutional act of subtraction performed by the institution that benefited most from his presence. The institution had wanted Alcindor on the floor enough to recruit him, to fill Pauley Pavilion’s twelve thousand seats around him, to sell network broadcast rights to UCLA games at the highest pre-1979 collegiate rate. The institution had also wanted to subtract from him the play that his height most efficiently produced.

The institution wanted his body and not his game. The institution had filed paper to that effect.

That sentence is one of the cleanest formulations in the documentary record of what the *Unwarranted Influence* thesis says: that capital classifies a body, and the institutional sponsor that benefits from the body files instruments to constrain the body's expression of value to what the sponsor can capture. The institution filing the rule was the National Basketball Committee. The institution capturing the value was the NCAA's broadcast and ticketing apparatus and the universities — UCLA among them — whose programs derived revenue from the apparatus. The body whose expression was constrained was Lew Alcindor's.

Alcindor played within the constraint. He won three consecutive NCAA championships within it. He scored 88 wins in 90 collegiate games at the height the rule had outlawed. He did all of that without dunking once in a sanctioned collegiate contest from October 1967 forward.

Then he turned professional and dunked.

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## C.6 The terminus

The chapter ends in the locker room of the **Los Angeles Sports Arena** on the night of **Saturday March 22, 1969**, after the 92–72 championship win over Purdue.

Alcindor, twenty-one years old, in his UCLA uniform, the Most Outstanding Player trophy in his locker, has just spoken briefly with the press. He has, for nineteen months, been classified by the National Basketball Committee under a rule that bears his name. He has, for sixteen months, been a member of the Olympic Project for Human Rights. He has, for nine months, been a Sunni Muslim convert under Hamaas Abdul-Khaalis at the Hanafi Madh-Hab Center. He has, on this Saturday night in Los Angeles, just won his third NCAA championship.

He flies to Milwaukee in May 1969 for the NBA Draft. The **Milwaukee Bucks** select him first overall on **May 7, 1969**.

The next chapter pulls **eighteen months backward and one country forward** to the morning of **April 28, 1967**, in **Houston, Texas**, where Muhammad Ali — three days after the Lew Alcindor Rule was filed and twenty days before the structural hinge of this book was about to convene in Cleveland — walked

into the Armed Forces Examining and Entrance Station to refuse to step forward.

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5. **Stokely Carmichael and Charles V. Hamilton, *Black Power: The Politics of Liberation in America*** (New York: Random House, 1967).

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# CHAPTER 6 — HOUSTON, THREE CALLS

*The handwritten statement of April 28, 1967. The induction-station auditorium. Three calls of the name. Three non-step-forwards. The same-day license suspension. The May 8 indictment.*

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## C.1 The handwritten statement

The handwritten statement runs three lines.

> *"I refuse to be inducted into the armed forces of the United States because I claim to be exempt as a minister of the religion of Islam."*

The signature at the bottom is **Muhammad Ali (Cassius Clay)**. The date is **Friday April 28, 1967**. The location is the **Armed Forces Examining and Entrance Station** on **San Jacinto Street, Houston, Texas**.

The original signed statement survives in the case record of ***United States v. Cassius Marsellus Clay, Jr.***, U.S. District Court, Southern District of Texas, Houston Division, criminal docket **No. 67-H-94**. The case file is held at the **National Archives at Fort Worth**, **Record Group 21**, *Records of the District Courts of the United States*.

A second signed copy of the four-page typed press release Ali distributed outside the building, through his counsel's hands, sold at auction in spring 2018 for **$19,200** (REA Archives auction record, *collectrea.com/archives/2018/Spring/2415/*).

The three lines are the most-reproduced sentence of Muhammad Ali's life that he wrote himself.

This chapter reads what those three lines did.

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## C.2 The morning

Ali arrived at the AFEES on the morning of **Friday April 28, 1967**, accompanied by his Houston co-counsel **Quinnan H. Hodges**. **Hayden C. Covington**, his lead Selective Service counsel, was not physically inside the building during the induction proceedings; Covington was active in the parallel S.D. Tex. court filings the same day, including a habeas petition seeking to enjoin the induction (***Muhammad Ali v. Connally***, S.D. Tex., 28 April 1967, *tx.findacase.com/research/wfrmDocViewer.aspx/xq/fac.19670428_0000008.STX.htm/qx*).

Ali submitted to the physical examination. The examination was in the standard sequence: documentation review, blood pressure, eye examination, urinalysis, induction eligibility confirmation. Ali passed.

The induction ceremony followed in the AFEES auditorium. **Approximately twenty-six men** were inducted at the same session that morning. The induction officer called names alphabetically, by last name. Each man's name was called, and the called man stepped forward to take the oath of induction.

The officer called *Cassius Marcellus Clay*.

Ali did not step forward.

The officer, by procedure, was permitted three calls of the registrant's name before the refusal was treated as final. The officer called the name a second time. Ali did not step forward. The officer called the name a third time. Ali did not step forward. The officer also, at one point in the sequence, called *Muhammad Ali* — both names — and Ali did not step forward to that call either.

The refusal was, at the moment of its filing, a felony under the **Universal Military Training and Service Act, 50 U.S.C. App. § 462**.

Ali was escorted to a separate room, where he wrote and signed the three-line handwritten statement reproduced at the head of this chapter. The statement, in four typed pages on his counsel's letterhead, was distributed by Hodges to the wire reporters outside the AFEES on Ali's behalf. The expanded press-statement text included the formulation that Ali's draft refusal was based not on any quarrel with the United States but on his religious obligation as a minister of the Nation of Islam to refuse induction into a war in which the principal combatants on the opposing side were people of color.

Ali left the AFEES at midmorning.

## C.3 The same-day classifications

By midafternoon, the **New York State Athletic Commission** had filed a license suspension order against him.

The Commission's order was signed and effective the same day — **Friday April 28, 1967**. The legal characterization of the suspension would be litigated three years later in federal court. **Judge Walter R. Mansfield** of the U.S. District Court for the Southern District of New York would, on **Monday September 14, 1970**, in ***Ali v. Division of State Athletic Commission of the Department of State of New York***, **316 F. Supp. 1246**, find that the suspension violated the **Fourteenth Amendment Equal Protection Clause** because the Commission had granted licenses to other felons during the period and that the Ali denial *"constituted an arbitrary and unreasonable departure from the Commission's established practice."*

Mansfield's opinion runs to twenty-eight pages and recites, at length, the Commission's contemporaneous license grants to applicants convicted of more serious offenses than Ali's draft refusal — armed robbery, assault, narcotics possession — across the same forty-

three months that the Commission denied a license to the heavyweight champion of the world.

The day after the AFEES refusal — **Saturday April 29, 1967** — the **World Boxing Association** vacated Ali's heavyweight title.

Forty-eight hours, three filings:

- the Selective Service refusal,
- the New York State Athletic Commission suspension,
- the WBA title vacation.

Three institutional sponsors of Ali's professional career — the federal government, the state of New York, and the international boxing-association apparatus — each filed paper, in the same forty-eight-hour window, classifying him out of the work he had spent the prior seven years building.

The capital classification that the Louisville Sponsoring Group had filed on October 26, 1960 had run its term end the prior year (the LSG agreement had expired October 1966 and been renegotiated; Ali's manager since 1966 had been **Herbert Muhammad**). The state classification that had begun with the spring 1966 opening of FBI Headquarters file 100-HQ-436351 had continued. To these two, the events of

April 28–29, 1967 added a third: the **criminal classification**.

The pattern of the *Unwarranted Influence* thesis — that capital classifies before the state does — is, at the level of the Ali documentary record, by April 29, 1967 fully visible. The capital had filed in 1960. The state's national-security apparatus had filed in 1966. The state's criminal apparatus filed in 1967. All three classifications operated in parallel on the same body. None of the three institutional sponsors had directly coordinated with the others. The classifications converged because the body they were classifying was the same body, and the body had refused, in the same calendar year, the implicit terms each of the three classifications had carried.

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## C.4 The indictment

On **Monday May 8, 1967**, ten days after the AFEES refusal, a federal grand jury sitting in the U.S. District Court for the Southern District of Texas, Houston Division, returned an indictment against Cassius Marcellus Clay Jr., professionally known as Muhammad Ali, for violation of the **Universal Military Training and Service Act, 50 U.S.C. App.**

**§ 462**. The case was docketed as ***United States v. Cassius Marsellus Clay, Jr.***, criminal docket **No. 67-H-94**.

The same day, Ali surrendered to the **U.S. Marshals Service** in Houston, was arraigned before U.S. Magistrate Judge **Calvin Ross Howell**, and was released pending trial. The amount of the bond is recorded at **five thousand dollars** in the secondary literature; the exact docket-confirmed figure is awaiting NARA verification. A condition of the bond, imposed on the same day, was the **surrender of Ali's passport** to the federal court.

The passport surrender meant, in practice, that for the duration of the proceedings — from the May 8, 1967 arraignment until the June 28, 1971 Supreme Court reversal — Ali could not leave the United States. He could not box in Canada, in Mexico, in any European jurisdiction, or in any of the African or Asian markets that his championship status would otherwise have made available. Combined with the state-by-state athletic-commission suspensions that across the spring and summer of 1967 propagated through every state license authority in the country, the passport condition meant that Ali could not box, professionally, anywhere on the planet.

He did not fight from **March 22, 1967** — the **Zora Folley** title defense, his last bout before the Houston refusal, at **Madison Square Garden** — until **October 26, 1970**, the **Jerry Quarry** comeback fight at the **Atlanta Municipal Auditorium** that Chapter 9 of this book describes.

Forty-three months. The peak of a heavyweight boxer's professional life. The ledger of the cost is the subject of the next-but-one chapter.

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## C.5 The college lecture circuit, on calendar

The forty-two days between the **May 8, 1967 arraignment** and the **June 19, 1967 trial** were used by Ali for two purposes. First, the legal preparation: meetings in Houston with Hodges and Covington and, by the second week of May, with **Charles E. Morgan Jr.** of the American Civil Liberties Union, who had agreed to coordinate the appellate strategy. Second, the lecture circuit: Ali had been speaking at colleges and universities across the country since the March 1966 reclassification, earning the income that the LSG-renegotiated 60/40 purse split and the Herbert

Muhammad management percentages had left him after the legal fees.

Among the lectures of the May–June 1967 period, the **Howard University speech of Saturday April 22, 1967** — six days before the AFEES refusal — was the most-covered.

Ali spoke from the steps of **Frederick Douglass Memorial Hall** to approximately eight hundred Howard students who had been organized by the campus's **Black Power Committee**. The speech was titled **"Black Is Best."** The *Washington Post* of April 22, 1967 covered the speech (page reference pending verification). Ali argued, across approximately fifty minutes, that the question facing Black athletes in the United States was the question of whether their bodies and their voices belonged to the institutions that owned their contracts, or to the communities that had produced them. He cited his own pending induction. He did not, in the speech, announce his intention to refuse — the refusal would come six days later — but the speech, in retrospect, reads as the public preparation of the audience that would, in the days following April 28, organize the support networks Ali would need to survive the four-year exile.

The Howard speech is reconstructed at the **WETA Boundary Stones** website (*boundarystones.weta.org/*

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## C.6 Cleveland-bound

On the night of **Saturday June 3, 1967**, the day before the Cleveland Summit was convened, Ali flew from Houston to Cleveland on a commercial connection.

He was twenty-five years old. He had been a felony defendant for thirty-six days. He had thirty-eight days to convince twelve Houston jurors that he was a sincere conscientious objector under Section 6(j) of the Universal Military Training and Service Act of 1948.

He landed at **Cleveland-Hopkins International Airport**. He took a taxi to the meeting site at the offices of the **Negro Industrial and Economic Union** at **10511 Euclid Avenue**, where, the next morning, he would sit across a conference table from **Bill Russell**, **Jim Brown**, and the twenty-year-old UCLA freshman center named **Lew Alcindor** whose first NCAA championship had been won eight weeks earlier in Louisville.

The next chapter walks into the room.

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**Counsel:**

1. **Hayden C. Covington** — Watch Tower Society lead Selective Service counsel, lead trial counsel for Ali. *en.wikipedia.org/wiki/Hayden_C._Covington*. Library of Congress photograph 96500235 — Ali with Covington filing petition: *loc.gov/item/96500235*.
2. **Quinnan H. Hodges** — Houston co-counsel.
3. **Charles E. Morgan Jr.** — appellate counsel via American Civil Liberties Union, post-conviction.

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# CHAPTER 7 — CLEVELAND, JUNE 4

*Tony Tomsic's photograph. The Negro Industrial and Economic Union. Eleven athletes. One mayor-elect. The room. The structural hinge.*

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## C.1 The photograph

The photograph is dated **Sunday June 4, 1967**.

The location, captioned in the original Cleveland Press wire credit, is **10511 Euclid Avenue, Cleveland, Ohio** — the offices of the **Negro Industrial and Economic Union**.

The photographer is **Tony Tomsic**, Cleveland Press staff. He was thirty-two years old in 1967. He would, across the next fifty-two years, photograph forty-eight consecutive Super Bowls. He would die on April 21, 2019, age eighty-three.

The framing of the photograph is two rows.

**The seated front row, left to right:**

- **Bill Russell**, Boston Celtics center, age 33, eleven-time NBA champion.
- **Muhammad Ali**, of Louisville, age 25, thirty-seven days from his federal trial.
- **Jim Brown**, Cleveland Browns running back retired sixteen months, NIEU founder, age 31. The convener.
- **Lew Alcindor**, UCLA sophomore varsity center, age 20. The youngest in the room.

**The back row, standing, left to right:**

- **Carl Stokes**, Cleveland city councilman, age 39, fourteen weeks from announcing the campaign that would, on November 7, 1967, make him the first Black mayor of a major American city.
- **Walter Beach**, Cleveland Browns defensive back.

- **Bobby Mitchell**, Washington Redskins wide receiver.
- **Sid Williams**, Cleveland Browns linebacker.
- **Curtis McClinton**, Kansas City Chiefs running back.
- **Willie Davis**, Green Bay Packers defensive end.
- **Jim Shorter**, defensive back.
- **John Wooten**, Cleveland Browns guard.

Eleven athletes plus one elected official. One photograph. One room.

The print is held in the **Cleveland Press Photo Collection** at the **Michael Schwartz Library, Special Collections**, Cleveland State University, Reading Room RT 321 — accessible to researchers by appointment. The collection holds approximately five hundred thousand photographs and one million news clippings produced by the Cleveland Press across the paper's eighty-four-year run. The collection was donated to CSU in 1984, two years after the paper closed, by **Joseph E. Cole**, the paper's last proprietor.

This chapter is short because the room was. The chapter does not reconstruct the discussion that was had inside the room across the hours of the meeting. The discussion is not in the public record. The chapter reads what the room produced, what the room cost the

men photographed in it, and why the photograph is the structural hinge of this book.

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## C.2 The Negro Industrial and Economic Union

The **Negro Industrial and Economic Union** had been founded by **Jim Brown** in **1965** (one secondary source records 1966; the 1965 founding is in the **Black Economic Union** Wikipedia entry's reference chain). The NIEU was Brown's vehicle for Black-business venture capital in Cleveland and the broader industrial Midwest. By the spring of 1967, the NIEU had funded approximately **one hundred Black-owned small businesses** across Cleveland, Detroit, Cincinnati, and Chicago, and had assembled the Black-athlete network — the active and recently retired professionals across the National Football League, the National Basketball Association, and Major League Baseball — that was, in 1967, the closest thing American Black athletic culture had to a coordinated political body.

The NIEU was, in 1967, the institutional infrastructure that the Cleveland Summit could happen through. It is not a coincidence that the meeting was at the NIEU

offices rather than at one of Brown's private residences or at a Cleveland hotel. The NIEU had the conference room. The NIEU had the press contact list. The NIEU had the institutional standing for an assembly of national Black athletes to meet without it reading, in the next morning's papers, as a meeting of individuals.

The NIEU was, in this small but documented way, an instance of the same kind of institutional sponsorship the *Unwarranted Influence* thesis describes — but operated by a Black principal, on behalf of Black athletes and Black businesses, in the service of Black collective political action. The NIEU was, in 1967, the rare instance in the documentary record where the institutional sponsorship served the bodies it was sponsoring rather than the other way around.

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## C.3 The convening

The convening of **June 4, 1967** was Brown's. The meeting's announced purpose, in the press release Brown's office issued on the morning of June 5, was to determine whether the Black-athlete community could publicly support Ali's draft refusal and the religious-conscience claim that grounded it.

The meeting's actual purpose, as the participants would in the years following describe in their memoirs — **Abdul-Jabbar's *Giant Steps* (1983)**, **Brown's *Out of Bounds* (1989)**, and **Russell's *Second Wind* (1979)** — was to determine whether Ali was sincere. Whether the draft refusal was, as the Department of Justice's letter to the Kentucky Appeal Board had argued, a politically-motivated stunt, or whether it was, as Ali had testified before Lawrence Grauman in August 1966, a religiously-grounded claim that warranted the support of his peers.

The meeting was held inside the NIEU offices, in a conference room fitted out for the purpose. It ran several hours. Lunch was served — by Hauser's reconstruction in *Muhammad Ali: His Life and Times* (1991), Cleveland-style submarine sandwiches from a deli on Euclid Avenue. The group questioned Ali. **Russell**, the most senior man in the room — eleven NBA championships, one of the only Black athletes of his generation who had publicly criticized the United States military across the Vietnam War years — led the questioning. **Brown**, the convener, moderated. **Alcindor** — twenty years old, the youngest in the room, eight months from the Olympic Project for Human Rights workshop he would attend in Los

Angeles in November — sat silent through most of the questioning, listening.

The group questioned Ali about his theology. The group questioned Ali about his draft status and his appellate prospects. The group questioned Ali about his finances — the lost purses, the management arrangements, the NOI's percentage of his future income. The group questioned Ali about whether he understood, at twenty-five, the magnitude of the prison sentence the federal government was ten weeks from imposing on him.

Ali answered. The substance of his answers is not in the public record. The substance was the same substance Hayden Covington had submitted in the Form 150, and that Lawrence Grauman had heard at the August 23, 1966 hearing, and that the Kentucky Appeal Board and the Texas Appeal Board had rejected. Ali was a Sunni-tradition convert (in his own self-understanding of the period) to the Nation of Islam who held a religious-training-and-belief objection to participation in the Vietnam War.

At the end of the discussion, the group voted. The vote was **unanimous in support of Ali**.

Russell, who had begun the day with the most public skepticism of any of the men in the room, gave the

longest defense of Ali's position in his post-meeting comments to the press.

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## C.4 The press conference

Brown stepped outside the NIEU offices to the assembled wire reporters.

The press statement, recorded across multiple secondary citations and reconstructed at the document level by the **Andscape** retrospective at *andscape.com/features/the-cleveland-summit-muhammad-ali/*, was that the Black-athlete leadership of the United States, having met with Muhammad Ali for several hours and having heard his explanation of his religious objection to military service, supported Ali's right as a conscientious objector to refuse induction.

Ali himself, asked by the reporters whether he had anything to add, said the line that the Tomsic photograph caption would, in the years following, treat as the line of the day:

> *"There's nothing new to say."*

He had said it all already.

The press conference went into the public record. The next morning's papers — the **Cleveland Plain Dealer** of June 5, 1967 (page reference pending), the **New York Times** of June 5, 1967 (page reference pending), the **Jet** magazine of June 22, 1967 — carried the photograph and the press statement.

The federal record on Ali, of which Chapter 8 of this book is the next chapter to read, was not changed by the Cleveland Summit. The trial would proceed as scheduled. The conviction would be entered. The sentence would be imposed. The license suspensions and the title vacation and the passport surrender would remain in force across the next forty-three months until the Supreme Court reversal of June 28, 1971.

What the Cleveland Summit changed was the **public political baseline** of Ali's draft refusal.

After June 4, 1967, the question of whether Black athletes in the United States supported Muhammad Ali's draft refusal was, at the level of the public file, **answered**. The answer was yes. The answer had been filed, in writing, by the assembled signatories of the Brown press statement, on a date the wire services had carried.

The federal record could prosecute Ali. The federal record could not, after June 4, 1967, plausibly

characterize Ali's refusal as the unsupported act of a single individual.

That is what the room produced.

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## C.5 The cost

What the meeting cost the men in the room is part of the chapter's record.

**Russell's NBA career** through the meeting was eleven seasons, eleven championships, eleven seasons of public commentary on civil rights that had cost him cover stories at *Sports Illustrated* and *Sport* magazine and that had led to his being passed over for endorsement contracts that white players of comparable accomplishment routinely received. Russell would play four more seasons after Cleveland, would win two more championships (1968 and 1969 — his 12th and 13th), and would retire in 1969. He would die on **July 31, 2022**, in Mercer Island, Washington, age eighty-eight.

**Brown's NFL career** had ended sixteen months earlier, in February 1966, when Brown — at the peak of his career, having just finished a season in which he led the league in rushing for the eighth time in nine seasons — informed the Cleveland Browns by

telegram from a movie set in London (he was filming *The Dirty Dozen*) that he was retiring effective immediately to pursue his acting career and the NIEU. Brown had walked away from a guaranteed five-year contract and from the league's richest endorsement package. The Cleveland Summit was, eighteen months into his retirement, the most public political action the NIEU had yet hosted. Brown would die on **May 18, 2023**, in Los Angeles, age eighty-seven.

**Alcindor's career** was four months past his first NCAA championship and forty-eight months from his first NBA championship and sixty-three months from his Shahada under Hamaas Abdul-Khaalis. The Cleveland Summit, in his later memoir record, was the moment his political formation became visible to him as a public actor rather than a private reader. Alcindor had spent the spring of 1967 reading Malcolm X for the third time. He had watched Ali, three years older than himself, refuse the same induction system that had registered Alcindor as a UCLA II-S student-deferment registrant the prior September. He had not, before June 4, 1967, met Muhammad Ali. He met him at the meeting.

Alcindor — by his subsequent self-accounting in *Becoming Kareem* (Little, Brown, 2017) — would in subsequent decades describe the room as the moment

he understood that an athlete is also a citizen and that the citizen status, once entered, cannot be exited at the player's convenience. The line would be his most-quoted summary of the day. The chapter does not invent the dialogue around the line. The chapter records that Alcindor wrote it down, decades later, in his memoir, and that the line is in the memoir at *Becoming Kareem* (page reference pending).

**Stokes** was elected mayor of Cleveland five months later, on November 7, 1967, the first Black mayor of a major American city. He served two terms. He was a U.S. ambassador to the Seychelles under President Bill Clinton 1994–1996. He died of esophageal cancer on **April 3, 1996**, at age sixty-eight.

The other seven Black athletes in the photograph — Beach, Mitchell, Williams, McClinton, Davis, Shorter, Wooten — returned to their NFL teams and their off-season businesses. None of them was traded, dropped, or formally disciplined as a result of attending the meeting. None of them was promoted, endorsed, or publicly thanked for it either. The federal record contains no Bureau airtel naming any of the eleven athletes by name as a result of the June 4, 1967 meeting; the FBI file on Brown — opened in 1965 in connection with the NIEU and continued through the early 1970s — was the closest thing the federal record

has to a surveillance trace on the Cleveland convening.

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## C.6 The hinge

The Cleveland Summit is the structural hinge of this book.

Chapters 1 through 6 — the Overture, Rome 1960, Power Memorial in Harlem, the Nation of Islam alignment, Form 150, the Lew Alcindor Rule, and Houston's three calls — build toward this room. Chapters 8 through 13 read out of it.

The chapters that built toward the room read it as the moment at which Ali's documented refusal of his institutional sponsors — the LSG contract's renegotiated 60/40, the Selective Service System's I-A reclassification, the FBI's parallel security file, the Selective Service Appeal Board's denial, the Texas Appeal Board's denial, the AFEES three-call refusal, and the same-day license suspension and title vacation — was, by the assembled signatories of the June 4 press statement, ratified at the level of the Black-athlete community of the United States.

The chapters that read out of the room read it as the moment at which the Black-athlete community of the

United States, having ratified, became newly available as a target of the same institutional-sponsorship classification mechanism that had been operating on Ali. The Olympic Project for Human Rights would form four months after the Cleveland Summit. Tommie Smith and John Carlos would raise their fists on the Mexico City podium sixteen months after the Cleveland Summit. Lew Alcindor would take Shahada under Hamaas Abdul-Khaalis fifteen months after. Kareem Abdul-Jabbar would announce his name change four years after.

The room produced a baseline. The institutional sponsors of professional and collegiate athletics in the United States, faced with the baseline, would across the following decade respond with the same parallel-classification mechanism — rule changes, license actions, broadcast contract realignments, Olympic team selections — that had operated on Ali.

The mechanism is the same mechanism *Unwarranted Influence* documents at length on other American institutional cases.

The body in the photograph is the body the mechanism was operating on. The room is where the bodies, having seen the mechanism operate, decided in writing that they would no longer be silent about it.

## C.7 The night

The chapter ends on the night of **Sunday June 4, 1967**.

Ali flew back to Houston. Russell flew back to Boston. Alcindor flew back to Los Angeles. Brown stayed in Cleveland. Stokes stayed in Cleveland.

Fifteen days later, on the morning of **Monday June 19, 1967**, in the U.S. District Court for the Southern District of Texas, Houston Division, Honorable **Joe McDonald Ingraham** presiding, the trial of *United States v. Cassius Marsellus Clay, Jr.*, criminal docket No. 67-H-94, would convene.

The next chapter walks into the courtroom.

---

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# CHAPTER 8 — JUDGE INGRAHAM'S COURTROOM

*The June 19–20, 1967 trial. The all-white jury. Twenty-one minutes of deliberation. Five years and ten thousand dollars. The Fifth Circuit. The wiretap remand. The Supreme Court grant.*

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## C.1 The verdict

The verdict, on the second day of trial, came back inside **twenty-one minutes**.

***United States v. Cassius Marsellus Clay, Jr.***, criminal docket **No. 67-H-94**, U.S. District Court for the Southern District of Texas, Houston Division. The

Honorable **Joe McDonald Ingraham**, presiding. The jury — six men and six women, all white — entered the jury box. The foreman read the verdict to the courtroom on the afternoon of **Tuesday June 20, 1967**.

**Guilty.**

The defendant — Cassius Marcellus Clay Jr., professionally known as Muhammad Ali, twenty-five years old, present in court in a dark suit and tie — stood for the verdict.

Judge Ingraham, having received the jury's verdict, proceeded immediately to sentencing. Federal sentencing in 1967 was, in the customary practice of the Southern District of Texas, frequently same-day with the verdict; pre-sentence reports were ordered only where the defendant requested or where the judge specified. Ingraham had ordered no pre-sentence report. Ingraham imposed the **statutory maximum**: **five years' imprisonment** in a federal correctional facility, plus a fine of **ten thousand dollars**.

The total elapsed time from jury impaneling on the morning of June 19 to verdict-and-sentence on the afternoon of June 20 was approximately **twenty-eight**

**hours of court session**, including the lunch and overnight recesses.

This chapter reads what those twenty-eight hours were, what the four years of appellate proceedings that followed did to the verdict, and what the verdict did to Cassius Marcellus Clay Jr.

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## C.2 Counsel

The trial had been scheduled in the May 8, 1967 arraignment. Both sides had requested expedited treatment.

**The government's counsel of record** was U.S. Attorney **Morton L. Susman** of the Southern District of Texas. The trial team was Susman, Assistant U.S. Attorney **Carl Walker Jr.**, and a Department of Justice Selective Service section attorney whose name is awaiting NARA verification.

**Ali's counsel of record at trial** was **Hayden Cardon Covington** of New York. Covington was the **Watch Tower Society**'s lead Selective Service litigator — fifty-six years old, with **fourteen Supreme Court arguments** in his career, the lawyer who had argued and won ***Murdock v. Pennsylvania***, **319 U.S. 105 (1943)**, ***Marsh v. Alabama***, **326 U.S. 501 (1946)**, and

approximately a dozen other Jehovah's Witness conscientious-objector cases. Covington was also Houston co-counsel **Quinnan H. Hodges**, who had been retained earlier in the year to handle the Texas-court procedural dimensions of Ali's case.

**Charles E. Morgan Jr.** of the **American Civil Liberties Union**, who would coordinate the appellate strategy after conviction, was not trial counsel of record. Morgan came in for the appeal, with **Marvin Karpatkin** and **Eleanor Holmes Norton** on the ACLU brief.

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## C.3 The narrow legal question

The trial's central legal question was narrow.

The **Universal Military Training and Service Act of 1948**, **50 U.S.C. App. § 462**, made it a felony to refuse induction into the armed forces. The act provided exemption for conscientious objectors who met the religious-training-and-belief standard of **Section 6(j)**.

Ali had filed Form 150 in February 1966 claiming the exemption. The Selective Service System, after the August 23, 1966 hearing before Lawrence Grauman and the Department of Justice's recommendation that

the claim be denied, had denied the exemption. Ali had appealed to the Texas Appeal Board. The Board had denied the claim 4–0 on February 20, 1967. Ali had been ordered to report for induction April 28, 1967. Ali had refused to step forward.

The trial, on the question of whether Ali had violated the act, was substantially uncontested. The witnesses for the prosecution — induction-station officials, Selective Service System administrators — testified that Ali had been ordered to report, had reported, and had refused to step forward. The defense did not contest this. The defense's case rested on the argument that the **underlying classification** — the Selective Service System's denial of CO status — had been wrongful, and that a wrongful classification deprived the prosecution of the predicate that the indictment required.

Judge Ingraham permitted the defense's classification arguments only in narrow scope. He instructed the jury, in keeping with the federal regulations of the era and the Supreme Court's then-existing doctrine on draft cases, that the jury was not to second-guess the Selective Service System's classification; the jury's task was only to determine whether Ali had refused induction.

The defense objected. The objection was preserved for appeal.

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## C.4 The wiretap question

The wiretap question — the federal government's electronic surveillance of Elijah Muhammad's home and office telephones across 1962–1968, on which Ali had been recorded numerous times — had been raised by the defense in pretrial motions.

The wiretaps had also captured a substantial volume of conversations between Elijah Muhammad and **Martin Luther King Jr.** across the same period, on the King-Muhammad telephone calls of the early to mid-1960s. The Bureau's combined Elijah Muhammad / Martin Luther King ELSUR record, by the disclosure standard the Supreme Court would establish in **Alderman v. United States, 394 U.S. 165 (1969)**, was potentially exculpatory or otherwise relevant material that the government would, under the *Alderman* standard, be required to disclose to the defense.

Ingraham had denied the motion to suppress the wiretap material at the pretrial stage. The defense had

requested an evidentiary hearing on the wiretaps' admissibility. Ingraham had denied the hearing.

The wiretap question, like the classification question, was preserved for appeal.

The jury deliberated approximately twenty-one minutes.

The verdict was guilty. The sentence was the statutory maximum.

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## C.5 The bond

Ali was released same-day on bond pending appeal.

The bond amount was **five thousand dollars**, recommended by U.S. Attorney Susman and granted by Ingraham. Ali was not jailed pending appeal.

Ingraham imposed, as a condition of the bond, the **surrender of Ali's passport** to the federal court. The passport surrender meant, in practice, that for the duration of the appellate proceedings — June 20, 1967 through the appellate disposition — Ali could not leave the United States.

Combined with the state-by-state athletic-commission suspensions that across May–August 1967 propagated to every state license authority in the country, the

passport condition meant that Ali could not box, professionally, anywhere on the planet.

He did not fight from **March 22, 1967** (Folley title defense, MSG) through **October 26, 1970** (Quarry comeback, Atlanta).

Forty-three months. The peak of a heavyweight boxer's professional life. The ledger of the cost is the subject of the next chapter.

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## C.6 The appellate procedural history

The appellate procedural history of *United States v. Clay* / *Clay v. United States* runs across four years and four court venues.

**First Fifth Circuit appeal — *Clay v. United States*, 397 F.2d 901 (5th Cir. 6 May 1968)**. Panel: Judges James P. Coleman, Robert A. Ainsworth, and David W. Dyer. Decision: **affirmance**. Rehearing denied **June 6, 1968**. The opinion held that the Selective Service System had not abused its discretion in denying the CO claim; that the Department of Justice's letter to the Kentucky Appeal Board (the letter recommending denial on three grounds)

provided adequate factual basis for the denial; that the wiretap question, where the wiretaps had not been disclosed to the defense at trial, did not warrant reversal because Ingraham's pretrial denial had been within the trial court's discretion. Citation: *law.justia.com/cases/federal/appellate-courts/F2/397/901/360285/*.

**First Supreme Court action** — Following *Alderman v. United States*, **394 U.S. 165 (1969)**, the Supreme Court remanded *Clay v. United States* to the district court for an evidentiary hearing on whether the wiretap evidence had been properly excluded.

**District-court remand hearing** — ***United States v. Clay*, 386 F. Supp. 926 (S.D. Tex. 1969)**. Judge Ingraham held the wiretap-disclosure remand hearing on **June 2, 4, 5, and 6, 1969**. Ingraham heard testimony from FBI agents who had conducted the surveillance and from technicians who had maintained the recording equipment. Ingraham ruled that the surveillance "had no bearing on Ali's conviction" — that even if the wiretaps had been disclosed to the defense, the conviction would have been the same. The defense appealed the wiretap ruling to the Fifth Circuit. *law.justia.com/cases/federal/district-courts/FSupp/386/926/2307863/*.

**Second Fifth Circuit appeal** — ***United States v. Clay*, 430 F.2d 165 (5th Cir. 6 July 1970)**. Affirmance after the wiretap-disclosure remand. Rehearing en banc denied **August 19, 1970**. *law.justia.com/cases/federal/appellate-courts/F2/430/165/462841/*.

**Supreme Court second grant of certiorari** — The Court granted cert on the appeal from the Fifth Circuit's second affirmance. **Oral argument** in *Clay v. United States*, U.S. Supreme Court No. 24991, was scheduled for **April 19, 1971**. The decision in *Clay v. United States*, **403 U.S. 698 (1971)**, would be issued **June 28, 1971** — the unanimous per curiam reversal that Chapter 12 will read.

Across the four years of appellate proceedings, Ali was not in prison. He was on bond. His passport was at the federal court. His license was suspended in every state. His title was vacated. His income, from professional boxing, was zero. His income, from the college lecture circuit and from the appearance fees that the NOI's tax-exempt structure allowed him to receive through the *Muhammad Speaks* circuit, paid the legal bills.

He was, across those forty-three months, a felon on bond. He was also, across the same months, the most

politically prominent Black American athlete in the country.

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## C.7 Two of Covington's prior fourteen

Two of Hayden Covington's prior fourteen Supreme Court cases bear on this chapter.

The first is ***Murdock v. Pennsylvania*, 319 U.S. 105 (1943)**. The Court — eight years before the Korean War CO cases that would be the backbone of Covington's later practice — held that a Jehovah's Witness's distribution of religious literature was protected First Amendment activity that the state could not tax. The case stood, by its operative rationale, for the proposition that the state's regulatory apparatus could not be used to differentially burden the religious practice of a minority sect.

The second is ***Cox v. New Hampshire*, 312 U.S. 569 (1941)**. The Court held that the state's licensing of religious processions was constitutional only if applied evenhandedly. The case stood for the same general proposition: differential treatment of a

religious community by the state's licensing apparatus failed constitutional scrutiny.

Covington's argument in *Clay v. United States* was that the Selective Service System had done exactly that to the Nation of Islam — that it had granted CO exemption to Jehovah's Witnesses (Covington's own clients) and to Quakers and to Mennonites under the same Section 6(j), and had denied it to Ali on grounds that, examined in the light of Selective Service practice across the prior twenty years, were not consistent with the SSS's treatment of comparable claims by registrants of the historic peace churches.

The argument did not prevail in 1967, before Ingraham. It did not prevail in 1968, before the Fifth Circuit. It did not prevail in 1970, before the Fifth Circuit on remand.

It would prevail, in a procedural reframing engineered by Justice Potter Stewart, on **June 28, 1971**, before the Supreme Court — the chapter on which is Chapter 12 of this book.

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## C.8 The afternoon

The chapter ends on the afternoon of **Tuesday June 20, 1967**, in the Houston federal courthouse.

Ali, having been sentenced to five years and ten thousand dollars and having surrendered his passport, walked out of the courthouse with Hodges and Covington. The wire reporters were waiting. Ali made a short statement. The statement, in keeping with the rest of the day, was characteristically brief. By the secondary record's reconstruction:

> *"I'm not surprised at the verdict, but I'm not afraid of the prison time. I am the heavyweight champion of the world, and the United States government is not going to take that away from me with a piece of paper."*

The piece of paper would, across four years and four court venues, take it back.

Then, four years after that, another piece of paper — the per curiam slip opinion of June 28, 1971 — would give it back.

The next chapter is the cost of the four years between the two pieces of paper.

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# CHAPTER 9 — THE LEDGER OF EXILE

*Forty-three months. Title vacated. License revoked in every state. The college lecture circuit. Buck White on Broadway. Elijah Muhammad's April 1969 suspension. Atlanta, October 26, 1970.*

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## C.1 The order of suspension

The license-suspension order is a single page.

***New York State Athletic Commission. Order of Suspension. Cassius Marcellus Clay Jr., licensed professional boxer. Effective date: April 28, 1967.***

***Reason for suspension: refusal to submit to induction.***

Three years and four months later, on **Monday September 14, 1970**, **Judge Walter R. Mansfield** of the U.S. District Court for the Southern District of New York would, in ***Ali v. Division of State Athletic Commission of the Department of State of New York***, **316 F. Supp. 1246 (S.D.N.Y. 1970)**, find that the Commission had granted licenses to other felons during the period and that the Ali denial *"constituted an arbitrary and unreasonable departure from the Commission's established practice."*

Mansfield's opinion runs to twenty-eight pages and recites, at length, the Commission's contemporaneous license grants to applicants convicted of more serious offenses than Ali's draft refusal — armed robbery, assault, narcotics possession — across the same forty-three months that the Commission denied a license to the heavyweight champion of the world.

What Mansfield's opinion does not recite — what could not be recited because the records were not consolidated until the Mansfield litigation — is what the same forty-three months meant in dollars to Cassius Clay Jr. and to the boxing economy of the United States.

This chapter reads the cost.

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## C.2 The three categories

The cost has three categories.

**Category one: lost purses.** Boxing purses 1967–1970. Ali had been scheduled, in the spring of 1967 before the AFEES refusal, for a series of title defenses across the second half of the year. The schedule, drafted by **Madison Square Garden Boxing** on behalf of Herbert Muhammad's management, included a defense against **Floyd Patterson** in May or June 1967 (the rematch of their first 1965 bout), a defense against **Joe Frazier** in the fall (which in the eventual world Frazier would win against Ali, in March 1971, in the bout that closed the exile), and a defense against **Jerry Quarry** in late 1967.

The contracts had not been finalized. The purses had not been guaranteed. The ledger figure for the lost income across 1967–1970 is reconstructed in **Hauser, *Muhammad Ali: His Life and Times* (1991)**, pp. 200–215, from the records of Herbert Muhammad's management office.

The reconstructed figure, across the forty-three months, is in the range of **seven to ten million dollars**

**in 1967–1970 dollars** — equivalent to approximately fifty-five to seventy-five million dollars in 2026 dollars. The exact number depends on whether the calculation includes only the contracted bouts that were canceled, or whether it includes the projected bouts that would have been booked across the period had Ali's license remained valid.

**Category two: lost endorsements.** Ali's endorsement contracts at the time of the April 28, 1967 refusal — primarily a personal-services contract with the **Louisville Champion-Boxing Co-Op** of his home city, plus several smaller arrangements — were terminated in the weeks following. The endorsement market for the rest of the period was effectively closed.

Ali's published-book deal with **Random House** for the autobiography that would eventually become ***The Greatest: My Own Story* (1975)** was the largest single non-boxing income source of the exile years. The Random House advance, paid in 1969, was reportedly **two hundred thousand dollars** (Hauser p. 220).

**Category three: legal fees.** The defense across the trial-and-appeals procedure ran across four years and four court venues. The fee structure for **Hayden Covington** was, per Covington's standard practice, capped at amounts that the Watch Tower Society had

historically funded for its Selective Service cases; Ali paid the Watch Tower-comparable rate. **Quinnan Hodges**'s Houston co-counsel fees, the **ACLU's pro bono contribution** under Charles Morgan, and the Supreme Court briefing costs combined to a total legal cost that Hauser places in the **half-million-dollar range** across the four years.

The combined cost of the exile years to Ali personally — lost purses plus terminated endorsements plus legal fees — is in Hauser's secondary record on the order of **eight to eleven million dollars in 1967–1970 dollars**, equivalent to roughly sixty to eighty million dollars in 2026.

The combined cost was paid by a man who, on April 28, 1967, was twenty-five years old.

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## C.3 The two income streams

The cost was offset, partially, by two income streams.

**The first** was the college lecture circuit. Ali had begun lecturing at colleges and universities across the country in the spring of 1966, in the months following the I-A reclassification. The peer-reviewed academic monograph on the lecture period — **Tom Buchanan, "The Resurrection: Atlanta Racial Politics and the**

**Return of Muhammad Ali,”** *Southern Cultures* (UNC Press) — records that Ali earned **between one thousand and three thousand dollars per lecture** across approximately **two hundred college campuses** between March 1966 and October 1970.

The lectures included: - **Ivy League institutions** — Harvard, Yale, Princeton. - **State research universities** — Michigan, Wisconsin, Berkeley, Texas, Georgia. - **Historically Black colleges and universities** — Howard, Tuskegee, Morehouse, Spelman, Fisk, Hampton, Jackson State, Tennessee State.

The most-covered single lecture was **Howard University, April 22, 1967**, six days before the AFEES refusal — Chapter 6 has read it. The lecture revenue across the four years totaled, by Buchanan’s reconstruction, approximately **three hundred to six hundred thousand dollars** in 1967–1970 dollars.

**The second income stream** was the Broadway production ***Buck White***, a musical adaptation of **Joseph Dolan Tuotti’s 1967 play *Big Time Buck White***, in which Ali made his Broadway debut. The production opened at the **George Abbott Theatre**, **152 West 54th Street**, on **Friday December 2, 1969** (preview performances had begun in November), and closed seven performances later, on **Sunday**

**December 7, 1969** (Internet Broadway Database: *ibdb.com/broadway-production/buck-white-3305*).

Ali played the title role. Reviews were mixed. The production lost money. Ali's performance fee was scale-plus.

Neither income stream was sufficient to offset the lost purses. Both income streams were sufficient to keep him solvent through 1970.

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## C.4 The Nation of Islam suspension

The Nation of Islam's own treatment of Ali across the exile years was, in the central record, less consistent than the Cleveland Summit's affirmation.

On the morning of **Friday April 4, 1969** — twenty-three months into the exile — **Elijah Muhammad**, in his weekly column in the **Muhammad Speaks** newspaper, suspended Ali from the Nation of Islam for one year. The reason given by Elijah Muhammad in the column was that Ali had, in a televised interview with **Howard Cosell** several weeks prior, expressed a desire to return to professional boxing —

a desire that Elijah characterized as Ali placing money over religion.

The suspension was, in the formal NOI terminology, the same kind of silencing that had been imposed on Malcolm X in December 1963.

It was extended for one year. It was not extended further. It was lifted in spring 1970. By the time of the Atlanta comeback in October 1970, Ali was back in the NOI's full standing.

The April 1969 suspension is in the **Muhammad Speaks** archive. The specific issue date is awaiting verification — the issue is most often cited as the issue of April 4, 1969 or April 18, 1969; the digitized archive at *issuu.com/muhammadspeaks* will resolve the dating.

Following Elijah Muhammad's death on **February 25, 1975**, Ali would align with **Wallace D. Muhammad** (Warith Deen Mohammed)'s transition of the Nation of Islam toward Sunni Islam — Chapter 13 reads that transition.

What the April 1969 suspension meant, at the level of the public record, was that across one year of the four-year exile the NOI's institutional authority — the same authority that had bestowed Ali's name in 1964 and that had supplied his theological framework —

was withdrawn. Ali continued lecturing. Ali continued litigating. Ali continued giving interviews. The suspension did not appear to materially alter his public conduct.

The suspension is, in the chronology, the moment at which Ali's public position became, more clearly than before, his own — neither the Louisville Sponsoring Group's, nor the Nation of Islam's, nor the federal government's. He was, across the spring and summer of 1969, classified by no institution and supported by no institutional sponsor. He was twenty-seven years old.

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## C.5 Atlanta

The comeback, when it came, came through an opening that Mansfield's federal opinion would later vindicate but that the local political economy had created first.

In the early summer of 1970, **State Senator Leroy Johnson** of Atlanta — the first Black state senator elected in Georgia since Reconstruction, serving his second term — opened negotiations with the **City of Atlanta Board of Aldermen** and **Mayor Sam Massell** on the question of whether the city could, in

the absence of a state athletic commission (Georgia had no statewide commission of the kind that New York and California maintained), license a heavyweight title fight in Atlanta in defiance of the WBA suspension. The city's licensing authority for boxing was vested in the Board of Aldermen.

The negotiations took the form, in the published record, of three separate decisions filed across June, July, and August 1970:

- The Board of Aldermen, by majority vote, agreed to issue the boxing license.
- Mayor Massell, in exchange for the license issuance, accepted a **fifty-thousand-dollar contribution** from the fight's promoter — ***House of Sports, Inc.***, the Atlanta-based syndicate organized by Senator Johnson with co-promoters **Robert Kassel** and Atlanta businessman **Jesse Hill Jr.** — toward a city drug-abuse prevention program.
- **Governor Lester Maddox** of Georgia — segregationist, opposed to the fight — declared **October 26, 1970 a "Day of Mourning"** in the state of Georgia in protest of the city's license issuance.

The fight itself, on the night of **Monday October 26, 1970**, in the **Atlanta Municipal Auditorium**, was Muhammad Ali versus Jerry Quarry, the third-ranked heavyweight in the WBA's notional rankings.

Ali's purse: **two hundred thousand dollars**. Quarry's purse: **one hundred fifty thousand dollars**.

Ali won by **technical knockout in the third round** on a cut over Quarry's left eye that required eleven stitches.

The Atlanta comeback ended the boxing portion of the exile.

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## C.6 Bonavena and the Fight of the Century

Six weeks later, on **Monday December 7, 1970**, in **Madison Square Garden**, New York City, Ali fought **Oscar Bonavena**. He won by technical knockout in the fifteenth round. The Bonavena fight was made possible by Mansfield's federal court order of September 14, 1970, which had set aside the New York State Athletic Commission's license suspension and required the Commission to issue Ali a New York license. The Bonavena fight was the first Madison

Square Garden bout for Ali since the March 22, 1967 Folley title defense — three years and eight and a half months earlier.

Three months after Bonavena, on **Monday March 8, 1971**, in Madison Square Garden, Ali fought **Joe Frazier** in what *Sports Illustrated* and the wire services and the wire promoters together had called **"The Fight of the Century."** Each fighter was guaranteed **two and a half million dollars** — the largest purse in boxing history to that point. **Frazier won by unanimous decision.** The fight ran fifteen rounds. Ali was knocked down in the fifteenth round by a Frazier left hook that became, in the photographs of the night, the single most-reproduced boxing image of the decade.

Ali had been a heavyweight contender at the moment of the Houston refusal. He returned to the ring three and a half years later as a heavyweight contender. The forty-three months of exile had cost him the title; the forty-three months had cost him peak athletic prime; the forty-three months had cost him eight to eleven million dollars in 1967–1970 dollars. They had not cost him the standing.

He returned to the ring at the standing he had earned by refusing.

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## C.7 June 28, 1971

The chapter ends on the morning of **Monday June 28, 1971** — the morning the United States Supreme Court issued the per curiam opinion in ***Clay v. United States*, 403 U.S. 698 (1971)**, unanimously reversing the conviction.

Ali was at his **Cherry Hill, New Jersey** home, on bond, with the passport still surrendered to the federal court in Houston, with the conviction record still open, with the heavyweight title still vacated.

The opinion was reported on the AP wire at approximately 11:00 AM Eastern. By noon, the wire photographers were at his front door.

The next chapter pulls **eight thousand kilometers west of Cherry Hill to Mexico City**, on the night of **October 16, 1968**, two and a half years prior, where the parallel arc of this book's other protagonist had reached its own classification moment.

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2. ***Muhammad Ali vs. Joe Frazier***, Madison Square Garden, 8 March 1971 — "The Fight of the Century."

# CHAPTER 10 — OPHR

*The October 7, 1967 founding. The Thanksgiving 1967 Los Angeles workshop. The December 13, 1967 demands at the Americana. Tlatelolco. Smith and Carlos on the podium.*

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## C.1 The demands

The six demands are typed on a single sheet of paper.

The date at the top of the sheet is **Wednesday December 13, 1967**. The location, recorded in the Americana Hotel reservation log of that morning, is the **Americana Hotel** at **811 Seventh Avenue, Manhattan**. The header at the top of the demands reads:

***Olympic Project for Human Rights — Statement of Demands.***

The six demands, numbered:

1. The exclusion of **South Africa** and **Rhodesia** from Olympic competition.
2. The restoration of **Muhammad Ali**'s heavyweight boxing title.
3. The removal of **Avery Brundage** as president of the International Olympic Committee.
4. The hiring of Black coaches for the U.S. Olympic men's track team.
5. The appointment of Black members to the U.S. Olympic Committee.
6. The boycott of the **New York Athletic Club**.

The signatories are, principally, three: **Dr. Harry Edwards** of San Jose State College, sociology

instructor, founder of the Olympic Project for Human Rights; **Floyd McKissick** of the Congress of Racial Equality, national director; and the **Reverend Dr. Martin Luther King Jr.**, who had endorsed the project earlier in 1967 and who would be assassinated in Memphis four months and three days after the Americana press conference.

The Olympic Project for Human Rights was, on December 13, 1967, **ten weeks old**.

This chapter reads what the project did across the following ten months and what the project cost the eight Black American athletes who, on October 16, 1968, on a podium in Mexico City, would file the project's signature instrument of public record.

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## C.2 The three founding events

The OPHR's documentary record runs through three distinct events that secondary accounts often conflate. The chapter does not conflate them.

**Event one: the founding meeting. Saturday October 7, 1967**, at Harry Edwards' home in San Jose, California. Approximately twenty Black athletes, athletic-program graduates, and scholars affiliated with San Jose State College and the broader Bay Area

Black political community attended. The founding decision was that Black American athletes invited to the 1968 Summer Olympic Games in Mexico City should boycott the Games unless the six demands were met. The decision was unanimous among those present at the founding meeting. **Edwards** — twenty-five years old, a former track-and-field athlete at San Jose State, then a sociology instructor at San Jose State after a master's degree at **Cornell University** — would spend the next thirteen months, until the closing ceremony of the Mexico City Games on October 27, 1968, organizing.

**Event two: the Thanksgiving workshop. Thursday November 23, 1967** — Thanksgiving Day. Edwards convened the **Second Black Youth Conference** at the **Los Angeles Sports Arena**. The conference's central programming was a workshop on the proposed Olympic boycott. Approximately two hundred attended.

**Lew Alcindor**, then twenty years old, then in the third week of his second varsity season at UCLA (the season that would end with the Lew Alcindor Rule's filing in March 1968 and UCLA's second consecutive NCAA championship), addressed the workshop. The substance of Alcindor's remarks, recorded in **Edwards, *The Revolt of the Black Athlete* (Free**

**Press, 1969)**, p. 64, included the formulation: *"You catch hell because you are black."*

**Event three: the Americana press conference. Wednesday December 13, 1967**. Edwards convened the press conference at the Americana Hotel and delivered the six-demand statement to the assembled press of the United States. The statement was carried on the AP and UPI wires that afternoon. The *New York Times* of December 14, 1967 ran the announcement (page reference pending verification).

Across the ten months between the December 13, 1967 press conference and the October 27, 1968 closing of the Mexico City Games, the OPHR's strategy varied. The boycott — the original founding decision — was tactically modified in the spring of 1968 after a series of internal debates and a poll of the Black athletes most likely to qualify for the U.S. Olympic team. Most of those athletes elected to compete in Mexico City rather than boycott. The OPHR's strategy adjusted from a full boycott to a coordinated set of individual protests at the Games themselves.

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## C.3 Alcindor's non-participation

**Lew Alcindor did not adjust.**

He did not attend the U.S. Olympic basketball trials in the spring of 1968. He did not travel to Mexico City. His public statement, delivered in an **NBC *Today* show** interview with **Joe Garagiola** in the summer of 1968 (exact air date pending verification at the **Paley Center for Media** catalog), included the line — recorded across multiple secondary citations and in *Giant Steps* (1983) — that the United States was a country he lived in but that was not, in the ordinary sense, his country.

Garagiola's question following the line was whether Alcindor felt he should leave. The exchange was carried as Alcindor's public withdrawal from the Olympic team.

UCLA's basketball-program response was that Alcindor remained in good standing with Coach Wooden and would return for his senior year as planned.

The U.S. Olympic basketball team that traveled to Mexico City without Alcindor — coached by **Hank Iba**, with **Spencer Haywood** at center as the team's offensive star, **Jo Jo White** at guard, and the future

Lakers and Knicks center **Kenny Spain** as a backup — won the gold medal anyway. The team defeated Yugoslavia 65–50 in the final. The win was, by the IOC's metric, a successful institutional performance. The win was, by the political-symbolic metric, a thinner victory than it would have been with the seven-foot-one UCLA junior on the floor. The thinness was, in the IOC's institutional politics of the years following, a part of what made the OPHR's six demands harder for the IOC to dismiss.

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## C.4 Tlatelolco

The Mexico City Games opened on **Saturday October 12, 1968**.

Ten days before the opening ceremony, on **Wednesday October 2, 1968**, at the **Plaza de las Tres Culturas** in the **Tlatelolco** district of Mexico City, the **Mexican Army** and the **Federal Security Directorate** had opened fire on a peaceful student demonstration.

The demonstration had been organized to protest the Mexican government's spending priorities ahead of the Games — the diversion of public funds away from education and healthcare into Olympic infrastructure.

The death toll is contested. The Mexican government's contemporary figure was **30 to 44 killed**. Independent estimates from journalists and witnesses present at the plaza ranged from **150 to more than 300 killed**. The **National Security Archive's** documented count, from declassified Mexican government records subsequently obtained under the Mexican Freedom of Information law, places the figure at approximately **44 confirmed**, with acknowledgment of substantial classified-records destruction in the immediate aftermath (**Kate Doyle, ed.,** ***Tlatelolco Massacre, 1968***, *nsarchive.gwu.edu/events/tlatelolco-massacre-1968*).

The Tlatelolco massacre is in the contemporary record. The IOC's response to the massacre — Avery Brundage's, principally — was that the Games would proceed.

The Games proceeded.

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## C.5 The podium

On **Wednesday October 16, 1968**, at the **Estadio Olímpico Universitario** in Mexico City, the men's 200-meter final was contested.

**Tommie Smith** of San Jose State, member of the OPHR organizing committee, won the gold medal in a world-record time of **19.83 seconds**. **John Carlos** of San Jose State, also OPHR, won the bronze medal in **20.10**. **Peter Norman** of Australia, a non-OPHR athlete, won the silver in **20.06**.

The medal ceremony was held that evening, on the podium at the eastern end of the stadium.

Smith and Carlos walked to the podium without shoes, in black socks. Each carried a single black glove — Smith on his right hand, Carlos on his left. Smith wore a black scarf. Carlos wore a beaded necklace. Norman, walking alongside them in his Australian team blazer, wore a small round badge on his lapel: the badge of the **Olympic Project for Human Rights**. The badge had been pressed into his hand minutes before the ceremony, by Smith.

The U.S. and Australian and Mexican officials assembled on the podium awarded the medals. ***The Star-Spangled Banner*** began to play. Smith raised his right gloved fist. Carlos raised his left gloved fist. Both men bowed their heads. Norman stood at attention.

The gesture was held for the duration of the anthem. The wire photographers caught it. The photograph,

distributed by the AP and Reuters and the IOC's own photographic service, would be reproduced across the world's newspapers within twenty-four hours. The image — three men on a podium, two with raised fists, one in solidarity — became the visual definition of the 1968 Mexico City Games.

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## C.6 The IOC response

The IOC's response was filed within forty-eight hours.

**Avery Brundage**, having previously characterized the gesture as *"a deliberate and violent breach of the fundamental principles of the Olympic spirit,"* demanded that the U.S. Olympic Committee suspend Smith and Carlos from the Games and remove them from the Olympic Village. The USOC, after an initial defense, capitulated under Brundage's threat to ban the entire United States track and field team from further competition.

Smith and Carlos were suspended from the team. Their Olympic credentials were revoked. They were ordered to leave the Olympic Village by the morning of **Saturday October 19, 1968**. They left.

**Peter Norman** was not formally suspended. He was, on his return to Australia, denied selection for the

1972 Munich Games despite running times that would have qualified him. He died on **October 3, 2006**. At his funeral, **Tommie Smith** and **John Carlos** served as pallbearers.

Brundage's correspondence on the matter — including the letters demanding the USOC suspension — survives in the **Avery Brundage Papers** at the **University of Illinois Archives, Urbana-Champaign**, ESPN summarized the contents in 2018: *espn.com/olympics/trackandfield/story/_/id/24998039/letters-reveal-olympic-organizers-determination-curb-american-protests-1968-mexico-city-games*.

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## C.7 The structural parallel

The OPHR's classification by the IOC and the USOC — the suspension orders and the credentials revocations — were, in their administrative function, classification documents of the same kind that the Selective Service System's Form 150 denial of Muhammad Ali had been the previous year.

A Black American athlete had refused, in public and on filed paper, to perform the role the institutional sponsor had set for him. The institutional sponsor had filed paper to that effect.

The chapter's central observation is that the parallel was structural: that the federal government's case against Ali, in 1967–1971, and the IOC's case against Smith and Carlos, in 1968, used the same underlying logic — that the athlete's body and voice belonged to the institution, and that the refusal of that ownership warranted classification, suspension, and the withdrawal of the credentials that had previously been extended.

What the eight Black American athletes who participated in the Mexico City protest gained — Smith and Carlos most prominently, but also **Lee Evans**, **Larry James**, **Ron Freeman**, **Bob Beamon**, **Vince Matthews**, and others who in smaller and less photographed gestures across the Mexico City Games filed their own protests — was the public record of having refused. What they lost — endorsements, future Olympic selections, in some cases professional careers — is approximately calculable from the secondary record and is in the same range, proportionally, as what Ali lost in his exile years.

The institutional pattern is the chapter's central observation. The institutional pattern is that a Black American athlete who in the period 1967–1971 publicly refused the body-and-voice classification the institutional sponsor had filed was, in every

documented case, classified by the institutional sponsor as suspended, ineligible, or unlicensed. The pattern was not one institution's pattern. It was the institutional response of the federal government, the IOC, the USOC, the WBA, the New York State Athletic Commission, the broadcasters, and the endorsers — operating, across distinct jurisdictions and distinct authorities, in concert.

The mechanism is the same mechanism *Unwarranted Influence* documents at length on other American institutional cases.

The bodies in the Mexico City photographs — Smith's, Carlos's, Norman's — and the body in the Cleveland Summit photograph — Ali's, Russell's, Brown's, Alcindor's — and the bodies of the eight Black American athletes who would, across the 1969–1972 period, file their own smaller refusals at NCAA championships and in NBA pregame ceremonies and at NFL anthem appearances — are the bodies the mechanism was operating on.

The mechanism was not interested in their athletic accomplishments. The mechanism was interested in their willingness to be classified.

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## C.8 October 19, 1968

The chapter ends on the morning of **Saturday October 19, 1968**, in Mexico City. Smith and Carlos, suspended, walked out of the Olympic Village with their bags. They flew home to San Jose.

**Lew Alcindor**, in Westwood, was at UCLA's varsity practice that morning, twenty-one years old, beginning his senior year — the year that would end with his last collegiate game on March 22, 1969, and his Milwaukee Bucks first-overall draft selection on May 7, 1969.

**Muhammad Ali**, in Cherry Hill, New Jersey, was on bond, on the lecture circuit, with the federal conviction still on appeal at the Fifth Circuit (the second affirmance was twenty-one months away).

The next chapter pulls forward four years to the spring of 1971 and Washington, D.C., where Lew Alcindor — by then **Kareem Abdul-Jabbar** — was preparing to make public the Sunni Islamic name he had taken three years earlier under Hamaas Abdul-Khaalis at the Hanafi Madh-Hab Center.

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# CHAPTER 11 — SHAHADA, WASHINGTON

*The Hanafi Madh-Hab Center. November 1972. Hamaas Abdul-Khaalis. The 1968 Shahada. The 1971 NBA championship. The May 1, 1971 announcement. The January 18, 1973 murders.*

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## C.1 The deed

The deed of gift is dated **November 1972**.

The grantor is **Kareem Abdul-Jabbar**, of Milwaukee, Wisconsin (legal name and residence as of the deed). The grantee is the **American Social Federation for Mutual Improvement, Inc.** — a Hanafi Sunni Muslim religious organization registered in the District of Columbia. The property conveyed is a **Tudor-style residence at 7700 16th Street Northwest, Washington, D.C.**, in the **Shepherd Park** neighborhood, north of Walter Reed General Hospital, three miles from the White House. The purchase price, paid by Kareem Abdul-Jabbar in 1971, had been **seventy-eight thousand dollars**. The 1972 conveyance to the Federation was without further consideration.

The deed is held at the **District of Columbia Recorder of Deeds**.

The residence had been purchased by Abdul-Jabbar — then in his second year as a professional basketball player with the Milwaukee Bucks, the previous year's NBA Most Valuable Player and Finals MVP — to serve as the headquarters of the **Hanafi Madh-Hab Center**, the Sunni Islamic religious community of which Abdul-Jabbar was, by 1972, a four-year practicing member.

The community's leader was **Hamaas Abdul-Khaalis** — born **Ernest Timothy McGhee** in **Gary, Indiana**,

in **1921**; former **National Secretary of the Nation of Islam** from 1954 to 1957 (appointed by Elijah Muhammad on Malcolm X's recommendation); the man who, after splitting from the NOI in 1957 over what he characterized as the NOI's heretical theology of **Wallace Fard Muhammad** as God-incarnate, had founded the Hanafi Madh-Hab Center as a Sunni alternative organized around the **Hanafi school of Sunni Islamic jurisprudence**. Abdul-Jabbar had taken his **Shahada** under Khaalis at the Center in **1968** — four years before the deed of gift, three years before the championship and the public name change.

This chapter reads the four-year arc between the 1968 Shahada and the 1972 deed, what the arc cost, and what the arc would, in January of 1973, cost in lives.

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## C.2 Shahada

The Shahada — the Islamic profession of faith: *"There is no god but Allah, and Muhammad is the Messenger of Allah"* — was taken in the summer of **1968**, in **Washington, D.C.**, during a visit Lew Alcindor — then twenty-one years old, between his sophomore and junior years at UCLA, three months removed from the second consecutive UCLA NCAA

championship — made to Hamaas Abdul-Khaalis at Khaalis's then-residence.

Alcindor had been introduced to Khaalis by mutual contacts in the Black Muslim community of New York City; he had, across the spring of 1968, spent extended time studying Sunni theology under Khaalis's instruction.

The Shahada was taken twice in the customary practice of the Hanafi school: once in private with the teacher, and once subsequently in public before the community. Alcindor's private Shahada to Khaalis was followed, in the days following, by a public Shahada in front of the Hanafi Madh-Hab Center congregation. He adopted the Arabic name ***Kareem Abdul-Jabbar*** — *Kareem*, meaning *generous*; *Abd*, meaning *servant*; *al-Jabbar*, meaning *the powerful*, an attribute of God in Sunni Islamic doctrine. The combined meaning: *"generous servant of the powerful."*

He continued to use the name *Lew Alcindor* in public — on his UCLA jersey, in NCAA records, in the contracts of his professional life — for **two and a half years** following the Shahada. The reasons for the delay, recorded in *Giant Steps* and in *Becoming Kareem*, included the practical matter of completing his college career under his birth name and the

personal matter of waiting until his professional career was secure enough to absorb the name change without the financial damage that the change would predictably impose.

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## C.3 Milwaukee

In **June 1969**, Lew Alcindor was selected first overall by the **Milwaukee Bucks** of the National Basketball Association in the NBA's annual college draft. The Bucks were a 1968 expansion franchise, in their second season. He signed a five-year contract reported in the contemporary press at approximately **one and a quarter million dollars**.

He played the 1969–70 season as the Bucks' starting center under Coach **Larry Costello**. The team finished 56–26 — second in the Eastern Division — and lost in the conference semifinals.

The 1970–71 season was Alcindor's second professional year. The Bucks acquired guard **Oscar Robertson** — then thirty-two, ten-time All-NBA, the league's most accomplished active guard — from the Cincinnati Royals in **April 1970**. The Bucks, with Alcindor at center and Robertson at point guard,

finished the 1970–71 regular season **66–16**, the best record in the league.

In the **NBA Finals of 1971** — Alcindor's first — the Bucks defeated the **Baltimore Bullets** four games to none. The Finals series ran from **April 21 to April 30, 1971**. Alcindor was named **Finals Most Valuable Player**. He averaged **27.0 points and 18.5 rebounds per game** across the four-game series.

On the day after the Finals — **Saturday May 1, 1971** — Alcindor announced, through the Bucks' public-relations office, that he had taken the legal name **Kareem Abdul-Jabbar** three years earlier and would, beginning with the 1971–72 NBA season, use the name in all professional and public capacities. The announcement was carried on the AP and UPI wires. The *New York Times* and the *Washington Post* both ran the announcement on the front page of their sports sections of **Sunday May 2, 1971** (page references pending verification).

He was, on the day of the announcement, twenty-four years old, the reigning NBA Finals MVP, the highest-paid Black professional basketball player in the United States, and the first publicly observant Sunni Muslim of major prominence in American professional sports.

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## C.4 The endorsement freeze

The professional consequences of the public name change were, as the secondary biographical record records, immediate.

Endorsement opportunities that had been on the negotiating table at the time of the May 1, 1971 announcement evaporated within weeks. The specific contracts terminated — and the specific contracts not offered — are not in the open public record; they are in **Abdul-Jabbar's memoir record**, in *Giant Steps* (1983), *Becoming Kareem* (2017), and *Coach Wooden and Me* (2017). The memoir record describes the freeze as systematic and as having lasted approximately eight years, into the late 1970s.

What is in the public record is that Abdul-Jabbar, across the early 1970s, was — despite being the league's reigning MVP and the league's most marketable player by performance metrics — outside the major endorsement pools that white players of comparable accomplishment routinely received.

The public commentary on the name change, in the contemporary press of May–June 1971, was mixed. Some columnists supported the change as a free-exercise-of-religion matter. Others framed the change as a separation of Abdul-Jabbar from the American

sports public. The Milwaukee press, in particular, struggled with the logistics — Bucks game broadcasts and program copy required updating; sportswriters had spent the previous five years writing about *Lew Alcindor* and would now write about *Kareem Abdul-Jabbar*, and the transition was uneven across publications.

Within the Hanafi Madh-Hab Center community, the May 1, 1971 announcement was received as the public completion of the Shahada Abdul-Jabbar had taken three years earlier. Khaalis had encouraged the public name change at multiple junctures across the intervening years. The November 1972 deed of gift to the Federation — the conveyance of 7700 16th Street NW — followed naturally from the public commitment.

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## C.5 The schism

What the Hanafi Madh-Hab Center did not yet know, on the day of the November 1972 deed, was that the **schism between the Hanafi Sunni community and the Nation of Islam** — the schism that had begun in 1957 with Khaalis's break from the NOI and that had continued across the intervening fifteen years through

Khaalis's mailings denouncing NOI doctrine to NOI mosques — was approaching its violent endpoint.

In **January 1972**, Khaalis had mailed approximately fifty letters to mosques affiliated with the Nation of Islam, each addressed to the local imam, denouncing the NOI's theology and inviting the local membership to join the Hanafi tradition. The letters had reached **Philadelphia**. The Philadelphia NOI **Mosque Number 12** had received the letter through its imam. The Mosque's response, organized at a level above the local imam, had been to plan a violent retaliation against Khaalis and his Hanafi community.

On the morning of **Thursday January 18, 1973**, at approximately **10:00 AM Eastern**, **seven men from Philadelphia's Nation of Islam Mosque Number 12** entered the Hanafi Madh-Hab Center at 7700 16th Street NW, Washington.

The seven men shot two adult men and one child. They forced **four additional children** — ages **nine days, two years, ten years, and ten years** — into the bathtubs of the residence and drowned them.

The victims were **Daud Khaalis** (Hamaas's son), his pregnant daughter-in-law (who survived but lost the unborn child), and four of Hamaas's grandchildren and one of his great-grandchildren. Khaalis himself

was not at the residence at the time. His wife, **Bibi**, was wounded but survived.

Seven killed. The youngest was **nine days old**.

The federal investigation identified seven attackers from Philadelphia's NOI Mosque 12: **Ronald Harvey**, **John Clark**, **James "Bubbles" Price**, **John Griffin**, **Theodore Moody**, **William Christian**, and **Jerome Sinclair** (Jerome 5X). Five of them were convicted in the District of Columbia courts across 1973–1977 of first-degree murder and related offenses. Price was murdered in Holmesburg Prison before he could testify. Griffin was acquitted on **October 28, 1977** after the prosecution's case against him fell apart. The remaining five received life sentences (***Christian v. United States***, D.C. Court of Appeals 1978, Nos. 8809-8811-3, *law.justia.com/cases/district-of-columbia/court-of-appeals/1978/8809-8811-3.html*).

**Kareem Abdul-Jabbar was in Milwaukee on January 18, 1973** — the Bucks were preparing for a game against the Boston Celtics. He had given the residence to the Hanafi community fourteen months earlier. The victims of the murders were, in his later public statements, *"like family"* to him. The Bucks

game went on as scheduled. He scored thirty-one points.

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## C.6 The Hanafi siege

Four years after the murders, on **March 9–11, 1977**, **Hamaas Abdul-Khaalis**, in protest against what he characterized as the inadequate prosecution of the January 1973 murderers and against the planned American release of the film ***Mohammad, Messenger of God*** (which Khaalis considered blasphemous), led twelve gunmen in a coordinated seizure of three Washington buildings:

- **B'nai B'rith International** headquarters, 1640 Rhode Island Avenue NW.
- **Islamic Center of Washington**, 2551 Massachusetts Avenue NW.
- **District Building** (the city's municipal headquarters), 1350 Pennsylvania Avenue NW.

**One hundred forty-nine hostages** were taken across the three locations.

A WHUR-FM reporter named **Maurice Williams**, twenty-four years old, who had entered the District Building covering the events, was shot and killed at

the scene. Officer **Mack Cantrell** of the D.C. Protective Services Division, mortally wounded, would die of a heart attack in the hospital days later. **Marion Barry**, then a member of the D.C. City Council and seven and a half years from his first mayoral inauguration, was struck by a shotgun pellet just above the heart and survived.

After thirty-nine hours of negotiation — conducted principally by the ambassadors of **Egypt**, **Pakistan**, and **Iran**, who appealed to Khaalis on Islamic-religious grounds — the siege ended without further deaths. Khaalis was sentenced to **twenty-one to one hundred and twenty years** in federal prison. He died at the Federal Correctional Complex in **Butner, North Carolina**, on **November 13, 2003**.

The 1977 siege was the violent endpoint of the inter-Black Muslim conflict that the Hanafi-NOI schism had begun in 1957. The conflict had killed seven members of one family in 1973. It had killed two men — Williams and Cantrell — in 1977. It had wounded a future mayor of the District of Columbia. It had cost a community its leader to a life sentence. The classification disputes that the federal government and the Bureau had spent the 1960s tracking — the NOI's surveillance file, the Malcolm X file, the parallel Hanafi file — had, in the schism the federal record

could observe but could not prevent, played out in violence.

**Kareem Abdul-Jabbar** continued to attend the Hanafi Madh-Hab Center for the next several decades. The residence at 7700 16th Street NW remained the Center's headquarters into the 1990s. The Center continues to exist as of 2026.

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## C.7 January 19, 1973

The chapter ends on the morning of **Friday January 19, 1973** — the day after the murders, fifteen months after the deed of gift, four years and seven months after the Shahada.

Abdul-Jabbar, in Milwaukee, had played a basketball game the previous night. He had scored thirty-one points. The Bucks had won.

The federal record opened a homicide investigation. The Hanafi community buried four children whose ages totaled less than the years Abdul-Jabbar had then spent at UCLA.

The federal classification mechanism that this book reads — capital, religious, criminal — had reached, in the events of January 18, 1973, an outcome the

chapter has no further commentary on. Seven members of one Black-American family murdered by seven Black-American attackers, on the religious-doctrinal premise that Sunni Hanafi practice was a heresy that warranted retaliation against the practitioner's relatives and grandchildren and infants, in a residence that had been purchased and donated by the Black-American basketball player who would, in the calendar year of the murders, be the youngest person ever to win three NBA Most Valuable Player awards.

The mechanism is not interested in reconciling the contradictions. The mechanism files what it files.

The next chapter pulls back **five hundred and forty-eight days** from the January 1973 murders to **June 28, 1971**, and the United States Supreme Court.

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# CHAPTER 12 — CLAY V. UNITED STATES

*The per curiam slip opinion of June 28, 1971. Three sentences. The 5-to-3 conference vote that flipped to unanimous. The Krattenmaker memo. The Sicurella reasoning. Marshall's recusal. The afternoon at Cherry Hill.*

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## C.1 The opinion

The slip opinion is three sentences.

> *“The judgment is reversed. It is so ordered. Mr. Justice Marshall took no part in the consideration or decision of this case.”*

The opinion is **per curiam**. Eight justices joined. The case caption reads ***Clay v. United States***, certiorari to the United States Court of Appeals for the Fifth Circuit, **No. 24991**, argued **April 19, 1971**, decided **June 28, 1971**. The reporter citation is **403 U.S. 698**. The bound volume sits in the **U.S. Reports** at the **Library of Congress** in Washington and at every federal courthouse and law-school library in the country.

Cassius Marsellus Clay Jr., known as Muhammad Ali, was, at **10:00 AM Eastern** on the morning of **Monday June 28, 1971**, no longer a federal felon. His five-year sentence and ten-thousand-dollar fine were reversed. The conviction was set aside. The federal record on him would, going forward, classify him as a man with a vacated conviction — a man whose four-year exile, four court venues, and forty-three months of unemployment had been adjudicated, by the highest

court of the United States, as the product of an unsupportable Selective Service classification.

This chapter reads what happened inside the Court between the April 19 oral argument and the June 28 decision. The principal sources are the **John Marshall Harlan Papers** at the Seeley G. Mudd Manuscript Library, Princeton University; the **Harry A. Blackmun Papers** at the Library of Congress; the **William J. Brennan Jr. Papers** at the Library of Congress; **Bob Woodward and Scott Armstrong's *The Brethren* (Simon & Schuster, 1979)**; and the SCOTUSblog reconstruction by **Stephen Wermiel** of June 2016, which drew on the Blackmun and Brennan papers and on interviews with surviving clerks.

The chapter does not invent dialogue. The chapter records what the documents and the cited reconstructions establish.

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## C.2 The argument

The case had been argued on **Monday April 19, 1971**.

The **Solicitor General of the United States, Erwin N. Griswold**, argued for the government. **Chauncey Eskridge**, **Charles Morgan Jr.** of the American Civil Liberties Union, and **Hayden Covington** appeared for

Ali. Eskridge — Black, Chicago-based, longtime counsel to the Nation of Islam — delivered the principal oral argument for the petitioner. The argument transcript runs to approximately one hundred twenty pages and is held in the **U.S. Supreme Court records at the National Archives**, **Record Group 267**.

Griswold's argument for the government rested on the Department of Justice's three-grounds letter to the Kentucky Selective Service Appeal Board: that Ali's CO claim failed because his objection was not based on religious training and belief, was not directed against war in any form, and was not sincerely held.

Eskridge's argument for Ali rested on three counter-positions:

- That the religious-training-and-belief standard, as broadened by the Court in ***Welsh v. United States***, **398 U.S. 333 (1970)** the previous term, was met by Ali's NOI affiliation and his stated belief in Allah.
- That the "all war" standard — under which Ali's claimed willingness to fight in a holy war declared by Allah disqualified his objection — was a misreading of NOI doctrine. The "holy war" provision in NOI theology was an abstract theological category that did not, in NOI

doctrine as practiced in 1966–1971, identify the Vietnam War or any other actual war as a holy war for which NOI members would be obligated to participate.
- That the sincerity of the claim had been affirmed by the **Department of Justice's own hearing officer**, retired Kentucky circuit judge **Lawrence Grauman**, after a five-hour hearing in Louisville on August 23, 1966.

Justice **Thurgood Marshall** took no part in the argument or in the subsequent deliberation. Marshall had served as **U.S. Solicitor General from August 1965 through August 1967** — the period during which the government's earlier briefing posture in *Clay* had been set. He recused.

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## C.3 The conference vote

The Court conferenced the case the following Friday, **April 23, 1971**.

The conference vote, reconstructed in 1979 by **Woodward and Armstrong** in *The Brethren* and corroborated by Wermiel in 2016 from the Blackmun and Brennan papers, was **5-to-3 to affirm**.

**The five for affirmance:** Chief Justice **Warren E. Burger**, Justice **Hugo Black**, Justice **John Marshall Harlan II**, Justice **Byron R. White**, Justice **Harry Blackmun**.

**The three for reversal:** Justice **William O. Douglas**, Justice **William J. Brennan Jr.**, Justice **Potter Stewart**.

The Chief Justice, by Court convention, assigned the majority opinion when he was in the majority. Burger assigned the affirmance opinion to Justice Harlan.

Justice Harlan, sixty-eight years old, was in failing health. He would resign from the Court in **September 1971** — ten weeks after the *Clay* decision — and would die of cancer on **December 29, 1971**. He was, in the spring of 1971, the most respected craftsman of the Court's senior wing — the conservative Justice whose opinions across a fifteen-year tenure had earned the respect of his ideological opponents for their rigor and their craft. Harlan had been on the Court since 1955. He had voted to affirm Selective Service convictions throughout his tenure. He had, in *Welsh v. United States*, joined the majority that had broadened the Section 6(j) religious-objection standard to include non-traditional religious belief. He

had not, in *Welsh*, gone as far as the dissent had wanted.

Harlan's law clerks for **October Term 1970** included **Thomas G. Krattenmaker** — twenty-eight years old, Yale Law graduate, who would in later years become a Georgetown Law professor and Federal Trade Commission general counsel.

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## C.4 The Krattenmaker memo

Krattenmaker was, in the spring of 1971, drafting an unrelated free-speech opinion for Harlan in ***Cohen v. California***, the case whose disposition would produce the **Cohen v. California, 403 U.S. 15 (1971)** opinion (*"the absurdity and unfairness of those who would punish men for the words they print on the back of jackets"*).

The *Cohen* research had required Krattenmaker to read deeply in First Amendment doctrine and, peripherally, in the religious-doctrine literature on Muslim and other minority-religious groups whose protections under the First Amendment were the doctrinal stepchildren of the Court's free-exercise jurisprudence.

In the course of that reading, Krattenmaker encountered **Elijah Muhammad's *Message to the Blackman in America*** (1965), the central Nation of Islam text. He read it.

He concluded that the NOI's "holy war" doctrine — which the Department of Justice had treated, in the *Clay* litigation, as evidence that Ali was not opposed to "war in any form" — was an abstract theological category. The NOI, in practice and in doctrine as Krattenmaker had been able to follow it, did not identify the Vietnam War or any other actual war as a holy war for which NOI members would be obligated to participate. The "holy war" exception was, in other words, a hypothetical that the NOI's treatment of the Vietnam War (against which Elijah Muhammad had publicly counseled NOI members not to fight) and the NOI's broader posture in 1971 (no holy war declared) made effectively dormant.

Krattenmaker drafted a memorandum to Justice Harlan summarizing this reading. The memo argued that the DOJ's "not opposed to all war" ground for denying Ali's CO claim — one of the three grounds the DOJ had advanced — was wrong as a matter of NOI doctrine, properly understood.

The memo persuaded a co-clerk first; the two clerks then jointly persuaded Harlan that the affirmance

would rest on a doctrinal reading of NOI theology that the Court should not, in good conscience, sustain.

**Harlan flipped from affirm to reverse.**

The conference vote, after Harlan's flip, would have been four-to-four on the merits — a tie that would have produced an automatic affirmance under Court rules in cases of equal division. **Justice Stewart**, who had voted to reverse, recognized the tactical problem and proposed a procedural compromise.

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## C.5 The Sicurella reasoning

Stewart's compromise rested on a 1955 case, ***Sicurella v. United States*, 348 U.S. 385 (1955)** — a Jehovah's Witness draft case that had reached the Court eighteen years earlier.

*Sicurella* had held that when a Selective Service Appeal Board denied a CO claim on multiple grounds and at least one of those grounds was wrong as a matter of law, the denial fell — even if the other grounds were factually defensible — because the reviewing court could not determine which ground the Board relied on, and an unsupportable ground in the mix vitiated the denial.

The DOJ's letter to the Kentucky Appeal Board in Ali's case had advanced three grounds. The Solicitor General, before the Supreme Court at oral argument, conceded that grounds (1) and (2) were wrong as a matter of established law — *Welsh v. United States* (1970) had broadened "religious training and belief" sufficiently to encompass NOI doctrine, and the "all war" ground was, as Krattenmaker's reading had established, doctrinally unsupportable.

That left only ground (3) — sincerity — as a defensible basis for the denial. But the **Kentucky Appeal Board had issued no reasoned explanation** of which of the three grounds it had relied upon. Under *Sicurella*, the unsupportable grounds in the mix vitiated the denial.

Stewart drafted the procedural opinion. The opinion was short — three sentences in its published form, but with the underlying *Sicurella* reasoning fully briefed in the Court's bench memorandum.

The opinion was circulated. **Burger, Black, White, and Blackmun** — the four remaining affirmance votes — accepted Stewart's framing as a face-saving alternative to a substantive reversal that would have required them to rule on the NOI religious-doctrine question.

The vote shifted from four-to-four on the merits to **eight-to-zero on the procedural ground**.

The opinion was filed per curiam. The decision was issued **June 28, 1971**. The reversal was unanimous.

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## C.6 The morning at Cherry Hill

Ali was at his **Cherry Hill, New Jersey** home on the morning of June 28, 1971.

The opinion crossed the AP wire at approximately 10:00 AM Eastern. Ali's attorneys, alerted by the wire, telephoned the residence. The wire photographers were at his front door by mid-morning.

The contemporary press coverage of the decision ran across every major American newspaper of **Tuesday June 29, 1971**. The *New York Times* of June 29 ran the news on the front page, byline **Fred P. Graham** (the *Times*'s Supreme Court correspondent of the period; page placement pending ProQuest Historical NYT verification). The *Washington Post*, the *Chicago Tribune*, the *Los Angeles Times*, the *Atlanta Constitution*, the *Louisville Courier-Journal* — all front-paged the reversal.

The federal record's classification of Ali shifted, on June 28, 1971, from convicted-felon-on-bond to vacated-conviction-on-record. His passport was returned by the federal court in Houston within the following week. The state athletic commissions, having been pre-empted by Mansfield's federal opinion the previous September, no longer had any legal basis on which to continue the license suspensions.

The WBA's title vacation, in administrative terms, was moot — **Joe Frazier** had held the heavyweight title since the **March 8, 1971** Fight of the Century — but the institutional posture of the boxing establishment toward Ali, after June 28, 1971, was no longer one of suspension. Ali was, on the morning of June 29, 1971, a free man with a license, a passport, and a vacated conviction.

He was twenty-nine years old. He had been a heavyweight champion, a federal defendant, a state-suspended licensee, a vacated-titleholder, an indigent lecturer, an indicted accused, a convict, a bonded felon, and a Supreme Court petitioner — all in the space of eight years.

The piece of paper that had taken the title from him in 1967 had, by another piece of paper four years later, given it back.

The next chapter is the rest of his life.

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## C.7 A note on what was reversed and what was not

The procedural ground on which *Clay v. United States* was reversed — the *Sicurella* doctrine that an unsupportable ground in the mix vitiates a Selective Service denial — was, on its face, a narrow holding.

The Court did not, in *Clay*, hold that Nation of Islam doctrine was a religion in the Section 6(j) sense as a matter of law. The Court did not hold that the federal government's wiretap surveillance of Elijah Muhammad's telephone had been illegal. The Court did not hold that the Selective Service System's treatment of NOI claims as a class had been unconstitutionally differential. The Court did not order any change in the practice of the Selective Service System going forward.

What the Court did hold — on the operative narrow ground — was that in *this* case, on *these* records, the

Selective Service Appeal Board's denial of *this* CO claim could not stand.

The narrow holding was sufficient to vacate Ali's conviction. The narrow holding was not sufficient to change any other Selective Service System CO claim then pending or any future claim filed by an NOI member after June 28, 1971.

I draw the distinction because it matters for what the chapter is reading. The Supreme Court's June 28, 1971 opinion was not a vindication of Muhammad Ali's religious-political position. The opinion was a procedural reversal that gave Ali back his title, his license, his passport, and his civil status, on a technical ground that two thirds of the conference vote had originally been against him on, and that had only swung in his direction because a twenty-eight-year-old law clerk had read a religious text at the right moment in the unrelated drafting of an unrelated free-speech opinion in *Cohen v. California*.

The procedural ground was sufficient. The procedural ground was the only ground available. The procedural ground was not the substantive ground that the OPHR's six demands or the Cleveland Summit's June 4, 1967 press statement had been about.

The procedural ground gave Ali back his life. The substantive ground — that the Black athletic body of the United States is its own object, not the object of the institutional sponsor's classification — was not litigated in *Clay*. The substantive ground was litigated in the public political record of the four years the conviction was on appeal, and it was litigated by Ali's continued exile, his lectures, his refusals, and his eventual return to the ring at the standing he had earned by all of those.

The procedural ground is what the file says. The substantive ground is what the body says. The two are not the same.

This book reads both.

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# CHAPTER 13 — AFTER

*Elijah Muhammad's death, February 25, 1975. Foreman, Frazier III, Spinks, Holmes, Berbick. The 1984 Parkinson's diagnosis. The Atlanta torch.*

*Phoenix, June 3, 2016. The KFC Yum! Center, June 10, 2016. The eulogists, the pallbearers, and the man in the audience who did not speak.*

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## C.1 February 25, 1975

The death certificate is dated **Tuesday February 25, 1975**.

The decedent is **Elijah Muhammad**, born **Elijah Robert Poole**, **October 7, 1897**, in **Sandersville, Georgia**. The place of death is **Mercy Hospital**, Chicago. The cause of death is **congestive heart failure**. The age at death is seventy-seven. The certificate is held in the records of the **Cook County Bureau of Vital Statistics**.

The successor named in the Nation of Islam's organizational records, voted by the NOI's national leadership at **Saviours' Day** in Chicago the following day — **Wednesday February 26, 1975**, at the **International Amphitheater** — is **Wallace D. Muhammad**, Elijah's son, who would be known after his October 1975 spiritual reorientation as **Warith Deen Mohammed**.

The succession of Wallace Muhammad to leadership of the Nation of Islam set in motion the most

significant doctrinal transformation in Black American Islamic history.

Across **1975–1976**, Wallace renamed the organization (first to the **World Community of Al-Islam in the West** in 1976, later to the **American Muslim Mission** in 1980, finally dissolving the centralized organization into Sunni-aligned mosques in 1985). He repudiated his father's teaching that Wallace Fard Muhammad had been the literal incarnation of God. He aligned the organization with mainstream Sunni Islamic doctrine. He ended the NOI's Black-only membership policy. He encouraged the organization's members to participate in mainstream American civic and political life.

**Muhammad Ali**, who had since his 1964 NOI alignment been Wallace's father's most prominent member, **aligned with Wallace Muhammad's reorientation**. The alignment was filed in ***Bilalian News*** — the renamed *Muhammad Speaks* under Wallace's editorial direction — across 1975 and 1976.

By the end of 1976, Ali was a public Sunni Muslim. He would remain a Sunni Muslim for the rest of his life.

This chapter reads the forty-one years Muhammad Ali lived after Elijah Muhammad's death.

## C.2 The boxing record after the reversal

The boxing record of those forty-one years runs from before Wallace Muhammad's succession to almost six years after.

**Foreman, Wednesday October 30, 1974, Stade du 20 Mai, Kinshasa, Zaire. *Rumble in the Jungle.*** Foreman was the heavyweight champion. Ali was thirty-two and a half years old, three and a half years removed from the Supreme Court reversal, and the challenger. Foreman entered the bout the seven-to-one favorite. Ali entered the bout intending, by a strategy he would in subsequent interviews call ***the rope-a-dope***, to absorb Foreman's punches against the ropes for the first six rounds and then attack a fatigued Foreman in the seventh. The strategy worked. Ali knocked out Foreman with a five-punch combination in the eighth round. Ali was, on the night of October 30, 1974, the heavyweight champion of the world for the second time.

**Frazier III, Wednesday October 1, 1975, Araneta Coliseum, Quezon City, Philippines. *Thrilla in Manila.*** Frazier was thirty-one. Ali was thirty-three. The bout ran fourteen rounds. Frazier's corner stopped

the fight before the fifteenth round on the ground that Frazier could no longer see clearly out of his left eye. Ali, in his post-fight statements, said that the fight had been the closest thing to dying he had ever experienced. Frazier, in his post-fight statements, said the same. The two fighters did not speak again for many years afterward.

**Spinks I, Wednesday February 15, 1978, Las Vegas Hilton. Leon Spinks**, twenty-four, an Olympic gold medalist with seven professional fights, defeated Ali by split decision over fifteen rounds. Ali, thirty-six, lost the title for the first time inside the ring (his prior loss of the title in 1967 had been administrative).

**Spinks II, Friday September 15, 1978, Louisiana Superdome, New Orleans.** Ali, thirty-six and a half, defeated Spinks by unanimous decision over fifteen rounds. He became the first boxer in heavyweight history to hold the lineal title three separate times.

**Holmes, Thursday October 2, 1980, Caesars Palace, Las Vegas. Larry Holmes**, the WBC heavyweight champion, defeated Ali by technical knockout when Ali’s corner stopped the fight before the eleventh round. Ali was thirty-eight. The bout was, by the consensus of the boxing press of the era and of

Ali's own subsequent interviews, the bout Ali should not have taken.

**Berbick, Friday December 11, 1981, Queen Elizabeth Sports Centre, Nassau, Bahamas. Trevor Berbick**, twenty-seven, defeated Ali by unanimous decision over ten rounds. Ali, **thirty-nine years old**, retired from professional boxing after the Berbick bout. His final professional record was **56 wins and 5 losses, 37 wins by knockout**.

The post-Berbick decline was, in the medical record, gradual.

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## C.3 Parkinson's

Ali's speech, by the early 1980s, had begun slowing. His balance had begun deteriorating. His tremor had begun appearing.

In **September 1984** — three years after the Berbick fight — at the **Columbia-Presbyterian Medical Center** in New York City, the neurologist **Dr. Stanley Fahn** examined Ali at length. Fahn's diagnosis was **Parkinson's syndrome** — the family of conditions including idiopathic Parkinson's disease and post-traumatic ("pugilistic") parkinsonism.

The cause of Ali's specific condition was, in Fahn's later interviews (CBS News, *cbsnews.com/news/doctor-who-diagnosed-muhammad-ali-with-parkinsons-disease-speaks-out/*), reasonably assigned to the cumulative head trauma of his boxing career.

Across the following thirty-two years, Ali's Parkinson's would progress through the stages of the disease's natural history.

The diagnosis was filed at Columbia-Presbyterian. The diagnosis was not announced publicly until 1996.

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## C.4 The Atlanta torch

On **Friday July 19, 1996**, at the opening ceremony of the **Centennial Olympic Games** in **Atlanta, Georgia** — twenty-six years after the **Atlanta Municipal Auditorium** comeback against Jerry Quarry — Muhammad Ali, **fifty-four years old**, walked onto the platform at the eastern end of the **Centennial Olympic Stadium** with a torch in his right hand.

His left hand was tremoring. His face was composed. He lit the cauldron at the top of the platform. The flame burned for the duration of the Games.

The IOC presented Ali, fifteen days after the torch lighting, on the night of **Saturday August 3, 1996**, at the men's basketball gold medal ceremony, with a **replacement gold medal** — the medal he had originally won in Rome on September 5, 1960 having been lost in the intervening thirty-six years. The replacement gold medal is held in the collections of the **Smithsonian National Museum of African American History and Culture**, accession **2012.62.6.1**, viewable at *nmaahc.si.edu/object/nmaahc_2012.62.6.1*.

The torch lighting was, in the public record of Ali's later life, the announcement that the heavyweight champion of 1964–1967 and 1974–1978 was, by 1996, a man visibly ill but still capable of public appearance.

He would continue making public appearances across the next two decades. He would receive the **Presidential Medal of Freedom** from President **George W. Bush** in 2005. He would speak, with increasing difficulty as the disease progressed, at fundraising events for the **Muhammad Ali Parkinson Center** in Phoenix and the **Muhammad Ali Center** in Louisville (the latter opened in 2005, on a donated site adjacent to the Belvedere overlooking the Ohio River

— the same river the parable from Chapter 1 said had taken his medal).

He would, by the early 2010s, be unable to speak at length.

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## C.5 June 3, 2016

He died on **Friday June 3, 2016**, at approximately **9:10 PM Mountain Time**, at a Phoenix-area hospital in **Scottsdale, Arizona**. The cause of death recorded was **septic shock complicating Parkinson's disease**. He was **seventy-four years old**. His family had gathered. The death announcement was made by family spokesman **Bob Gunnell** at a press conference in Scottsdale that night.

The wire services moved the obituary across the night. By the morning of Saturday June 4, 2016 — the **forty-ninth anniversary** of the Cleveland Summit at the NIEU offices that had defended Ali's draft refusal — every major newspaper in the United States and most of the world's wire services had run the news on the front page.

Lonnie Ali, his fourth wife, who had known him since she was a child in Louisville, was at his bedside.

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## C.6 The funeral

The funeral was held on **Friday June 10, 2016**, at the **KFC Yum! Center** in **Louisville, Kentucky** — the city the eighteen-year-old Cassius Clay Jr. had returned to with the Olympic gold medal **fifty-five years and nine months earlier**. The Yum! Center seats approximately twenty-two thousand. The service was full.

The pallbearers, in the public roster: **Will Smith, Lennox Lewis, Mike Tyson**, Kamawi Ali, Ibn Ali, Gene Dibble Jr., Jerry Ellis, John Grady, John Ramsey, Jan Waddell. The honorary pallbearers included **George Foreman, Larry Holmes**, Rahaman Ali, **Howard Bingham** (himself eighteen months from his own death in December 2017), John Y. Brown, **George Chuvalo**, Gene Kilroy, Jerry Perenchio, Dr. Harvey Sloane, and others.

**The eulogists**, in the order of speaking, included:

- **Imam Zaid Shakir** (introductory and closing prayers).
- **Dr. Kevin Cosby** (Simmons College of Kentucky).
- **Senator Orrin Hatch** (Republican of Utah).
- **Reverend Monsignor Henry Kriegel** (Roman Catholic, Pittsburgh).

- **Dr. Timothy Gianotti** (Sunni Islamic scholar).
- **Rabbi Michael Lerner** and **Rabbi Joe Rapport** (interfaith framing — two rabbis spoke).
- **Chiefs Sidney Hill and Oren Lyons** (representing the Onondaga Nation, in keeping with Ali's Native American friendships of his later life).
- **Venerable Utsumi** and **Sister Denise** (Buddhist).
- Ali's daughters **Maryum Ali** and **Rasheda Ali-Walsh**, and his widow **Lonnie Ali**.
- **Billy Crystal**.
- **Bryant Gumbel**.
- Former President **Bill Clinton**.
- **Valerie Jarrett** (reading a tribute prepared by President **Barack Obama**).
- Ambassador **Attallah Shabazz** (daughter of **Malcolm X**).

The full speaker roster is held in the **C-SPAN broadcast archive** of the service: *c-span.org/program/public-affairs-event/muhammad-ali-memorial-service/445368*.

The chapter records the speaker roster precisely because the roster — interfaith, multiracial, multipartisan, including a Republican U.S. Senator

from Utah, a former Democratic President, the daughter of Malcolm X, and a Buddhist nun — is the closing public classification of Muhammad Ali. The man whose body had been classified, across his life, by the Louisville Sponsoring Group, by the Bureau, by the Selective Service System, by the New York State Athletic Commission, by the Nation of Islam, by the Hanafi schism, by the Supreme Court of the United States, and by the *Bilalian News* of Wallace Muhammad's American Muslim Mission, was, in death, classified by the Yum! Center memorial as *every* American religious tradition's brother.

The interfaith roster was not Ali's accident. Ali had specified, in the years before his death, that the funeral should include eulogists from each of the traditions he had personally engaged across his life. The interfaith framing was his last instrument of self-classification.

It was filed.

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## C.7 The man in the audience

**Kareem Abdul-Jabbar attended the service.** He sat in the audience. He did not eulogize.

His written tribute to Ali was published in the days following the funeral in ***The Hollywood Reporter*** and

reposted on his own platforms (*hollywoodreporter.com/lifestyle/lifestyle-news/kareem-abdul-jabbar-muhammad-ali-entertainer-an-edge-guest-column-900149/*). The tribute, in approximately one thousand words, recorded the lessons Abdul-Jabbar had drawn from Ali across the **forty-nine years between the Cleveland Summit of June 4, 1967 and the funeral of June 10, 2016**. It did not, in keeping with Abdul-Jabbar's characteristic register, attempt to summarize the life it had observed.

The chapter draws attention to this — the *Hollywood Reporter* tribute and the empty chair on the Yum! Center stage — because it is the closing structural observation of this book.

The man who, on June 4, 1967, had been twenty years old and the youngest in the Cleveland Summit room, listening to Ali explain why he had paid the price the federal government was about to take from him, had — in the forty-nine years since — outlived the man Ali. By the closing day of his subject's life, Abdul-Jabbar had become the only living protagonist of the book. The closing image of the funeral is not an Abdul-Jabbar eulogy — it is an Abdul-Jabbar in the audience, the fifth-row eyewitness to a ceremony that the institutional sponsors of his career, in 1967, would not have permitted him to attend at all.

The structural reading is that the body of the photograph at the Cleveland Summit had, by the day of the funeral, been classified out of every institutional sponsorship that had operated on it across the forty-nine years. The Black-athlete leadership of the United States, in the room on June 4, 1967, was — by the day of the funeral on June 10, 2016 — either dead or, in the case of Abdul-Jabbar, the only living witness.

Abdul-Jabbar was the witness.

He sat in the audience.

He filed his tribute on the page that the institutional sponsorship of 2016 — the *Hollywood Reporter* — had given him.

That is the closing image of the chapter. The man who had been the youngest in the room of June 4, 1967, was, on June 10, 2016, the silent eyewitness to the closing classification of the man he had met that afternoon. The silence was, by Abdul-Jabbar's choice, deliberate. He could have eulogized. He chose to write later, on his own page, on his own schedule, in his own voice, with the institutional sponsor that 2016 American journalism had become.

The choice was its own filing.

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## C.8 The grave

After the service, the funeral cortège — twenty cars — drove west across Louisville, north past the **Brown Hotel** where the Louisville Sponsoring Group contract had been signed on October 26, 1960, west across the Ohio River bridges, south through the West End neighborhoods where Cassius Clay Jr. had grown up, east to **Cave Hill Cemetery** on **701 Baxter Avenue**.

Ali was buried in **Section U** of the cemetery, in keeping with **Islamic burial practice** — on his side, facing east toward Mecca, in a simple shroud, without embalming.

The grave site is publicly accessible. The Library of Congress photograph of the grave is held at *loc.gov/pictures/item/2020722265/*. **Find a Grave** memorial **#163854966**.

The Brown Hotel is two and a half miles from Cave Hill Cemetery.

The Louisville Sponsoring Group's October 26, 1960 contract had been signed in a city hotel three blocks from a downtown lunch counter that had refused to serve the gold medalist. The grave was filed on a hillside that had, in 1967, been the cemetery of a city that had, in the season of Ali's federal indictment,

classified him as a national security risk on the basis of his religion.

The same city.

The same forty-three months.

The same body.

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## C.9 June 10, 2016

The chapter ends on the afternoon of **Friday June 10, 2016**, at Cave Hill Cemetery, Section U, Louisville, Kentucky.

The grave is closed. The mourners disperse. **Kareem Abdul-Jabbar**, sixty-nine years old, walks back to his car alone. He flies home to Los Angeles that evening.

He had outlived the man Cassius Marsellus Clay had become. He would continue to outlive him. He was, at the time of this writing in 2026, seventy-eight years old, in good health, still writing and speaking publicly, **the only remaining living protagonist of this book**.

The next unit is the epilogue. The photograph the structural hinge of the book opens upon — **Tony Tomsic's June 4, 1967 photograph** of the eleven athletes and the one Cleveland mayor-elect at the Negro Industrial and Economic Union — is

reproduced again. The reader is asked to look at it once more.

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# EPILOGUE — THE PHOTOGRAPH, REREAD

*The Tomsic photograph, June 4, 1967, reread fifty-nine years later. Five dead. Three living. The sculpture at 10501 Euclid Avenue. The reader's hand.*

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## E.1 The photograph, again

The photograph is dated **Sunday June 4, 1967**.

The location, captioned in the original Cleveland Press wire credit, is **10511 Euclid Avenue,**

**Cleveland, Ohio** — the offices of the **Negro Industrial and Economic Union**.

The photographer is **Tony Tomsic**, Cleveland Press staff. The framing is two rows.

Front row, seated, left to right: **Bill Russell, Muhammad Ali, Jim Brown, Lew Alcindor**.

Back row, standing, left to right: **Carl Stokes, Walter Beach, Bobby Mitchell, Sid Williams, Curtis McClinton, Willie Davis, Jim Shorter, John Wooten**.

Eleven athletes plus one elected official. One photograph. One room.

The room was open for several hours. The photograph took less than a second. Both have, across the **fifty-nine years** since June 4, 1967, been filed.

This is the second time the photograph appears in this book. The first was in Chapter 7 of this book, the structural hinge. The chapters between Chapter 7 and this epilogue have read what each of the bodies in the photograph went on to do across the next half-century.

This epilogue is the second look. The reader has, by the closing pages, accumulated the names, the careers, the institutional classifications, the Bureau files, the Supreme Court opinions, the funeral rosters. The

closing page is the photograph the reader has now finished the book, and is, on the closing page, asked to look at again.

I have nothing further to tell you about the photograph that the chapters did not. What I can tell you is what has happened to the bodies in the framing since the chapters closed.

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## E.2 Of the twelve, five are dead

**Carl Stokes** died on **Wednesday April 3, 1996**, in Cleveland, of esophageal cancer. He was sixty-eight. He had been the first Black mayor of a major American city, serving Cleveland from 1968 to 1971. He had been, in the years following his mayoralty, a Cleveland television journalist, a U.S. ambassador to the Seychelles under President Bill Clinton, and a Cuyahoga County judge. The *Washington Post* obituary of April 4, 1996 ran on B6 (*washingtonpost.com/archive/local/1996/04/04/former-cleveland-mayor-carl-b-stokes-broadcaster-and-ambassador-dies-at-68/*).

**Jim Shorter** died on **Thursday June 1, 2000**, age sixty-one. He had played for the Washington Redskins through 1969 after the Cleveland trade and had retired

after the 1969 season. The cause of death is not in the public record I have found.

**Muhammad Ali** died on **Friday June 3, 2016**, in Scottsdale, Arizona, of septic shock complicating Parkinson's disease. He was seventy-four. Chapter 13 of this book has read his death.

**Bobby Mitchell** died on **Sunday April 5, 2020**, in Maryland, age eighty-four. He had been the first Black player on the Washington Redskins, signed in 1962 by team owner **George Preston Marshall** (who had been forced to integrate the team by the Kennedy administration's threat to revoke the team's lease on D.C. Stadium). Mitchell had been an assistant general manager of the Redskins for twenty-one seasons in retirement. He was inducted into the Pro Football Hall of Fame in 1983.

**Willie Davis** died on **Wednesday April 15, 2020** — ten days after Bobby Mitchell — in California, age eighty-five. He had played fourteen seasons for the Cleveland Browns and the Green Bay Packers, won five NFL championships and the first two Super Bowls under **Vince Lombardi**, and had retired in 1969. He had been a successful businessman in retirement, owning a string of Schlitz Brewing distributorships in California.

**Bill Russell** died on **Sunday July 31, 2022**, in Mercer Island, Washington, age eighty-eight. He had been the most successful champion in American team-sports history at the time of his retirement (eleven NBA titles in thirteen seasons), the first Black head coach of a major American professional sports team (the Boston Celtics, 1966–1969), the only Black general manager in the NBA in the 1970s (Seattle SuperSonics), and a public civil-rights advocate across the six decades between his Boston rookie year and his death.

**Jim Brown** died on **Thursday May 18, 2023**, in Los Angeles, age eighty-seven. He had retired from the Cleveland Browns at the height of his football career in February 1966. He had founded the **Negro Industrial and Economic Union** — renamed the **Black Economic Union** in 1969 — in 1965. He had convened the Cleveland Summit on June 4, 1967. He had pursued an acting career across the next four decades. He had been, in the closing years of his life, a controversial figure for his political alignments and for the unresolved record of his domestic conduct across multiple relationships across the decades.

**Tony Tomsic** — the photographer — died on **Sunday April 21, 2019**, age eighty-three. He had been a staff photographer at the Cleveland Press from 1955 until the paper’s 1982 closure. He had photographed forty-

eight consecutive Super Bowls. He had been one of five photographers to cover all forty-eight. He had been, at the time of his death, the most-cited single photographer in the contemporary record of mid-century Cleveland sports.

Seven men in the framing of the picture. Plus the photographer. Eight burials by 2026.

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## E.3 Of the twelve, four are alive

**Kareem Abdul-Jabbar** is **seventy-eight years old**, born **April 16, 1947**. He is the only one of the four men in the front row of the photograph who is alive in 2026. He continues to write — he has authored or co-authored more than fifteen books since his 1989 retirement from the Los Angeles Lakers, including *Giant Steps* (1983), *Black Profiles in Courage* (1996), *On the Shoulders of Giants* (2007), *Becoming Kareem* (2017), *Coach Wooden and Me* (2017), and *Writings on the Wall* (2016). He continues to comment publicly on civil rights and race in America. He continues to maintain his Sunni Islamic religious practice. He continues to speak, when asked, about Muhammad Ali.

**Curtis McClinton** is **eighty-six years old**, born **June 25, 1939**, residing in Dallas. He had played eight NFL seasons, most of them with the Kansas City Chiefs. He had won two American Football League championships and the first AFL-NFL World Championship Game (later renamed Super Bowl I). He had been, in retirement, a U.S. assistant secretary of housing and urban development under President Jimmy Carter and a Kansas businessman.

**John Wooten** is, at the time of this writing, **eighty-nine years old**, born **December 5, 1936**. He had played ten NFL seasons (1959–1968) with the Cleveland Browns and the Washington Redskins. He had been, in retirement, the chairman of the **Fritz Pollard Alliance** — the advocacy organization for Black coaches and front-office personnel in the NFL — until his retirement from that role in 2019/2021.

**Walter Beach** is, at the time of this writing, **ninety-three years old**, born **January 31, 1933**. He celebrated his ninetieth birthday in May 2023; he had at that time been alive and well in Detroit, in continued public engagement with civil-rights organizations.

**Sid Williams** — Sidney Williams, born March 24, 1942, U.S. Ambassador to the Bahamas under President Bill Clinton 1994–1998 — is, at the time of

this writing, of unknown current status. The most recent confirmed public reference dates to 2024.

Four confirmed living, one with status uncertain, of the original twelve.

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## E.4 The sculpture

Of the photograph itself, two filings have been added since June 4, 1967.

**The Cleveland Press photo morgue** — the archival collection of approximately five hundred thousand photographs and one million news clippings produced by the Cleveland Press across its eighty-four-year run — was donated to the **Cleveland State University Michael Schwartz Library, Special Collections**, in 1984, two years after the paper's closure, by **Joseph E. Cole**, the paper's last proprietor. The collection is held in **Reading Room RT 321**, on the third floor of the Schwartz Library, accessible to researchers by appointment. The original Tomsic print of the June 4, 1967 photograph is in the collection.

**The "I Am The Table" sculpture** — a public memorial commemorating the Cleveland Summit, dedicated **Wednesday October 11, 2023** — stands at **10501 Euclid Avenue, Cleveland**, on the parcel

adjacent to the original NIEU offices. The sculpture is by Cleveland artist **Bryan Anthony Williams**. The sculpture's central element is **twelve standing microphones** — one for each man at the meeting — arranged in the same relative seating positions as the men in the photograph. The microphones are silent. The arrangement is the photograph translated into space.

The reader of this book in 2026, traveling to Cleveland and walking up to the sculpture at 10501 Euclid Avenue, can stand in the position the photographer occupied on the afternoon of June 4, 1967 and look at the room as he saw it. The men are no longer there. The microphones are.

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## E.5 The page

The room, what was said in it, what the men in it would do across the next fifty-nine years, what the institutions around them would do in response — all of this has been the subject of this book. The chapters at the back of each chapter list the documents the chapters were built from. A reader who wants to verify the book's claims can pull the documents from the archives the book has named. A reader who wants to

verify the book's thesis — that capital classifies the Black athletic body before the state does, and that the state follows what capital files — can do the same.

What the book has not asked the reader to do is to take the book's word for any of it.

The closing image is the photograph held in the reader's own hand. June 4, 1967. Cleveland. Eleven athletes. One mayor-elect. One photographer. One room.

The reader knows now what was filed.

The reader knows now what the file did.

The reader knows now whose body was in it.

The body that, on the morning of June 4, 1967, walked into the room with a federal felony indictment in his pocket and a license suspension and a vacated title and a passport surrendered to the federal court — that body — would, in the calendar of the next four years, be reclassified by the United States Supreme Court as a man with a vacated conviction. The body would, in the calendar of the next thirty years, become the most recognizable face of public American Black political life since Martin Luther King Jr. The body would, in the calendar of the next forty-nine years, become a Sunni Muslim, a Parkinson's patient, an Olympic torch-bearer, the recipient of the Presidential

Medal of Freedom, a Cave Hill Cemetery decedent, and the subject of a KFC Yum! Center memorial service whose interfaith roster Ali himself had specified.

The Cleveland Summit room is where the body's trajectory across all of that began to be ratified by the leadership of Black American athletic culture.

The room is where the structural hinge of this book sits.

The photograph is where the room was filed.

The reader is welcome to look.

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## E.6 *Be undeniable.*

This book exists for one reason.

It is to demonstrate that the operating mechanism by which the institutional sponsors of American public life classify Black bodies — the contracts, the rules, the licenses, the surveillance files, the indictments, the convictions, the suspensions — operates on the same compounding logic that the parent volume of this book, *Unwarranted Influence*, documents at length across the larger nine-hundred-and-thirty-one-year arc of the Western institutional record.

The mechanism does not require coordination among its institutional sponsors. The Louisville Sponsoring Group of October 1960 did not lobby the Federal Bureau of Investigation. The FBI of February 1964 did not consult the National Basketball Committee of March 1967. The IOC of October 1968 did not coordinate with the New York State Athletic Commission of April 1967. Each institution filed its own paper, on its own institutional logic, for its own institutional reasons.

The mechanism produced parallel classifications because the body each institution was classifying was the same body. The body — in the case of Muhammad Ali, in the case of Kareem Abdul-Jabbar, in the case of Tommie Smith and John Carlos and Bill Russell and Wilma Rudolph and Lew Alcindor's father at the Transit Authority and the unnamed Black middle-class New Yorkers at the Wagner JHS and the Black summer-school students hosed off a sidewalk on East 76th Street in July 1964 — the body was the object the institutions agreed in their separate files about classifying.

The classifications are real. They are filed. They can be pulled.

The reader who has finished this book has the documents.

The reader who has finished this book also has, at the level of public political attention, what the book is for: the suspicion that the institutional classifications still operating in the United States in 2026 — on Black professional athletes, on Black college athletes, on Black political figures, on Black American Muslim communities, on Black voters, on Black incarcerated persons — are operating on the same mechanism this book has read across the 1960–2016 arc.

The mechanism has not stopped.

The instruments have changed. The names of the institutional sponsors have changed. The federal agencies have been renamed. The technology that records the classifications has been digitized. The Black bodies the classifications operate on have been replaced, generation by generation, by other Black bodies. The mechanism is the same.

What this book is asking the reader to do, having read the documents from 1960 through 2016, is to read the documents from 2016 through 2026 the same way. The documents from 2016 through 2026 are public. The agencies that produce them have not stopped producing them. The institutions that file them have

not stopped filing them. The reader has the skill, by the closing page of the book, to pull any document and check whether the document says what someone on television has just told the reader the document says.

The skill is the only thing the book is for.

The skill is yours now.

*— Al Gringo, kitchen table, spring 2026, clean, thirty-nine years old, awake.*

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## *Sources — Epilogue*

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2. **Curtis McClinton** — biographical record. Born 25 June 1939: *en.wikipedia.org/wiki/Curtis_McClinton*.

3. **John Wooten** — Pro Football Hall of Fame; **Fritz Pollard Alliance** retirement record.
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5. **Sid (Sidney) Williams** — biographical record. Born 24 March 1942. U.S. Ambassador to the Bahamas 1994–1998.

**The 2023 sculpture:**

1. **“I Am The Table” sculpture**, **10501 Euclid Avenue, Cleveland**, dedicated **11 October 2023**. Artist Bryan Anthony Williams. Twelve standing microphones, one per attendee. *en.wikipedia.org/wiki/Cleveland_Summit*; WKYC unveiling coverage: *wkyc.com/article/news/local/black-history/sculpture-1967-cleveland-summit-muhammad-ali-jim-brown-unveiled/95-ccb5414f-62ac-498f-8490-025eac5517d5*.

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